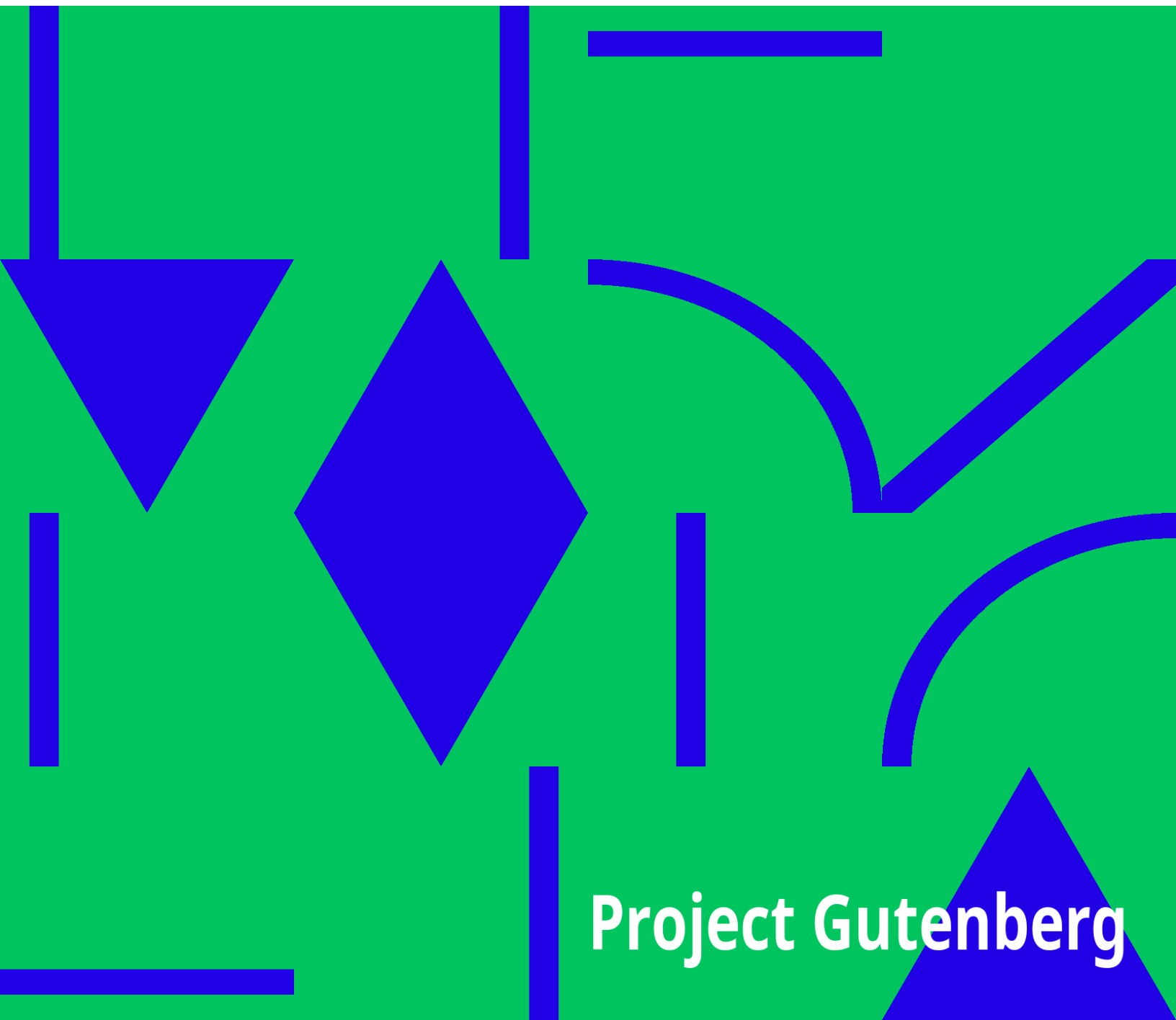


The Saintsbury Affair

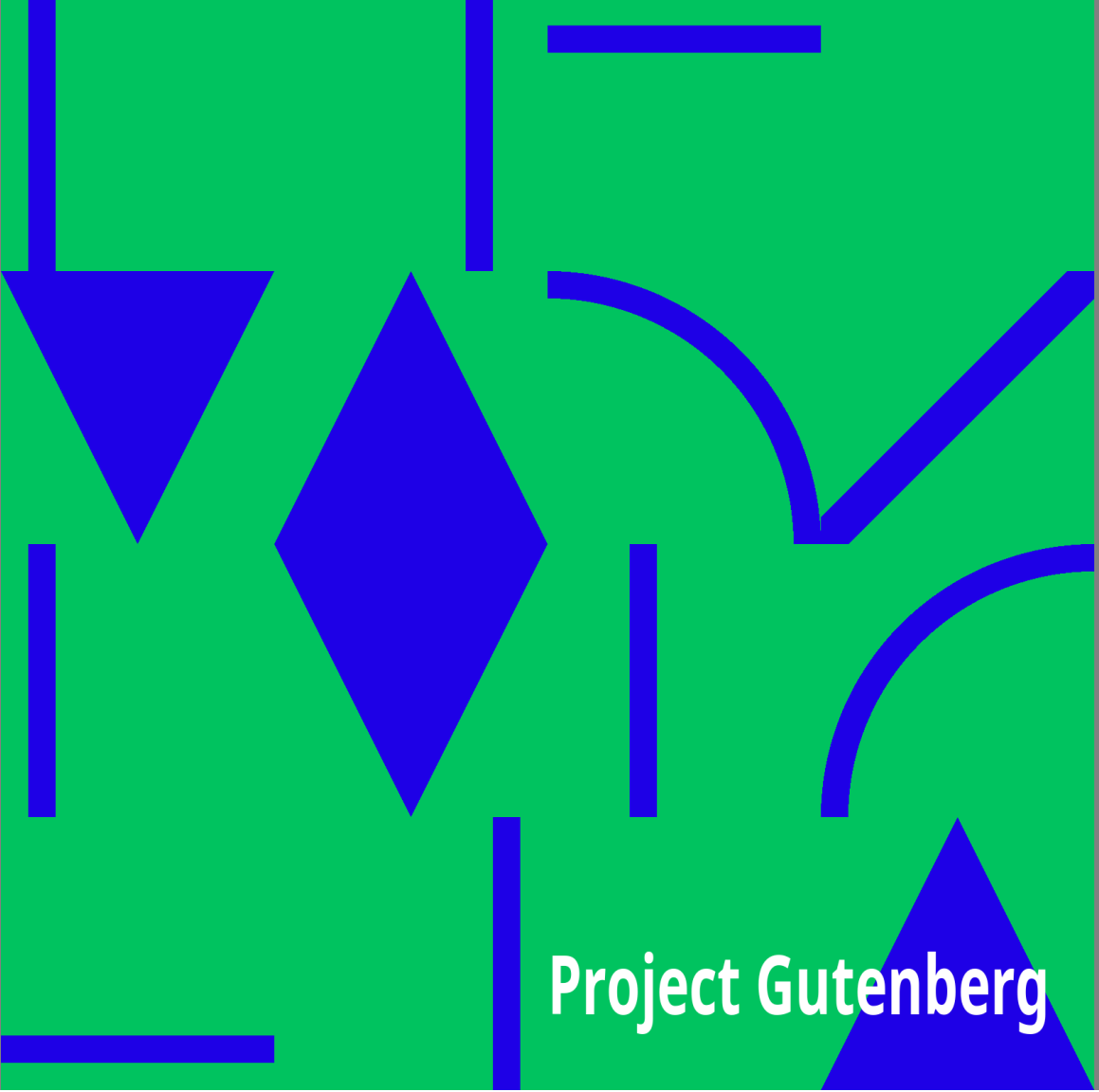
Lily A. Long

The background of the lower half of the image is a solid green field. Overlaid on this are several abstract geometric shapes in a vibrant blue color. These include a large inverted triangle on the left, a diamond shape in the center, and a smaller triangle at the bottom right. There are also several thick, straight lines and curved arcs scattered across the green area, creating a dynamic, modern geometric design.

Project Gutenberg

The Saintsbury Affair

Lily A. Long

An abstract geometric pattern consisting of various blue shapes on a green background. The shapes include a large central diamond, a triangle pointing down on the left, a triangle pointing up on the right, and several smaller rectangles and curved lines scattered throughout.

Project Gutenberg

The Project Gutenberg eBook of The Saintsbury Affair

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Saintsbury Affair

Author: Lily A. Long

Illustrator: J. V. McFall

Release date: March 25, 2018 [eBook #56838]

Language: English

Other information and formats: www.gutenberg.org/ebooks/56838

Credits: Produced by Charles Bowen from page scans provided by Google Books (Harvard College Library)

*** START OF THE PROJECT GUTENBERG EBOOK THE
SAINTSBURY AFFAIR ***

Transcriber's Notes:

1. Page scan source: <https://books.google.com/books?id=ZK0RAAAAYAAJ&pg>
(Harvard College Library)

The Saintsbury Affair



As I came up, his listener emptied a chatelaine purse upon Barney's tray. FRONTISPIECE. See page 23.

As I came up, emptied a chatelaine purse upon Barney's tray.
FRONTISPIECE. See page 23.

THE SAINTSBURY AFFAIR

By

ROMAN DOUBLEDAY

**Author of "The Hemlock Avenue Mystery,"
"The Red House on Rowan Street," etc.**

**With Illustrations by
J. V. McFall**

**BOSTON
LITTLE, BROWN AND COMPANY
1912**

Copyright, 1911, 1912,
BY LITTLE, BROWN, AND COMPANY.

All rights reserved

Published, February, 1912

Electrotyped and Printed by
THE COLONIAL PRESS
C. B. Simonds & Co., Boston, U.S.A.

CONTENTS

CHAPTER

- | | |
|--------------|------------------------------------|
| <u>I.</u> | THE BEGINNING OF THE TANGLE. |
| <u>II.</u> | TWO LOVELY LADIES. |
| <u>III.</u> | THE UNEXPECTED HAPPENS. |
| <u>IV.</u> | CROSSED WIRES. |
| <u>V.</u> | BERTILLON METHODS AND SOME OTHERS. |
| <u>VI.</u> | THE FRAT SUPPER. |
| <u>VII.</u> | CHIEFLY GOSSIP. |
| <u>VIII.</u> | SOME OF JEAN'S WAYS. |
| <u>IX.</u> | A GLEAM OF LIGHT. |
| <u>X.</u> | WAYS THAT ARE DARK. |
| <u>XI.</u> | THE SIMMERING SAMOVAR. |
| <u>XII.</u> | ON THE TRAIL OF DIAVOLO. |
| <u>XIII.</u> | THE SAMOVAR EXPLODES. |

<u>XIV.</u>	TANGLED HEART-STRINGS.
<u>XV.</u>	THE OUTLAW.
<u>XVI.</u>	THE GIFT-BOND.
<u>XVII.</u>	A VOICE FROM THE PAST.
<u>XVIII.</u>	A RESCUE.
<u>XIX.</u>	CARDS ON THE TABLE.
<u>XX.</u>	THE ULTIMATE DISCOVERY.

Illustrations

AS I CAME UP, HIS LISTENER EMPTIED A CHATELAINE PURSE UPON BARNEY'S TRAY	<u>Frontispiece</u>
"HE WAS DIAVOLO'S PARTNER," HE SAID VEHEMENTLY	<u>Page 137</u>
"I BELIEVE IT," SAID A VOICE THAT STARTED US ALL	<u>Page 186</u>
THERE LAY A PATHETIC LITTLE HEAP ON THE DAGHESTAN RUG ON MY FLOOR	<u>Page 290</u>

The Saintsbury Affair

CHAPTER I

THE BEGINNING OF THE TANGLE

Let me see where the story begins. Perhaps I can date it from the telephone invitation to dinner which I received one Monday from my dear and kind friend Mrs. Whyte.

"And see that you are just as clever and agreeable as your naturally morose nature will permit," she said saucily. "I have a charming young lady here as my guest, and I want you to make a good impression."

"Another?" I gasped. "So soon?"

"I don't wonder that your voice is choked with surprise and gratitude," she retorted, and I could see with my mind's eye how her eyebrows went up.

"You *don't* deserve it,--I'll admit that freely. But I am of a forgiving nature."

"You are so near to being an angel," I interrupted, "that it gives me genuine pleasure to suffer martyrdom at your behest. I welcome the opportunity to show you how devotedly I am your slave. Who is the young lady this time?"

"Miss Katherine Thurston. Now if you would only talk in that way to *her*,--"

"I won't," I said hastily. "At least, not until her hair is as white as yours is,--it can never be as lovely. But for your sake I will undertake to be as witty

and amiable and generally delightful as I think it safe to be, having due regard for the young lady's peace of mind,--." I rang off just in time to escape the "You conceited puppy!" which I knew was panting to get on the wire. Mrs. Whyte's speech was at times that of an older generation.

So that was how I came to go to Mrs. Whyte's dinner that memorable Monday evening, and to meet Katherine Thurston.

But now that I come to look at it in this historical way, I see that I shall have to begin a little farther back, or you won't understand the significance of what took place that night.

I already had another engagement for that evening, but I thought I could fit the two appointments in, by getting away from Mrs. Whyte's by ten o'clock. Under the circumstances she would forgive an early departure. My other engagement was of a peculiar and unescapable nature. It had come about in this way.

There was a man in our town who had always interested me to an unusual degree, though my personal acquaintance with him was of the slightest. He was an architect, Kenneth Clyde by name, and he had done some of the best public buildings in the State. He had a wide circle of friends and acquaintances, and was related to half a dozen of the "Old families" of the town. (I am comparatively new myself. But I soon saw that Clyde belonged to the inner circle Of Saintsbury.) And yet, with all his professional success and his social privileges, there was something about the man that expressed an excessive humility. It was not diffidence or shyness,--he had all the self-possession that goes with good breeding. But he held himself back from claiming public credit or accepting any public place, though I knew that more than once it had been pressed upon him in a way that made it difficult for him to evade it. He persistently kept himself in the background, until his desire to remain inconspicuous almost became conspicuous in turn. He was the man, for instance, who did all the work connected with the organization of our Boat Club, but he refused to accept any Office. He was always ready to lend a hand with any public enterprise that needed pushing, but his name never figured on the committees that appeared in the newspapers. And yet, if physiognomy counts for anything, he was not born to take a back seat. He

was approaching forty at this time, and in spite of his consistent modesty, he was one of the best known men in Saintsbury.

As I say, he had always interested me as a man out of the ordinary, and when he walked into my law office a few days before that telephone call from Mrs. Whyte, I was uncommonly pleased at the idea that he should have come to me for legal advice when he might have had anything he wanted from the older lawyers in town whom he had known all his life. I guessed at a glance that it was professional advice he wanted, from the curiously tense look that underlay his surface coolness.

"I have come to you, Mr. Hilton," he said directly, "partly because you are enough of a stranger here to regard me and my perplexities in an impersonal manner, and so make it easier for me to discuss them."

"Yes," I said encouragingly. He had hesitated after his last words as though he found it hard to really open up the subject matter.

"But that is only a part of my reason for asking you to consider my case," he went on with a certain repressed intensity. "I believe, from what I have seen of you, that you have both physical and moral courage, and that you will look at the matter as a man, as well as a lawyer."

I nodded, not caring to commit myself until I understood better what he meant.

"First, read this letter," he said, and laid before me a crumpled sheet which he had evidently been clutching in his hand inside of his coat pocket.

It was a half sheet of ruled legal cap, and in the center was written, in a bold, well-formed hand,----

"I need \$500. You may bring it to my office Monday night at ten. No fooling on either side, you understand."

"Blackmail!" I said.

Clyde nodded. "What is the best way of dealing with a blackmailer?" he asked, looking at me steadily.

"That may depend on circumstances," I said evasively. I felt that, as he had suggested, he was trying to appeal to my sympathies as a man rather than to my judgment as a lawyer.

"I heard of one case," he said casually, "where a prominent man was approached by a blackmailer who had discovered some compromising secret, and he simply told the fellow that if he gave the story to the papers, as he threatened to do, he would shoot him and take the consequences, since life wouldn't be worth living in any event, if that story came out. I confess that course appeals to my common-sense. It is so conclusive."

"I infer, however, that you didn't take that tone with this fellow when he first approached you," I said, touching the paper on my desk. "This is not his first demand."

"No. The first time that it came, I was paralyzed, in a manner. I had been dreading something of that sort,--discovery, I mean,--for years. I had gone softly, to avoid notice, I had only half lived my life, I had felt each day to be a reprieve. Then *he* came,--and asked money for keeping my secret. It seemed a very easy way of escape. In a way, it made me feel safer than before. I knew now where the danger was, and how to keep it down. It was only a matter of money. I paid, and felt almost cheerful. But he came again, and again. He has grown insolent." He drew his brows together sternly as he looked at the written threat which lay before us. He did not look like a man afraid.

"Can you tell me the whole situation?" I asked. "If I know all the facts, I can judge better,--and you know that you speak in professional confidence."

"I want to tell you," he said. "I--he knew--the fact is, I was sentenced to be hanged for a murder some fifteen years ago in Texas. The sentence is still suspended over me. I escaped before it was executed."

A lawyer learns not to be surprised at any confession, for the depths of human nature which are opened to his professional eye are so amazing that he becomes accustomed to strange things, but I admit that I was staggered at my client's confidence. I picked up and folded and refolded the paper before I could speak quite casually.

"And no one knows that fact? Your name--?"

"I was known by another name at the time,--an assumed name. I'll tell you the whole story. But one word first,--I was and am innocent."

He looked at me squarely but appealingly as he spoke, and suddenly I saw what the burden was which he had been carrying for fifteen years,--nearly half his life.

"I believe you," I said, and unconsciously I held out my hand. He gripped it as a drowning man clutches a spar, and a dull flush swept over his face. His hand was trembling visibly as he finally drew it away, but he tried to speak lightly.

"That's what I couldn't induce the judge or jury to do," he said. "Let me tell you how it all came about. It was in August of 1895. I had graduated in June,--I was twenty-three,--and before settling down to my new profession I went off on a vacation trip with a fellow I had come to know pretty well at the University during my last year there. He was not the sort of a friend I cared to introduce to my family, but there are worse fellows than poor Henley was. He was merely rather wild and lawless, with an instinct for gambling which grew upon him. We went off avowedly for a lark,--to see life, Henley put it. I knew his tastes well enough to guess beforehand that the society to which he would introduce me would not be creditable. The Clydes are as well known in this State as Bunker Hill is in Boston, and I felt a responsibility toward the name. So I insisted that on our travels I should be Tom Johnson."

"I see. Then when the trouble came you were known by that name instead of your own?"

"Yes. That's how I was able to come back here and to go on living my natural life."

"That was fortunate. That situation was much easier to manage than if it had been the other way around."

Clyde had picked up a paper knife and was examining it with absent attention, and instead of answering my remark directly he looked up with a frank smile.

"You can't imagine what it means to me to be able to talk this over with you," he said. "All these years I have carried it--here. Why, it is like breathing after being half suffocated."

"I understand."

"You want to know the details, though," he went on more gravely. "We were together for several weeks, going from one city to another. Henley had a special faculty for striking up acquaintance with picturesque rascals, and for a time I found it very interesting as well as novel. It was a side of life I had never before come close to. But gradually I couldn't help seeing that Henley was helping out an uncommon knack with the cards by the tricks of a sharper. We quarrelled over it more than once, and things began to grow uncomfortable. The old irresponsible comradeship was chilled, though I didn't yet feel like cutting loose from him. One night we had been playing cards in a saloon in Houston, Texas,--Henley and I and two men we had picked up. They were rough and ready Westerners, and a sort to stand no fooling. We had all been drinking a little, but not enough to lose our heads. I saw Henley make a misdeal and I told him so. He was furious, and we all but came to blows in the quarrel that followed. I left him with the others and went off by myself. That evening had finally sickened me with the swine's husks I had been eating, and I suddenly determined to quit it then and there and get back to my own life, my own name, and my own people. I walked down to the station, found that a train for the north was just about to pull out, and jumped aboard. I was an hour away from Houston before I remembered something that made me change my hasty plan. I had left my bag in the room at the hotel, and though I didn't care about the clothes or the other things, there was-- Well, there is no reason why I should not tell you.

There was a girl's picture in an inside compartment, and some letters, and I couldn't leave them to chance. I had simply forgotten all about that matter in my angry passion, but the thought now was like a dash of cold water, bringing me to my senses. I got out of the train at the next stop,--a place called Lester. It was just midnight. I found that the first train I could catch to take me back to Houston would go through at five in the morning, and I walked up and down that deserted platform,--for even the station agent went off to sleep after the midnight train went through,--for five mortal hours. I had time to think things over, and to realize that I had been playing with pitch as no Clyde had a right to."

He paused for an instant, as though he were living the moment over, but I did not speak. I wanted him to tell the story in his own way.

"I caught the five o'clock train back and was in Houston soon after six. I went at once to the hotel and to my room. Henley's room communicated with mine. The door between them was ajar, and I pushed it open to speak to him. He was leaning over the table, on which cards were scattered about, and he was quite dead, from a knife thrust between the shoulders."

Clyde had been speaking in a composed manner, like one telling an entirely impersonal tale, but at this point he paused and a look of embarrassment clouded his face.

"I find it hard to explain to you or to myself why I did so foolish a thing as I did next, but I was rather shaken up by weeks of dissipation, and the racketing of the night before and my excited, sleepless night had thrown me off my balance. When I saw Henley dead over the cards, I realized in a flash how bad it would look for me after my row with him in the saloon the night before. I jumped back into my own room and began stuffing my things into my bag pell-mell to make my escape."

"The worst thing you could have done."

"Of course. And it proved so. I had left my room-door ajar, a sweeper in the halls saw my mad haste, and it made him suspicious. When I stepped out of my room, the proprietor stopped me. Of course the whole thing was

uncovered. I was arrested, tried for murder, and, as I told you, sentenced to be hanged." He finished grimly. His manner was studiously unemotional.

"And yet you had a perfect alibi, if you could prove it."

"But I couldn't. No one knew I took that train. The train conductors were called, but neither of them remembered me. The station agent at Lester, with whom I had had some conversation about the first train back, was killed by an accident the next day. The fact that I was out of Houston from eleven until six was something I could not prove. And it was the one thing that would have saved me."

"But neither could they prove, I take it, that you were in the hotel that night."

"They tried to. The clerk testified that four men came in shortly after eleven and went up to Henley's room. One of them was Henley, two were strangers, and the fourth he had taken for granted to be me. My lawyer pressed him on that point, of course, and forced him to admit that he had not noticed particularly, but had assumed that it was I from the fact that he was with Henley, and because he was about my size and figure. Drinks had been sent up, and an hour later two of the men had quietly come down and gone out. Nothing further had been heard from our room until the sweeper reported in the morning that he had seen me acting like a man distracted, through the partly open door. Everything seemed to turn against me. I was bent on saving my name at any rate, so I could not be entirely open about my past history, and that prejudiced my case."

"What is your own theory of the affair and of the missing third man?" I asked.

"I suppose the men whom I had left with Henley in the saloon had picked up a fourth man for the game and gone to Henley's room. He probably tried to cheat again, and they were ready for him. One of them stabbed him. Then the other two waited quietly in the room while the actual slayer walked out, to make sure that he had a clear passage, and then they followed after he had had time to disappear. They were hard-bitted men, but not thugs."

"You were tried and sentenced. How did you get away?"

"After the sentence, and while I was on the way back to jail, I made my escape. I have always believed that the deputy sheriff who had me in charge gave me the opportunity intentionally. Certainly he fired over my head, and made a poor show at guessing my direction. I think he had doubts of the justice of the verdict and took that way of reversing the decision of the court, but of course I can never know."

"Then you came back here? This had been your home before?"

"Yes. It was the way to avoid comment. Kenneth Clyde was well known here, and nobody in Saintsbury even heard of the trial of one Tom Johnson in Houston. I have thought it best to go on living my life just as I should have done in any event. And I have done so, except that I have never-- But that doesn't matter." From the expression that swept over his face I guessed what the exception was. He had never dared to marry.

"Then this man--?" I prompted.

A fleeting smile passed over Clyde's face. He spoke with light cynicism.

"As you say, then this man. I had almost come to believe that the past was dead and buried and that I would be justified in forgetting it myself. Then this man came into my office one day, affected surprise at seeing me, called me Tom Johnson, and laughed in my face when I denied the name. I was panic-stricken. I bought his silence. Of course he came again. As I said at the beginning, I am tired of the situation." There was a tone in his voice that would have held a warning for the blackmailer if he had heard it.

"How much does the man know? Do you know whether he has anything to prove his charges?"

"It seems that he was in the court-house as a spectator during the trial. He didn't know me at the time, though he might, for he seems to have been in this neighborhood time and again,--at least in the State. He is a trouble man himself,--some ten years ago he shot and killed a State senator here in Saintsbury. He was acquitted, because he got some friends to swear that

Senator Benbow had made a motion as though to draw a gun, though he was found afterwards to be unarmed. But popular anger was so aroused against him, he had to leave the State, and he has drifted down stream ever since,--pretty far down, I imagine; fairly subterranean at times. All this I have found out since he forced his acquaintance upon me. I knew nothing of him before."

"What is his name? Where is he to be found?"

"Alfred Barker. He has an office in the Phoenix Building at present. Whether he has any legitimate business I do not know. He hangs out under the shingle of the Western Land and Improvement Co., but I have a feeling that that is only a cover."

"A man who has lived that sort of a life is probably vulnerable," I said cheerfully. "I'll see what I can find out about him. In the meantime, I, as your attorney, will keep this appointment for you next Monday evening."

"I thought that would probably be your plan. But now that I have put it into your hands, I am more than half sorry I did not keep it to myself and meet him with a revolver."

I shook my head. "For a burnt child, you have curiously little respect for the fire of the law."

Clyde had risen, and he stood looking at me with an impersonal sternness that made his eyes hard.

"My life, and, what I value far more, my reputation, my name, are in that fellow's hands. And he is an unhung murderer,--his life is already forfeit."

"His time will come," I said hastily. My new client looked altogether too much as though he were disposed to hurry on the slow-paced law! I could not encourage such reflections.

Clyde nodded, but with an absent air, as though he were following his own thoughts rather than my words, and soon took his leave.

When I decided to take up the practice of the law, I had fancied, in my youthful ignorance, that it was a sort of glorified compound of a detective story and Gems of Oratory. I had now been at it for some years, and so far my detective instincts had been chiefly required in the search for missing authorities in the law books, and my oratorical gifts had been exercised almost exclusively on delinquent debtors who didn't want to pay their debts. You can therefore imagine that Clyde's interview left me pleasantly excited. This was the real thing! This was the case I long had sought and mourned because I found it not! Not for worlds would I have missed the opportunity of meeting his blackmailing correspondent. To face a rascal was no uncommon experience, unfortunately; but to face so complete and melodramatic a rascal, and to try to wrest from him some incriminating admission that would give me a controlling hold on him in my turn,--that was something that did not come often into the day's work.

Very much to my surprise, I found unexpected light upon the career of Alfred Barker not farther away than my own office. My first step was to set my clerk, Adam Fellows, to looking up the court and newspaper records of Barker's connection with the killing of Senator Benbow. When I mentioned his name to Fellows I saw by his sudden change of expression that I had touched some sore chord,--and if Fellows had an ambition it was to conceal his feelings, moreover.

"You know Barker, then?" I said abruptly.

"Yes," he said, in a very low voice,--and I guessed in what connection.

I may say here that Fellows was a souvenir of my first trial case and of an early enthusiasm for humanity. One day, not long after my admission to the bar, (this was before I came to Saintsbury,) the court assigned to me the defense of a young fellow who had no lawyer. He was a clerk in a city office, and was charged with embezzlement by his employers. The money had gone for race-track gambling, and he could not deny his guilt; but by bringing out the facts of his youth and his unfortunate associations, I was able to get a minimum sentence for him,--the best that could be expected under the circumstances. When his sentence expired, I was on the lookout for him, and took him into my own office as a clerk. I had nothing he could embezzle, for one thing, and the dogged stoicism with which he had met his

fate interested me. Besides, I knew it would be difficult for him to get work, particularly as he did not have an engaging personality. I think that in a manner he was grateful, but he never could forget that he carried the stigma of a convict, and he imagined that everyone else was remembering it also. This moodiness had grown upon him instead of wearing off. It used to make me impatient,--but it is easy enough for one whose withers are unwrung to be impatient with the galled jade's tendency to wince.

"What do you know of him?" I asked.

"I know that where he is, there is deviltry, but no one ever catches him," he said bitterly. "Someone else will pay all right, but the law doesn't touch him."

"Did he get you into trouble?" I asked bluntly.

"He made me believe he could make a fortune for me. He kept me going with hopes that the next time, the next time, I would win enough to square things up. It was his doing, not mine, really. But he did nothing that the law takes note of." He spoke with unusual excitement and feeling, and I didn't think any good would come of a discussion of moral responsibility at that time.

"Well, look up everything possible about that affair when Benbow was killed," I said. "I want to see if there is anything in that which would give a hold on him."

"Oh, there won't be," he said, scornfully. "He plays safe. But if there is any justice in heaven, he will come a cropper some day. Only it won't be by process of law. No convict stripes for *him*."

"Let me know as soon as you find the record," I said, turning away. His bitterness only grew if you gave it opportunity.

I then took occasion to visit the Phoenix Building, in order to locate the office which I expected to visit the Monday evening following. I wanted to know my way without wasting time.

As I entered, I noticed a man standing before the building directory which hung opposite the elevators. He was a tall, athletic fellow, in clothes that suggested an engineer or fireman. His hat was pulled down over the upper part of his face, but his powerful, smooth-shaven jaw showed the peculiar blue tint of very dark men. All this I saw without consciously looking, but in a moment I had reason to notice him more closely. The elevator gate opened, and a man stepped out,--a rather shabby, untidy man, with a keen eye. He glanced at me carelessly, then his eye fell upon the tall young fellow before the bulletin board, and he smiled. He stepped up near him.

"Hello! You here?" he said, softly. Then, deliberately, "Are you married yet?"

The tall fellow turned and lunged toward him, but the other ducked and slipped adroitly out of his way and ran down to the open doorway and so into the street. The tall fellow made no attempt to follow. I think that lurch toward the other had been partly the result of surprise. But not wholly. He stood now, leaning against the wall, apparently waiting for the elevator, but I saw that his two fists had not yet unclenched themselves, and his blue-black jaw was squared in a way that told of locked teeth. He jerked his hat down farther over his face as he saw me looking at him, and turned away. He was breathing hard.

"Can you direct me to Mr. Barker's office?" I asked the elevator man.

"His office is in No. 23, second floor, but he ain't in. That was he that came down with me and went out."

"Oh, all right. I'll come again," I said, and turned away.

The tall young fellow had gone. Had he, too, come to look up Mr. Barker? At any rate, I should know Barker when we met again.

CHAPTER II

TWO LOVELY LADIES

I am trying to give you this story as it opened up step by step before me and around me, not merely as I came to see it afterwards, looking backward. But of course I shall have to select my scenes. The story ran sometimes, like a cryptogram, through other events that seemed at the time to mean something entirely different, and I also did some living and working and thinking along other lines through those days. But these matters I eliminate in telling the tale. They were equally important to me at the time but now they are forgotten, and the links of the story are the only things that stand out in my memory.

Mrs. Whyte's dinner was an important link, but before that there came another incident most significant, as I saw afterwards,--or, rather, two related incidents.

There was an old beggar on the street-corner right across from my office for whom I had an especial affection. Of course he made a show of being a merchant rather than a beggar, by having a tray of cut flowers in summer and hot peanuts in winter and newspapers at all seasons, on a tripod arrangement beside him; and the police knew better than to see if he sometimes held up a wayfarer for more than the price of his wares. I was fond of him because he was so imperturbably cheerful, rain or shine, and so picturesque and resourceful in flattery. He was an old soldier; and one leg that had danced in days ago, and that had most heedlessly carried him to the firing line in half a dozen battles of our own Civil War was buried at Gettysburg. Barney seemed to regard this as a peculiarly fortunate circumstance, since it had made it possible for him to use a crutch. That crutch was a rare and wonderful possession, according to Barney. Hearing him dilate on its convenience and comfortableness, you might almost come to believe that he meant it all.

Well, you'll understand from this that I not only liked but respected Barney, and I usually stopped to get a flower when I passed his stand on leaving my

office. On that Monday,--that eventful and ever-to-be-remembered Monday,--I saw as I approached that Barney was holding forth in the spell-binding manner I knew, to another listener,--a young fellow, I thought at first. But as I came up, his listener emptied a chatelaine purse upon Barney's tray, and my surprised glance from the jingling shower of silver to the face of the impetuous donor showed me that it was a young girl,--a gallant, boyish-faced girl, whose eyes were shining into Barney's with the enthusiasm of a hero-worshipper.

"I'll never forget that,--never!" she cried, in a voice thrilled with emotion. "It was great." And on the instant she turned on her heel like a boy and marched off down the street.

I looked at Barney with suspended disapproval, and for once, to do him credit, he looked abashed.

"Faith, and who'd think the chit would have all that money about her and her that reckless in shattering it about!" he exclaimed. Then, recovering himself, he thrust the coins carelessly in his pocket (perhaps to get them out of my accusing sight) and ran on, confidentially,--

"It's the Lord's own providence that she turned it over to me, instead of carrying it about to the shops where temptation besets a young girl on all sides. It's too full their pretty heads are of follolls and such, for it's light-headed they are at that age, and that's the Lord's truth."

"You worked on her sympathies," I said sternly. "You saw she was a warm-hearted young girl, and you played up to her. You made yourself out a hero, you rascal."

"You're the keen gentleman," said Barney admiringly. "Sure and you'd make a good priest, saving your good looks, for you'd see the confession in the heart before a poor lying penitent had time to think of a saving twist to give it that might look like the truth and save him a penance."

"Never mind me and my remarkable qualities," I said severely. "What were you telling that girl?"

Barney bent over his flowers to shift the shades which protected them from the sun, but after a moment's hesitation he answered, without looking up.

"She has the way with her, that bit! When she looked me in the eye and says 'Tell me what I ask,' I knew my commanding officer, and it's not Barney that risks a court-martial for disobedience! No, sir! If she didn't keep at me to tell her how I lost my leg, now! Your honor couldn't have held out agin her, not to be the man you are."

I knew the story of that lost leg, and how shy Barney was of retailing that heroic bit of his history, and I wondered less at the girl's emotion than at her success in drawing the hidden tale from him. He didn't tell it to many. While I marvelled he looked up with the twinkle I couldn't help liking.

"She didn't give me time to tell her that that bit story wasn't the kind you pay to hear, but it would maybe have chilled the warm heart of her to have me push her silver back, and I wouldn't do that even if I had to keep the money to save her feelin's, the darlin'."

"Awfully hard on you, I know," I said, letting us both down with the help of a little irony. "Where's my rosebud, you rascal?"

He lifted a slender vase from the covered box beneath his table and brought out the flower he had reserved for me. It was a creamy white bud, deepening into a richer shade that hinted at stores of gold at the sealed-up heart. As he held it out silently, something in his whimsical face told me his thought.

"Yes, you are right," I said casually, as I took the flower. "It *does* look like her."

Barney's eyes wrinkled appreciatively. "There was a mistake somewhere, sir, when you were born outside of Eire. But you got it straight this time."

I went home to dress for Mrs. Whyte's dinner, and when I was ready I slipped into my pocket, to show my hostess, a little locket which held a miniature of my mother. Mrs. Whyte and my mother had been schoolmates,--that was why she was so much kinder to me than I could ever

have deserved on my own account,--and I knew she would like to see the picture. I opened the case to look at it myself (my mother is still living, thank Heaven, and unchangeably young) and I was struck with the youthful modernity of it. Perhaps it was because the old style of dressing the hair had come back that it looked so of the present generation rather than of the past. It had been painted for my father in the days of their courtship, and on his death I had begged for the portrait, though my mother had refused to let me have the old case he carried. I had therefore spent some time and care in selecting a new case and had decided finally on one embellished with emeralds set in the form of a heart. I thought it symbolical of my dear mother's young-heartedness, but I found out afterwards that she especially objected to emeralds! Such are the hazards run by a mere man when he tries to deal with the Greater Mysteries. I have dwelt on this locket because it played an important part in after affairs,--and a very different part from what I designed for it when I slipped it into my pocket to show it to Mrs. Whyte.

It is a good two miles from my lodgings to Mrs. Whyte's, but I was early and I wanted exercise, so I walked. It was within a few minutes of seven when I came to her highly respectable street. As I turned the corner of her block my attention was caught by the sight of a young girl in excited colloquy with the driver of a cab, which stood before the house adjoining Mrs. Whyte's. I think I should have looked for a chance to be of service in any case, but when I saw, as I did at once, that the girl with so gallant a bearing was the same girl who had impulsively emptied her purse among Barney's flowers, and that the driver seemed to be bullying her, I felt that it was very distinctly my affair.

"But I tell you that I *have* no money," she was saying with dramatic emphasis, "and there is nobody at home, and I can't get in, and if you will come to-morrow--"

"Gammon," the man interrupted roughly. (She had not chosen her jehu with discrimination.) "You can't work that game on me--"

"I can give you my watch as a pledge," she said eagerly.

By that time I was near enough to interfere. (I always was lucky. Here I was ready if necessary to go through fire and water--a certain amount of each, at any rate--to get a better knowledge of the frank-hearted girl whose enthusiasm had so touched me in the afternoon, and all that Fate asked was a cabman's fare and a few stern words delivered with an air! Fate is no bargainer worthy the name.)

"It was most awfully good of you to come to the rescue," said the girl, in the direct and gallant manner that I felt was a part of herself. "I was just beginning to wonder what under the sun I *should* do. You see, I--I spent all my money down town, and I took a cab up, thinking I'd get the money here to pay the man, and now I find the house locked up and not a soul at home,--and me on the doorstep like a charity child without a penny!"

"That, was unlucky, certainly," I said. "I am more than glad that I could be of service. But now that the cabman is disposed of, how are you going to get into the house?"

She turned and looked at the house dubiously.

"I--don't--know. Unless I find an open window,--just a teeny one would be big enough. But Gene is very particular about my not being undignified. I think," she added, with a delightfully confidential smile, "that Gene would rather have me be dignified and hungry than undignified and comfortable. Under those circumstances would you advise me to hunt for an open window?"

"It's a delicate point to decide. Who is Gene? That might have some bearing on the question."

She looked surprised at my ignorance.

"Oh, he's my brother,--my twin. He lives in that house. So does Mr. Ellison. He's my guardian. But it surely looks as though nobody were at home!"

"Don't you live there, too?" I demanded in surprise.

"Oh, no. I'm at Miss Elwood's school at Dunstan. I don't mean I am there this minute, because of course I am here; but I'm supposed to be there. I just came down to surprise Gene because it is our birthday--you see we have only one between us--and now I can't get in!" And she threw out her hands dramatically.

(The worst part of trying to reproduce Miss Benbow's language accurately is that it sounds silly in type, but it never sounded silly when she was looking at you with her big, ambiguous eyes, and you were waiting, always in affectionate amusement, for the next absurdity. I sometimes wondered whether that frank air of hers was nature's disguise for a maid's subtlety, or whether her subtle witchery lay really in the fact that she was so transparent that you could see her thoughts breathe.)

"I have always heard that it was wise," I said, with a grandfatherly air, "to save out at least a street-car fare before flinging all one's broad gold pieces to the beggar in the street."

She looked a little startled, then swiftly comprehending. I knew she must have bit her inner lip to keep from smiling, but she spoke sedately.

"A street-car fare wouldn't help me to get into the house, would it? And that's the trouble now. Though of course if I had had a street-car fare I shouldn't have had any trouble with the cabman and you wouldn't have had to come to the rescue, so another time I'll be careful and remember--"

"Heavens, and they say a woman isn't logical!" I cried. "I hadn't thought out the sequence. I'm mighty glad that you were not wise when you flung away your purse since I was going to so profit by it. But now the question is, what are you going to do? I can't go off and leave you, like a charity child on the doorstep without a penny, not to mention a dinner. Haven't you any friends in the neighborhood?"

"Not what you would call *friends*, exactly, though I suppose they wouldn't let me starve if they knew. There's a Mrs. Whyte,--"

"Of course! In that red brick house next door. What luck! I'm going there for dinner."

She glanced at my evening garb and drew down the corners of her lips comically. "She won't like having a charity child thrust upon her when she is having a dinner party."

"Oh, that won't make the slightest difference in the world," I protested eagerly. "Mrs. Whyte is the kindest woman,--and besides, it's your birthday,--"

She looked at me under her lashes. "You're just a man. You don't understand," she said, with large tolerance. "See how I am dressed,--shirt-waist and linen collar! I didn't prepare for a party. Oh, I believe Gene is having a birthday party somewhere,--that's why everybody is away! And me supperless! Isn't it a shame?" She looked at me with tragedy on her face,--and a delicious consciousness of its effectiveness in the corner of her eye.

"Why didn't you come home earlier?" I asked, wondering (though it really wasn't my business) what she had been doing since I saw her leave Barney.

"You mean after I left that perfectly beautiful old soldier? How did you know about him and me, by the way?"

"Oh, I'm a friend of his, too. I happened to be quite near. My name, by the way, is Robert Hilton. I'll be much obliged if you'll remember it."

"Why, of course I'll remember. My name is Jean Benbow, and it is so nearly the same as Gene's because we are twins, but really his name is Eugene, and when he does something to make himself famous I suppose they will call him that. Well, after the soldier, and I wish I had had fifty times as much to give him, though that makes a sum that I simply can't do in my head,--not that it matters, because he didn't get it,--I remembered that I was going to get a birthday present for Gene, but I didn't remember, you see, that I hadn't any money. I don't think money is a nice thing to have on your mind, anyway. So I went to a bookstore and looked at some books and the first thing I knew they were closing up, and I hadn't yet decided. Have you ever noticed how time just *flies* when you are doing something you are interested in, and then if it is lessons or the day before a holiday or anything like that, how it literally *drags*?"

"I have noticed that phenomenon,--and Time is giving an example of flying this very minute. Really, I think you'd better come over to Mrs. Whyte's--"

"Oh, there's Minnie coming back now! She'll let me in," Miss Benbow interrupted me. A bareheaded young woman, from her dress evidently a housemaid, was hurriedly crossing the service court toward the Ellison back door, and without further words Miss Benbow started toward her across the lawn.

"Wave your hand if it is all right. I'll wait," I called after her.

The maid halted when she saw that fleet figure crossing the grass, they conferred a moment, then Miss Benbow waved a decisive hand to me, and they disappeared together in the rear of the house. Something ran through my brain about the ceasing of exquisite music,--I wished I could remember the exact words, because they seemed so to fit the occasion. Miss Benbow certainly had a way of keeping your attention on the *qui vive*.

Even after I had made my bow before Mrs. Whyte and had been presented to the beautiful Miss Thurston, I had intervals of absent-mindedness during which I wondered what Miss Benbow could be doing all alone in that big house. This was all the more complimentary to her memory, because Miss Thurston was a young woman to occupy the whole of any man's attention under ordinary or even moderately extraordinary circumstances. I had to admit that this time Mrs. Whyte had played a masterstroke. And that does not spell overweening conceit on my part, either! It required no special astuteness to read the concealed cryptogram in Mrs. Whyte's plans. I had had experience! So, unless I made a wild guess, had Miss Thurston. There could be no other explanation, consistent with my self-respect, of the cold dignity, the pointed iciness, that marked her manner toward me. She was a stately young woman by nature, but mere stateliness does not lead a young woman to fling out signs of "Keep off the grass" when a young man is introduced. I guessed at once that she had experienced Mrs. Whyte's friendly interest in the same (occasionally embarrassing) way that I had, and that she wished me to understand from the beginning that she was not to be regarded as *particeps criminis* in any schemes which Mrs. Whyte might be entertaining regarding my life, liberty, and happiness. Her intent was so clear that it amused as well as piqued me, and I set myself to being

as good company as my limited gifts made possible. I knew that it was good policy, in such a case, to give Mrs. Whyte no reason for shaking her lovely locks at me afterwards; but partly I exerted myself to do my prettiest because Miss Thurston attracted me to an extraordinary degree. That does not indicate any special susceptibility on my part, either. She was (and is, I am happy to say,) one of the most charming women I have ever met. No, that is not the word. She made no effort to charm. She merely was. She wrapped herself in a veil of aloofness, sweet and cool, and looked out at you with a wistful, absent air that made you long to go into that chill chamber where she dwelt and kiss some warmth and tenderness upon her lips and a flash into her dreamy eye. I'm afraid that, in spite of my disclaimer, you will think me susceptible. Well, you may, then. I admit that I determined, within five minutes after my first bow, that I was not going to lose the advantage of knowing Miss Thurston, or permit her to forget me. (I cemented this determination before the evening was over with an act which had consequences I could never have anticipated.)

I am not going to dwell in detail upon the incidents of that dinner, because I want to get to the extraordinary events that followed it; but there were one or two matters that I must mention, because of the bearing they had on after events.

"I hear," said Mr. Whyte at a pause in the chatter, "that they are talking of nominating Clyde for mayor."

I happened to be looking at Miss Thurston when he spoke, and I saw a sort of *breathless* look come over her, as though every nerve were listening.

"Do you think he would take it?" Mrs. Whyte asked.

"That's the rub, confound the man. I don't understand Clyde. If ever there was a man fitted for public life, it is he. His father was governor, his grandfather was a United States senator, and he has all the qualities and faculties that made them distinguished. Yet here he buries himself in a private office and barricades himself against all public honors and preferment. I don't understand it."

(I did. I had wondered myself, but now I understood.)

"Perhaps he doesn't care for the sort of thing that other men value," said Miss Thurston. I fancied a trace of bitterness under her sweet indifference.

"It isn't that," said Mr. Whyte, frowningly. "He is thoroughly alive. And he doesn't keep out of public matters so long as he can work behind a committee. Everybody knows what he has done for the city without letting his name get into the papers. I think it's a crank notion he's got."

"It probably goes back to some disappointing love affair," said Mrs. Whyte, impressively. "That sort of thing will take the ambition out of a man like--like poison."

"But wouldn't we have heard of it?" asked Miss Thurston, lifting her penciled eyebrows. "We have known Kenneth Clyde all his life, you and I, and there never has been anything talked of--"

"There wouldn't be," interrupted Mrs. Whyte. "He wouldn't talk. But what else, I ask you, could change the reckless, ambitious, arrogant boy that he was,--you know he was, Katherine,--into the abnormally modest man he has become,--"

"I don't think he is abnormally modest," Miss Thurston interrupted in her turn. "He merely doesn't care for newspaper fame,--and who does? He has grown into a finer man than his early promise. If Saintsbury can get him for mayor,--"

"He won't take it," Mr. Whyte said pessimistically. "You'd have to hypnotize him to make him accept."

"Do you believe in hypnotism, Mr. Hilton?" Mrs. Whyte turned to me, evidently fearing that I would feel "out" of this intimate conversation.

"Believe that it can be exercised? Why, yes, I suppose there is no doubt of that. But I don't believe I should care to let anyone experiment on me."

"Fake. That's what it is," said Mr. Whyte. "Superstition."

"Now, Carroll, I know you're terribly wise, but you don't know *everything*," said Mrs. Whyte. "I'm sure I sometimes know what you are thinking--"

"That's telepathy, my angel, not hypnotism. Only you don't. You think you do, but I'll bet I could fool you nine times out of--nineteen!"

"I once saw a girl who was hypnotized, and it was horrible," said Miss Thurston. "She was lying in a show window of a shop, home in Blankville. She had been put to sleep, I learned, by some hypnotist who was exhibiting on the vaudeville stage, and who invited people to come up from the audience. I could just imagine how the pretty, silly, ignorant girl had been dared to go up. Then he was to awaken her publicly on the stage after forty-eight hours, and in the meantime she was exhibited on a cot in the window of a shop as an advertisement. I can't make you understand how unspeakably *horrible* it seemed to me."

"Where do you suppose her soul was?" asked Mrs. Whyte curiously.

"I don't know. But I know that there is something wicked about separating the soul and body. It is a partial murder."

"Bet you she was shamming," said Mr. Whyte, cynically.

"Oh, no, it was real,--terribly real," she cried. I had no opinions on the subject, but I thought Miss Thurston's earnestness very becoming, it brought such a spark into her dark eyes and broke up her rather severe tranquillity by a touch of undeniable feeling. But Mr. Whyte was unmoved.

"My dear Katherine, if there were any secret means by which one person could control the will of another and make him do what the controlling will commanded, the trusts would have bought it up long ago. A knowledge of how to do that would be worth millions,--and the millions would be ready for the man who could teach the trick."

"There are some things that money cannot buy," said Miss Thurston quietly.

"I never happened to run across them," said the cynical Whyte.

"I have happened to run across things enough that money *wouldn't* buy," said Mrs. Whyte, significantly.

But Miss Thurston took up his challenge (which I guessed was flung out for that purpose) with a fervor that transformed her.

"Money cannot buy knowledge," she cried. "To know how to control another's soul may be wicked knowledge,--I believe it is,--but it is knowledge nevertheless, and it is not at the command of your millionaires. Money cannot buy any of the best things in the world. It cannot buy love or loyalty or faith--or knowledge."

"You talk like Ellison," said Whyte, with good-humored contempt. "He goes on about knowledge of hidden forces, and I believe he is ready to believe in every charlatan that comes along and claims to know about the mysteries of nature or how to extract gold from sea-water, or to use the sun's rays to run his automobile."

"I'm glad he cares about something," said Mrs. Whyte, impatiently. "Certainly he doesn't care about anything human. He is a cold-blooded machine."

"Well," said Whyte, judicially, "he has done pretty well by the Benbow children."

"How has he done well by them? Eugene has grown up in his house, to be sure, but he has grown up without much help from his uncle, I can tell you that. And Jean has been poked off at school when she ought to have been coming out in society."

"Miss Benbow is at home this evening," I contributed. "I happened to meet her on my way here. She said she had come down from school to celebrate her birthday with her brother."

"Oh, is that so? Well, I'll warrant her uncle didn't know she was coming, nor will he know that she has been here when she is gone."

"She strikes me as a young lady who would make her presence noticed," I suggested.

"She is a dear child," said Miss Thurston, warmly. "I must look her up tomorrow. I haven't seen much of her, but I know Gene, and I am devoted to him."

Now do you wonder that I liked Miss Thurston? I liked her so much that I renewed my vow that she should not slip off into the outer circle of bowing acquaintanceship; and if she was afraid to be nice to me because she regarded me as in sympathy with Mrs. Whyte's matchmaking schemes, I would clear her mind of that apprehension without delay. I seized the opportunity immediately we were alone together.

"It is more than kind of Mrs. Whyte to give me such a chance to know her friends," I said. We were supposed to be looking at Mr. Whyte's books,-- which were worth seeing. "Just because a man is engaged is no sign that he doesn't enjoy pleasant society."

"Oh!" she breathed.

"Mrs. Whyte doesn't know," I said, looking at her steadily.

She laughed softly, and a color and kindness came into her face that made her deliciously human.

"I see! But there *is* someone--?"

"There certainly is," I said, and drew the little miniature of my mother from my pocket. "Don't let Mrs. Whyte see it." (She would have recognized it!)

"How sweet she is!" she exclaimed. "I don't wonder!"

"The sweetest woman I ever knew," I said, and took the locket back jealously. My jest somewhat irked me now, with those candid eyes looking surprise at me from the picture. "And now will you be friends with me, instead of treating me as though I probably needed a snubbing to keep me on my good behavior?"

"The very best of friends," she cried, and laughed so merrily that Mr. Whyte, from the other side of the room, called out with interest,--

"You young people seem to be having a very good time. What's the joke?"

"Carroll!" Mrs. Whyte checked him in a warning undertone,--at which Miss Thurston and I looked at each other and laughed silently. I have no doubt the poor dear lady thought her plot was brewing beautifully. It was a shame to plot against her, but then it made her happy for the time. And it did most completely break down the icy barrier thrown out by Miss Thurston, so I tried to stifle the protests of my conscience. My judgment came later,-- judgment, sentence, and execution. But I had a very good time that evening.

I had ordered a taxicab at a quarter before ten, so that I might waste no time getting down to the Phoenix building for the appointment with Alfred Barker. As I went down the walk to the street, I glanced at the silent house in the next lot. There was no light in any window. I indulged in a moment's conjecture as to where Miss Benbow could be, but even as the thought went through my mind, I saw a light flare up in the corner room downstairs. Miss Benbow was exploring, then. Or the rest of the family had come home. Certainly I must manage somehow to see her again.

But I confess I completely forgot both Miss Benbow and Miss Thurston as my cab whirled me down to the business part of town. I concentrated my mind on the question of how to deal with the blackmailer, and tried to prepare myself beforehand for his probable lines of attack or defense. At the same time I told myself judicially that the situation might develop in some unexpected way.

It did. Most completely unexpected. I shall have to tell it in detail.

CHAPTER III

THE UNEXPECTED HAPPENS

I went directly to the Phoenix Building, on the second floor of which Barker had his office under cover of the name of the Western Land and Improvement Company. The door was ajar, and the gas was burning inside, so I went in. The room was empty. I tried the door of an inner office, but found it locked, and by the curtained glass of the door I could see that there was no light in that room. I inferred that Barker had been called away, and had left the door open for Clyde.

I closed the door, not wishing to have Barker see me from the hall and turn back, and sat down by the desk under the gaslight to await his return. On the desk were a few circulars of the Western Land and Improvement Company which looked as though they had served the purpose of giving verisimilitude to Mr. Barker's office for a long time. I guessed the same theatrical and decorative mission in the display baskets of apples, sheaves of heavy-headed wheat, and samples of other grains and fruits which adorned the room--though somewhat dustily. I had soon exhausted the visible means of supporting meditation, and my thoughts went back to the evening at the Whytes'. I took my mother's miniature from my pocket, and looked at it with a rueful consciousness that she would most sweetly and conclusively disapprove of the use which I had made of her counterfeit. She would ask if my legal training had so perverted my instinct for simple truth that I could justify sophistries like that!

I had been lecturing myself in her name for some minutes, holding the miniature up before me to give point to the lesson, when I suddenly had that queer feeling--you know it--of being watched. I felt I was not alone. I jumped to my feet and looked about me. The room was quite empty except for the desk, a chair or two besides mine, and the baskets of fruit and grain which stood on a low table by the window. If there was any person on the premises, he must be in the unlighted inner room with the locked door. Instantly it flashed upon me that Barker was probably in there, waiting for Clyde. He had so arranged things that, hidden himself, he could survey the outer room, and when I entered instead of Clyde, he simply lay perdu. In that case, there was no use waiting for his return by way of the hall! I

returned the locket to my pocket, looked ostentatiously at my watch, picked up my cane, and left the room. He would suppose my patience exhausted.

But I did not go down the stairs. Instead I walked to the end of a short diverging hall which commanded a view of the door. If Barker was inside, he would have to come out sometime, unless he took the fire escape, and I could wait as late as he could. I wanted to meet him, also I wanted to see if my queer sensation of being watched had any foundation in fact.

I had waited perhaps fifteen minutes when the rattle of the elevator broke the silence. It stopped at the second floor, and a man came rapidly down the main hall and turned toward the office of the W.L.&I. Co. It was Barker himself! I recognized him perfectly. So my intuitions had been merely a feminine case of nerves! I was not a little disgusted with myself.

I lingered a few moments, (so as to give Barker a chance to see that he had not kept me waiting), then I sauntered slowly in the direction of the office. I was opposite the elevator when I was startled by a shot. For a moment I did not realize that the sound came from Barker's room. When I did, I made a jump toward it, and the elevator man, who had been waiting since Barker got out, came only a step behind me. We pushed the door open,--it yielded at once,--and there, outstretched on the floor, lay Barker. I dropped on my knee beside him and turned him over. He turned astonished and inquiring eyes upon me, and made a slight motion with his hand, but even while I was holding up his head, the consciousness faded from his eyes, his head fell forward, and I knew it was a dead man whom I laid down upon the bare floor of his dingy office. I had never before seen a man die, and the solemnity of the event swept everything else out of my mind for the moment. But soon I began to realize the situation.

"Do you see a weapon anywhere about?" I asked the elevator man, glancing myself about the room.

"No, sir. There ain't none."

"Then he was murdered, and his murderer is in there," I said in a low voice, indicating the inner office by a glance.

The man immediately backed toward the door,--and I didn't blame him. It gives one a curious feeling to think of interfering with someone who has no restraining prejudices against taking the life of people with whom he is displeased. But for the credit of my superior civilization, I could not join the retreat.

"I'm going in," I said, and laid my hand on the doorknob. The door was locked.

"Is there anyone on this floor at this time?" I asked the elevator man. "No, sir."

"Or in the building?"

"The watchman."

"Find him. Or, first, telephone to the police station. Then send the watchman here and then go out on the street and try to find a policeman. Bring in anybody who looks equal to breaking in the door. I'll wait here and see that he doesn't get out--if I can prevent it."

The man seemed glad to go, and I took a position at one side of the inner door with my hand on the back of a stout office chair. An unarmed man does feel at a disadvantage before a gun! The very silence seemed full of menace.

In a few minutes there was a sound of running feet in the hall, and the watchman came in.

"He won't be in there by this time," he said at once. "The fire escape runs by the window!" And with the courage of assured safety he opened the door with a pass key. The room was empty, and the window, open to the fire escape, showed that the watchman's surmise was justified. The escape ran down to an alley that opened in turn upon the street. The murderer could have made his descent and joined the theater crowds on the street without the slightest difficulty. He had had at least ten minutes' clear time before we looked vainly out into the night after him.

We were still at the window when the police arrived,--the officer on the beat, whom the elevator man had soon found, and a sergeant with another man from the station. The sergeant took charge.

"Man dead," he said briefly. "And the murderer gone by the window, eh? Tell me what you know about it."

I told him the facts as I have given them above. He lit the gas in the private office and examined the door between the rooms.

"Easy enough," he said.

The upper half of the door consisted of four panes of glass, behind which hung a flimsy curtain. But the lower right-hand pane was gone, leaving merely an open space before the curtain.

"He sat here watching for him through the curtain,--dark in here, light on the outside,--and then, when he came in, he shot through this opening without unlocking the door, dropped the curtain, and quietly went out by the window. He could be five blocks from here by the time you telephoned, and where he may be now,--well, the devil knows. Here is where he sat waiting."

We all looked with interest at the inner room. A chair had been drawn up in front of the door and beside it was a table with a basket of apples on it. The murderer had been munching apples while waiting for his victim! The peelings and cores had been dropped into an office waste-basket beside the chair. It was a curious detail, gruesome just because it was so commonplace and matter of fact. I shivered as I turned away.

By this time the coroner had arrived. He immediately took possession of the premises. I followed his every movement as he went from one room to the other, for I was by no means easy in my mind as to the revelations that might develop. If Barker had committed any of his profitable secrets to writing, his death would not of necessity clear the slate for Kenneth Clyde! But they did not seem to make any compromising discoveries. The desk in the outer office held nothing whatsoever but the decoy circulars which I had already examined, a dried bottle of ink, and some unused pens and

penholders. The inner office held a cheap wooden table, but the drawer in it was empty. There was nothing on the table but the basket of apples. The coroner then went through Barker's pockets. He laid out on the floor, and then listed in a note-book, these items:

A worn purse, with eighty dollars in bills.

Three dollars and fifteen cents in loose change.

A ring with six keys.

A narrow memorandum book, worn on the edges.

A pocket-knife, handkerchief, and a small comb.

There were no papers. Barring the note-book, there was nothing identifying about the dead man's possessions. I longed to get that into my hands.

"Perhaps this will give some clue as to his associates," I said, boldly picking it up.

But the coroner was not a man to be interfered with. He promptly took it out of my hands, and tied it with the other articles into Barker's handkerchief with a severely official air.

"That will be examined into in due time," he said. "Officer, you can take the body down and then lock the rooms and give me the keys."

I watched while they carried the limp form down to the waiting patrol wagon, and saw the police sergeant place the seal of the law upon the place. I was at least as much interested as the coroner in seeing that no enterprising reporter, for example, should have an opportunity to spring a sensational story involving more reputable people than Barker.

As I turned up the empty street, I looked at my watch. It was half past twelve. Clyde's appointment with Barker had been for ten, and I had heard the town clock strike as I turned into the Phoenix Building. When had he been shot? I could not be sure. I had waited for some time, perhaps an hour, before I had had that curious sensation of being watched and had gone out

into the hall. I *had* been watched! The eyes of the murderer in the darkened room had been fixed upon me under the gaslight, while he waited. What would have happened if I had stayed in the room? Would he have shot his victim just the same? Probably. The locked door between would in any event have given him the minute he needed to gain the fire-escape. He had planned it well. It was all so perfectly simple.

A great criminologist once said that every crime, like the burrowings of an underground animal, leaves marks on the surface by which its course can be traced. Perhaps. But it takes eyes to see. I didn't know whether I most hoped or feared that the course of Barker's murderer would be traced.

CHAPTER IV

CROSSED WIRES

When I awoke the next morning from a short and unrestful interval of sleep, it was with an oppressive sense of something being wrong. Then I remembered. Wrong it was, certainly, but it was not my affair. The only way in which it touched me (so I thought then) was as it affected my client, Clyde. How would he take the news? I imagined his receiving it in one way and another, and I felt that there were embarrassing contingencies connected with the matter. Finally I determined to call him up by my room telephone, if possible, and tell him the news as news. I rang him up, therefore, before going down to my breakfast.

Perhaps "Central" was sleepy or tired, or the wires were crossed at some unknown point on the circuit. I didn't get Clyde and I couldn't attract Central's attention after the first response, though I shook the receiver and

made remarks. Then suddenly, across the silence, out of space and into space, a man's voice spoke with passion:

"But Barker is dead, I tell you! You are free! Now will you marry me?"

And then again the buzzing silence of the "dead" wires!

Talk about the benefits of modern inventions! They don't come without their compensating disadvantages. I hung to that telephone till Central finally woke up and sleepily inquired if I were "waiting."

"Who was on this wire just now?" I demanded.

"Nobody," she said sweetly.

I called for "Information," and laid the case before that encyclopedic sphinx. Someone had been talking across my wire and in the interests of justice and everything else that would appeal to her, I must know who it was. With a rising accent and perfect temper she assured me that she didn't know, that no one knew, that if they knew they wouldn't tell, and that I probably had been dreaming, anyhow. I knew better than that, but I saw that there was no way of getting the information from her. I should have to go to headquarters,--and then probably the girl would not be able to answer. But who was it that knew, before the papers were fairly on the street, that Barker was dead? Who was it that would cry, with passion, "Now will you marry me?" I gave up the attempt to get Clyde, and went down to breakfast.

I had a suite of rooms in a private family hotel where everybody knew everybody else, and as I entered the common breakfast room I was assailed by questions. Never before had I so completely held the center of the stage! I could hardly get a moment myself to read the account in the paper which had set them all to gossiping. It was fairly accurate. The police reporter had his story from headquarters. It was not until I read at the end, "At this writing the police have found no clue," that I realized, by my sense of relief, the anxiety with which I had followed the report.

I wanted to see Clyde, but I thought it best to go to my own office first, and communicate with him from there. Fellows had not arrived when I reached

there,--the first time in years that I had known him to be late. When he came he looked excited, though with his usual stoicism he tried to conceal all evidence of his feelings.

"Well, your friend Barker has met with his come-up-ance," I said at last, knowing he would not speak.

"Yes," he assented, and a nervous smile twitched his lips involuntarily. "But not at the hands of the law. I told you the law couldn't reach him."

"The law will probably reach the man who did it."

Fellows did not speak for a moment. Then he said slowly, "He was killed as justly as though it had been done under the order of the court. Shall I look up these cases for you now, Mr. Hilton?"

"Was Barker married?" I asked abruptly, disregarding his readiness to get to work.

"I don't know." He looked surprised.

"I wish you would find out. Also, if possible, who she is, where she lives, any gossip about her,--everything possible."

"How shall I find out?"

"Oh, I leave that to you," I said confidently. Fellows was not learned in law books, but he was a great fellow for finding out things. I was usually content to accept the results without inquiring too closely how he obtained them.

"All right," he said, shortly. Some minutes later he looked up from his work to remark, with his familiar bitterness, "I suppose, like as not, he has a wife who will be heart-broken over his death, scoundrel as he was, though if he had once been in prison no woman would look at him."

I had been thinking. "I'm not so sure she will be heart-broken, but you might find out about that, with the other things. Now call up Mr. Clyde's office, and find out if he can see me if I come over."

"Mr. Clyde is ready to see you," he reported after a minute.

I went over at once,--the distance was not great. Clyde was alone, and he looked up and nodded when I entered. His manner was pleasant enough, yet I was instantly aware of something of reserve that had not been there at our former interview. "He is sorry he took me into his confidence, now that it has turned out this way," I thought to myself.

"Well, somebody saved us the trouble of paying further attention to Mr. Barker," he said lightly.

"So it seems."

"Did you speak to him at all?"

"No."

"I didn't know but that you might have seen him since--since I spoke to you about him."

"I did see him the other day, but not to speak to him." And I told him of the incident in the Phoenix Building. He listened with close attention.

"I have no doubt he had enemies on all sides," he said with a certain tone of satisfaction. "From what we know of his methods, it is easy to guess that. He has lived an underground life for years, but always keeping on the safe side of the law. His end was bound to come sooner or later."

"Do you know whether he was married?"

"I don't know. How should I?"

"I merely wondered." For some reason I did not care to repeat that puzzling communication I had heard over the phone.

"I know nothing about him. If he has any family, they will probably come forward to claim the body. But I doubt very much that the man who fired the shot will ever be taken."

"What makes you so sure?"

"He planned things carefully. And he is probably supported this minute by a sense of right,--and my sympathies are with him."

He flung up his head with open defiance of my supposed prejudices.

"Don't forget that Barker may have committed some of his valuable secrets to writing," I warned.

He looked startled for a moment, then he threw up his head.

"I don't believe it. He's dead, and a good job done."

It was not my place to croak on such an occasion, but as I walked down the street to my own office, I reflected that the law would not look at a shot from ambush in that light, no matter what the judgment of the Lord might be.

I stopped at Barney's stand for my buttonhole rose,--and at once I knew, by the gleam in his eye, that he had something special to tell me.

"So it's yourself is the celebrity this morning, Mr. Hilton," he said eagerly.

"I? Oh, no. I wasn't killed and didn't kill anybody."

"But ye know a power about the happenin's, I'll be bound."

"Yes, I know as much as anybody does," I said, supposing that he wanted to ask me about some particular.

"It's the hard and revengeful heart he must have, and him so young, to shoot a man that the law has set right," said Barney, craftily.

"What?" I said sharply. "What do you mean, Barney?--if you mean anything!"

"Sure, an' I can't be tellin' ye anything that ye didn't know!"

"Have they found the murderer?" I asked, yet with a nervous dread of his answer.

"Divil a bit. He found himself, and couldn't keep the secret," Barney said, entirely happy in being able to give me this surprising information. "The officer on the beat this morning tould me that the whole departmint fell over itself when the young lad walked into the station with his head up like a play-actin' gossoon, and says, 'I killed him for that he killed me fayther.' The exthra will be out by now."

I heard the boys calling an extra as he spoke, and I waited and beckoned the first one that hove into sight. There, on the glaring front, I read:

"MURDERER CONFESSES
Eugene Benbow gives himself up
to the Police.
Fired the Fatal Shot
to Avenge his Father.

"Barker killed Senator Benbow ten years ago and was acquitted on the plea of self-defense.

"The slayer of Alfred Barker has been found. Driven by the spur of a guilty conscience, he gives himself up to the police. The fatal shot was fired by Eugene Benbow, the son of Senator Josephus Benbow, who was shot and killed by Barker in Saintsbury just ten years ago.

"Senator Benbow, whose home was in Deming, was in attendance on the State Legislature when he fell foul of Barker, who was trying to lobby through a measure which Benbow did not hesitate to call a steal. He was instrumental in defeating Barker's measure, and this led to bitterness and threats on both sides. One day they met on the street, and after some hot words Barker drew his revolver and shot Benbow dead. When brought to trial, he succeeded in convincing the jury that he believed (?) his life to be

in danger from a motion which Benbow made toward his pocket, although it was proved that the senator was, as a matter of fact, unarmed.

"Young Benbow was at that time a lad of ten. The tragedy made a deep impression upon him, and he grew up, dreaming of revenge. Yesterday he heard that Barker was in town, and at once armed himself. Last night he carried his deadly purpose into effect.

"It seems that after shooting Barker in his office in the Phoenix Building, young Benbow returned to the rooms which he occupies in the house of Mr. Howard Ellison, who is his guardian and a distant relative. He spent the night there, and apparently decided then to give himself up, for he appeared at police headquarters at half-past six, in a highly nervous condition, and astonished the sergeant by declaring himself the person who shot Alfred Barker. The special officers who had been detailed to investigate the murder have been recalled."

"The poor little girl!" I said to myself. The vision of Jean Benbow as I had seen her last night, gallant and boyish, rose before me. This would be a terrible morning for her. I do not often make the mistake of rushing in where I know that only angels may safely tread, yet I was filled with a well-nigh irresistible impulse to go and look out for her. That was absurd, of course, since she was with friends,--only I should have liked some assurance that they would understand her! I hardly thought of her brother, though, since he was her twin, he could be nothing but a boy, and certainly presented a touching figure, with his medieval ideas of personal vengeance.

But I was to have ample occasion to think of Eugene. Before the morning was over, Mr. Howard Ellison's card was brought to me. Mr. Ellison, who followed his card, was elderly, rather small and somewhat bent, but alert mentally and active physically. He had the dry, keen, impersonal aspect of a student, and I could see at a glance why Mrs. Whyte thought him cold-blooded. He was given to a sarcastic turn of speech which heightened this impression--and did him an injustice if, as a matter of fact, he was especially tender-hearted.

"You have probably seen the papers this morning, Mr. Hilton."

I bowed.

"I have come to see if you will undertake that young fool's defense. As his guardian, I suppose it devolves on me to see that he is provided with a lawyer."

I am not in criminal practice, and ordinarily I should not have cared for such a retainer, but in this instance I did not hesitate for a moment.

"I shall be very glad to do so."

"That's all right, then. You look after things, and let me know if there is anything I have to know. I am engaged in some important researches, and it is most inconvenient to have interruptions, but of course in such a case I shall have to put up with it."

"Possibly you may even find them interesting," I said, in amaze. He took me up at once.

"Events are not interesting, Mr. Hilton. They are merely happenings,--unrelated and unintelligent. Take this case. Gene dislikes Barker. That is interesting in a measure, although it is rather obvious. But he goes and shoots him, and what is there interesting in that? It is the mere explosive event. Besides, Gene was a fool to go and tell the police about it. That was hardly--gentlemanly."

"I suppose it weighed on his conscience."

"Conscience,--fiddlededee! What is conscience? Merely your idea of what someone else would think about you if he knew. If you are satisfied yourself that your actions are justified, what have you to do with the opinions of other people or the upbraidings of conscience? If it was right to kill Barker, it was sheer foolishness to tell."

"Do you think it is ever right to kill?"

"Young man, your experience of life is limited if you can put that question seriously and sincerely. I studied surgery as a young man and spent three years in a hospital in Vienna. After that I was for two years connected with the English army in India. I have no foolish prejudices left about taking life-when necessary."

"You have belonged to privileged classes," I said, striving to match his nonchalance. "But unfortunately your young cousin does not."

"No, he has been merely a young fool," he said concisely. "But Jean insisted that I should come and see you about it. She is his sister."

"I am honored by Miss Benbow's confidence," I said. I felt a good deal more than I expressed. If I didn't do the best that could be done for her brother, it would be merely because I didn't know how. "Will you tell me something about the young man? He lives with you?"

"Yes. He has the library for his study. Of course he has the run of the house. The only stipulation I ever made was that he should keep out of my way and not distract my mind. This is the consideration which he shows!"

"How long has he lived with you?"

"Why, ever since the family was broken up. Barker shot Senator Benbow, you know, and his wife died soon after. Shock. You know, there is something interesting in the question how a purely mental blow can have effect on the physical plane. Well, Benbow was a cousin, and as my own wife was dead, there seemed to be plenty of room in the house for the boy, so I took him. I supposed he would grow up the way other boys did. I simply told him never to bother me. For the rest he could do as he liked."

"He seems to have followed your teaching. How old is he?"

"Just twenty. It was his birthday yesterday. He was celebrating last night with some of his college mates."

"How? Where, and with whom?"

"At his Fraternity House. They had a supper for him. He is a senior at Vandeventer College."

"I see. You were out for dinner, too, last night, were you not?"

He looked up sharply, surprised, almost suspicious. "How do you know that?"

"I understood that no one was at home."

"Well, you are right, though I don't remember telling you. I had dinner at the club to meet a distinguished professor of psychology who is here. It is a subject in which I am interested."

"May I ask who compose your household?"

"Me, first. Then Gene. Then Mrs. Crosswell, the housekeeper, and Minnie, the houseworker. There's a yardman and a laundress, but they don't live in the house."

"Were both the women away last night?"

"No, Minnie was at home. Mrs. Crosswell has been away for a few days."

"Miss Benbow arrived last night."

"Yes, I believe so. I didn't see her till this morning. She came rushing into my room most inconsiderately with this confounded report in her hand,--the paper, I mean. What possessed Gene to do such a thing--"

"He must have been laboring under some excitement that carried him away--"

"Man, I am not talking about the shooting. That may or may not have been justified. But why he should make all this trouble by going to the police!"

"Do you know if anything happened at his supper to excite him?"

"Yes. His chum, Al Chapman, has been in to see me. It seems that some one spoke of seeing Alfred Barker, and it upset Gene. He came away early."

"What sort of a boy is he? Violent? Revengeful?"

"I can't say that I have noticed. He never bothered me much. I have an idea that he is a pretty hard student,--"

"Has he been working hard?--overstraining himself?"

He grinned. "Brainstorm idea? Well, perhaps you might work it. He has been doing a little extra Latin with a tutor. You might make the most of that."

"Who is his tutor?"

"Mr. Garney. One of the instructors at Vandeventer."

I made a note of Mr. Garney's name, also of Al Chapman's.

"You don't think of anything else that I ought to know,--anything having a bearing on Benbow's actions or his state of mind?"

He hesitated, looked at me and shifted his eyes to the window, and finally pursed up his lips and shook his head. "No."

"Then let us go down to the jail so that I can meet my client."

We went down together to the jail and were admitted to see Eugene Benbow. Certainly he did not look like a murderer as we are apt to picture one. He was a tall, slender youth, with a sensitive face, and in spite of his nervousness he had the best manners I ever saw. He was sitting with his face in his hands when we came in, but he sprang to his feet at once with a self-forgetful courtesy that made him seem like an anxious host rather than a prisoner.

"So good of you to come, Uncle Howard," he murmured. "I--I'm afraid I have disturbed you,--I'm so sorry,--"

"Sorry!" snorted Mr. Ellison. "Much good it does to think of that now. And what you ever expected to have come from your going to the police with that story--Well, there's no use talking. This is Mr. Hilton, Gene. He is a lawyer, and he is going to look after your case, now that you're in for it."

Eugene bowed. "Oh, that's most kind of you. It won't be any trouble? I'm so sorry to put you to any inconvenience--"

"Don't let that disturb you," I said. "Mr. Ellison was kind enough to think I might be of use,--"

"And now I'll leave you to talk things over," said Mr. Ellison, plainly anxious to get away. "When I'm wanted, you know where to call on me, Mr. Hilton." And he hurried away.

"That's what I wanted," I said, cheerfully. I could see that the boy was in so nervous a condition that the first necessity was to steady him. "We want to talk this over together. You know, of course, that anything and everything that you tell me is in professional confidence, and that you should not hesitate to be perfectly frank."

"I have nothing to hide," he said. "If you will tell me what you want to know,--"

"When did the idea of killing Barker come to you?" I asked, watching him closely.

An involuntary shudder ran through him at my words, but he answered at once and with apparent frankness. "I don't know. I don't remember thinking of it at all. Beforehand, I mean."

"When did you think of it?"

"Why, when I woke up. Then I remembered."

"You mean that you went home and went to sleep last night?"

"Yes. Not to bed. I threw myself down on the couch in the library and went to sleep with my clothes on. It was about five when I woke up--and

remembered. Then I had to wait,--" He looked at me with anxious appeal for understanding,--"I *had* to wait until some one would be up at the station,--"

"Tell me what you were doing yesterday. It was your twentieth birthday, Mr. Ellison says."

"Yes. Why, I attended lectures at the U all forenoon. Then after lunch Mr. Garney came over for an hour,--he's tutoring me in Latin. At four I went to the Gym,--guess I was there about an hour. Then I went home and read awhile, until it was time to go to the Frat house for supper. The fellows were giving me a spread because it was my birthday."

"Did anything come up that annoyed you? Was anything said--about Barker, for instance?"

The boy frowned. "Yes. Grig--I mean Jim Gregory--said that he saw Barker in town the other day. The other fellows shut him up. Grig is new here. He didn't know how it would make me feel."

"How *did* it make you feel?"

The boy's slim white hands were gripping the edges of his chair nervously. "Desperate," he said, in a voice to match. "Here I was, singing and laughing and drinking and having a jolly time, and there was my father dead, shot down and unavenged,--oh, it all seemed suddenly horrible to me. I couldn't stay."

"You went away early, then. What time was it?"

"I don't know. I never thought of looking. Does it make any difference?"

"I don't know that it does. Then what did you do? Did you go direct to the Phoenix Building?"

He frowned thoughtfully. "No, I must have gone home first, mustn't I? Yes, of course I went home. My revolver was there. I went into the library and

threw myself down on the couch to think it out,--and then--why, then I must have got my revolver and gone out."

"Was your revolver in the library?"

"Yes. In the table drawer. Uncle Howard gave it to me that morning, in the library, and I just locked it into the drawer."

"By the way, how did you know that Barker's office was in the Phoenix Building?"

"I don't know. I just knew it, somehow."

"What made you think that he would be there at that time of the night? It wouldn't be likely, under ordinary circumstances."

"I don't know. I didn't think. I suppose I just took it for granted." He looked puzzled and anxious, as though he were afraid that he was not answering my questions satisfactorily.

"What did you have to drink at your spread?" I asked, thinking that perhaps there might be some explanation in that direction for his vague recollections.

"Oh, champagne," he said, quickly.

"Did you drink much?"

"Two glasses, I think."

"Are you accustomed to champagne?"

"I've taken it only once or twice before."

"Then I don't wonder that your memory is not quite clear. But tell me what you can of your movements. I want to follow your actions from the time you left the house."

He leaned forward, one elbow resting on the table between us, and fixed his eyes with anxious intentness on a crack in the floor.

"I went down to the Phoenix Building--"

"Did you walk?"

He hesitated a moment. "Yes."

"Go on."

"I went up to Barker's office on the second floor,--"

"How did you know that it was his office? Excuse my interrupting, but I want to follow all the details. Barker's name wasn't on the door."

"I don't remember how I knew. Perhaps I asked somebody."

"Whom?"

"I don't remember that I did ask. But I knew the place. I went in through the outer office to an inner room. There was no one there. I locked the door between the two rooms and waited inside for Barker to come. There was a light in the outer office, but the room I was in was lit only by the light that came in through the glass door between the two rooms. There was a curtain over this glass door, and I pulled it aside to watch. A man came in, sat down and waited awhile, and then went away. Then Barker came. I fired through the door,--one of the little panes of glass was broken, and I fired through that. Then--then I opened the window and climbed down the fire-escape and got out into the street. There were crowds of people going home from the theaters, and I fell in with the crowd."

"And went home?"

"Yes." He drew a sigh, as of relief, and looked up at me.

It is one of the indications that this universe is under divine direction that a lie cannot masquerade successfully for the truth for an extended period. As Eugene talked, it had been coming more and more strongly into my mind

that he was not telling the truth. He was going too cautiously. He seemed to be picking his way among uncertainties with a studious design to present only irrefutable facts to my scrutiny. And yet the accident that had put me on the other side of that closed door should enable me to refute some of his facts, it seemed to me. I felt that I must make sure.

"You say that a man came into the office and waited awhile and then went away. Did you know him?"

"No. He was a stranger."

"Would you know him if you saw him?" He hesitated. "No, I think not. I can't recall his face."

"Or how he was dressed? Business suit, or evening dress?"

"Oh, business suit, I should think."

"You naturally would think so,--unless you knew," I added to myself. Then I asked abruptly, "Are you fond of apples, Mr. Benbow?"

He looked surprised and politely puzzled. "Apples?"

"Yes. Raw apples."

"No, I don't care for them."

"But you eat them?"

"Why, no, I don't, as it happens. I don't like them."

"Now let's go back to Barker's office," I said, thinking hard. "Can you describe the office,--the arrangement of the furniture, for instance?"

He dropped his eyes again to the floor, and frowned intently, as though he were searching his memory. But in a moment he looked up with a whimsical, deprecatory smile. "I'm afraid I can't! I can't seem to remember things connectedly. Do you suppose it was the champagne?"

"That is possible," I said, thoughtful in my turn. It was quite possible that the champagne *was* accountable for his vagueness. Then I remembered another point. "You say that you went home after you climbed down the fire-escape."

"Yes. Not at once, I think. I seem to remember walking the streets."

"When you woke up this morning, where were you?"

"On the couch in the library."

"Dressed?"

"Yes."

"Then you threw yourself down there when you came in and went to sleep, just as you did earlier in the evening, when you came home from the supper?"

"I suppose so."

"When you woke up and remembered what you had done, you wanted to give yourself up at once to the police?"

"Yes, of course. A gentleman would have to do that, wouldn't he?"

"Undoubtedly," I said, with gravity to match his own. "But why didn't you think of doing that last night?"

He looked nonplussed. "I--don't know! I couldn't have been quite myself." Then he looked up earnestly. "But if I remember shooting Barker, that is the main thing, isn't it?"

"I'm afraid so," I said, looking at him steadily. "You *do* remember that?"

"Yes. Distinctly." But he looked absent and thoughtful, as though the memory were not quite as clear as his words would imply.

"By the way, how did you know Barker when he came in?"

A sharp change came over his expression. His young face looked set and stern as that of an avenging angel. "I was by my father's side when Barker shot him," he said quietly.

"I didn't know. I can understand your feeling. But this idea of avenging him,--have you cherished it all these years?"

"No, not in that way," he said thoughtfully. "I think it just came over me of a sudden."

"What did you do with the revolver afterwards?"

"I threw it into an alley as I went by." (It was never found.)

"You spoke to no one of your plan?"

"No."

"And there was no one with you? You were quite alone all the time?"

"I was quite alone."

I talked with him for some time, but there was nothing more definitely bearing upon the problem which was forming in my mind,--and which was a very different problem from the question how to handle the case of a confessed murderer. I went away with this new and puzzling question putting everything else out of my mind,--Was his confession true? Of course on the face of it, the question looked absurd. Men don't go about confessing to crimes they have not committed,--unless there is some powerful reason for their belying themselves. If Eugene Benbow was lying, he had chosen his position well to escape detection. I could see that it would have been hard to defend him in the face of such circumstantial evidence as surrounded him, if he had been arrested on suspicion instead of on his own confession. And yet--I could not get rid of the idea that he was concealing or inventing something which might put a very different light on things. He might not have recognized me as the man who sat waiting in Barker's office, he might even have failed to notice that I was in evening dress, but how explain away the eaten apple? A man very fond of apples might have

eaten one while waiting and given no special thought to the matter, but a man who didn't like apples wouldn't pick one up casually and eat it without taking notice of what he was doing. And those apple parings were quite fresh. That was a small but obstinate fact. I could not forget it. Had someone been with Benbow? Then I remembered his vagueness, his failure to identify me as the strange visitor, and I was inclined to change my question to--Had Benbow been there at all?

And yet what possible motive could he have for making a false confession? The only reasonable explanation would be that he was trying to shield someone. But no one else had as yet been accused. The psychology of that situation was not complete. I must try to understand the boy's nature, before theorizing.

And, first of all, I must verify my facts.

CHAPTER V

BERTILLON METHODS AND SOME OTHERS

The first thing to do, I saw clearly, was to go back to Barker's office and verify my recollections of the place, particularly of the apple peelings. Fortune favored me. The rooms had been locked up the night before by the police, and were therefore undisturbed, and the chief did not hesitate, under the present conditions, to give me the keys.

"Our work is done," he said complacently. "The murderer is found."

I didn't remind him that the force had had precious little to do with putting Eugene Benbow behind bars. I took the keys and went to the place of the tragedy.

I let myself into the office, and locked the door after me, so that I might be undisturbed during my examination. It looked quite as bare and unattractive as I remembered it. Here was the chair and table where I had sat examining my mother's locket when I had received that curious impression of being watched. I examined the glass door between the two rooms and sat down in the chair which had been drawn up near it, in the inner office. It commanded a full view of the outer office; and the curtain which fell over the glass made the fact that one pane was broken unnoticeable. Here the assassin sat and watched me, and here he had sat when Barker entered. I paused a moment to be thankful that the light in the outer office had been good!

Beside the chair, in a waste-basket, was the heap of apple parings I had noticed. It needed only a glance to show me that they had curled and withered and turned dark since I saw them. Then they were freshly cut,--no question about that. The man who had sat there waiting and watching had been munching apples. And Eugene Benbow did not like apples!

I carefully gathered up the parings and spread them out on the table. They showed two colors. Plainly he had sampled different varieties. Then I glanced at the basket of apples which still stood on the table. It was like the three in the other room. I picked up one of the apples--and whistled. Cut sharply into the tough skin was the imprint of teeth! The murderer would seem to have tested this apple by the primitive method of biting it; and he had not liked the flavor. I picked up another. The mark of teeth was on this also, and even plainer. It struck me that the mark showed irregularities that ought to help in identifying the owner. They were evidently crowded teeth, with no space between them, and on both sides the crowding had forced two of the teeth outward in a wedge. If a man could be identified by his finger print, why not by the print of his teeth? Especially when he had teeth so peculiar. I hastily locked the office, postponing further examination of the rooms until I should have had taken measures to preserve the records of the two bitten apples. I had an idea that my dentist could help me there. As I came out into the hall, I saw a man with gray hair and beard--a countryman, I gathered at first glance,--who stood looking at the door of the Western Improvement Company in a dazed kind of way. I passed him, and then hesitated, wondering if I should, in common humanity, speak to him. He

looked bewildered or ill. But he paid no attention to me or my halt, and I walked on, thinking that he was probably merely one of the morbidly curious who are attracted to the scene of any crime. It seemed strange, afterwards, when I realized that I had had the chance offered me of getting into touch with the man who was going to be so important a link in my chain of evidence, and that I had almost lost the chance. But as it turned out, it was as well. But I must tell things in order.

I found Dr. Kenton more than ready to be interested. He was an enthusiast in his profession, and though his dissertations on acclusial contacts and marsupial elevations (I know that's wrong, but it sounds like that)--though these things bored me when I wanted to make a sitting short, I was now glad to draw upon his professional interest.

"I want you to look at the marks of teeth in these apples," I said. "Distinct, aren't they?"

"Beautiful! Beautiful!" he murmured.

"Can you make a wax model like that, so as to hold that record permanently?"

"Certainly. Nothing easier."

"Then I wish you would. Could you, perhaps, make a set of teeth that would fit those marks?"

He examined the apples carefully, and nodded his head. "I can."

"Then I commission you to do that also. Should you say there was anything peculiar about those teeth? Anything identifying?"

"Yes. Certainly. The jaw is uncommonly narrow for an adult--"

"But you are sure it is an adult?" I asked anxiously. The possibility that a child might have been sampling Barker's apples struck me for the first time. But Dr. Kenton reassured me.

"It is an adult, is it not?"

"I don't know who it is. What I want to do is to use this record to identify the man who bit these apples,--let's call him Adam for the present. I am hoping that his inherited taste for the fatal fruit may in time lead to his fall. In other words, Dr. Kenton, I am trying to identify a criminal of whom I have, at present, no information except that I believe him to be the man who put his teeth into these apples. If I find my suspicions focusing upon anyone in particular, I shall call upon you to examine his teeth. You understand, of course, that all this is in professional confidence and in the cause of justice."

Dr. Kenton's eyes lighted up with a glow of triumph. He put out his hand.

"Let me shake hands with you. That is an idea which I have been urging through the dental journals for years. The insurance companies should require dental identification in any case of uncertainty. There is no means of identification so absolutely certain."

"I am glad to have you confirm my impression, Doctor. Now, you will have to take this impression before the fruit withers, and then I want you to come with me to the morgue and get an impression of the teeth of Alfred Barker, the man who was killed last night in the Phoenix Building."

"Did he bite that?" Dr. Kenton asked, with a tone of awe.

"I am sure he did *not*. I want to be able to prove he did not, if that claim should be made." And I explained to him enough of the situation to secure his sympathetic understanding.

"I see. I see. Well, nothing will be easier to establish than whether he did or didn't. Whoever it was that left this record of an important part of his anatomy can be identified."

"If we can first catch him," I said.

"Surely. But it is an uncommon jaw,--narrow and prominent."

"Then I shall want to have you see my client Eugene Benbow. It will not be necessary for you to do anything more than to look at him, will it?"

"That will be enough. I can tell at a glance whether his jaw has this conformation. Or, find out who his dentist is, and I will get the information from him without his knowing it."

"Good. Now when can you go with me to the morgue? The sooner the better."

He made an appointment for later in the day, and I left him.

I hurried back to my office, for there were a number of things I had to see to before going to keep my appointment with Dr. Kenton. While I was yet a block away, I saw a young girl running down the street toward me. It did not occur to me that she was coming for me until she came near enough for me to recognize Jean Benbow. Then I hastened to meet her.

"What is it?" I asked anxiously.

"Come quick," she exclaimed--and even then I noticed that her swift run had not taken her breath away. "There's another one here to look after."

I didn't understand what she meant, but I saw that I was needed somewhere and I broke into a run myself. She guided me to Barney's stand. Behind it, on the ground, lay a man, with a beautiful woman--Katherine Thurston it was--dabbling his head with a wet handkerchief while Barney poured something out of a bottle into a tin dipper. (Barney could be guaranteed to keep some of the joy of life with him under the most desolating of conditions.)

"If you'll give him a sup of this, Mr. Hilton," he said confidentially, as I came up, "'tis all the poor cratur will need. A wooden leg is the divil for kneeling down, and I couldn't be asking a lady like that to handle the shtuff, ye understand."

I took the dipper and knelt down beside the fallen man,--and at once I recognized him as the rustic whom I had seen, looking dazed and bewildered, outside of Barker's office a few hours before. He opened his eyes, looked about vacantly, and made a feeble effort to rise.

"Drink this, and you will feel better," I said. (A sniff had convinced me that Barney's prescription wasn't half bad.) He drank it and coughed.

"He's coming around all right," I said. "What happened? Faint?"

Barney rubbed his chin dubiously. "I'm thinking he had his wits about him all right when he made out to faint jist at the time the ladies was coming by. If it wa'n't for the sinse he showed in that, I'd say he was a bit looney."

"Why?"

"He came down the street like a drunk man, but he wasn't drunk, begging the ladies' pardon, I could see that with me eyes shut. When he came by my bit of a stand he took hould of it with both hands and leaned across to look at me like I was his ould brother. 'He's dead,' he says. 'Who's dead,' says I. 'He's dead,' says he again. 'He's escaped.' And with that he fell to the ground, and if the ladies hadn't come out that minute from yon door, and yourself came running, it's meself that would have had to go down on me wooden knee that don't bend, to lift his head off the stones."

I spoke to the man, trying to learn his name and address. He was not unconscious but he seemed dazed or distrustful, and I could get nothing from him. By this time quite a group of people had gathered about us,--indeed, I wondered that they had not come before, but as a matter of fact the man had fallen only a few seconds before I came upon the scene. (Miss Thurston and Jean had been up to my office, it appeared, and had been coming away at that moment.)

The few words that Barney repeated from the man's dazed remarks before he fell, and the fact that I had seen him in the Phœnix Building of course made me feel that I wanted to keep him under my own surveillance until I could find out what, if anything, he knew of Barker. I therefore hurried a boy off to call a carriage, and when it came I helped the old man in and drove to the St. James Hospital.

"What's the matter with him?" I asked the attending physician--after I had got him installed.

"Hard to tell yet. He fainted on the street, you say? He is obviously exhausted, but what the cause or the outcome may be, I can't tell you yet."

"I want you to let me know the minute he is sufficiently restored to talk. And don't let anyone talk to him until I have seen him."

The doctor raised his eyebrows. I handed him my card.

"There is a possibility that he may know something about the Barker murder," I said.

The doctor looked surprised. "Why, I thought the murderer had confessed. Is there anything further to investigate?"

"We haven't all of the facts yet," I answered. "This man may know something, and again he may not. But don't let him talk to anyone until I have quizzed him. Will you see to that?"

"Oh, all right," he said easily. "The old fellow isn't likely to be quite himself until he has slept the clock around, I judge. I'll telephone you when he is able to see visitors. What makes you think he knows anything about it?"

"Oh, just a guess," I said.

Really, come to look at it, I had very slight foundation for the feeling I had that something was going to come out of the old man's revelations; but that isn't the first or the last time that an unreasoning impulse has been of more value to me than all the learning of the schools.

CHAPTER VI

THE FRAT SUPPER

In the meantime, there were two people I wanted to question,--Al Chapman, the fellow who had told Mr. Ellison about the Frat Supper, and Mr. Garney, his tutor. I found Al Chapman at the Fraternity House, where I had gone to make inquiries for him. He was a serious, studious-looking boy, and he came to meet me with his finger still marking a place in a copy of Cicero's De Senectute.

"I am Mr. Hilton," I explained. "Mr. Ellison has asked me to act as Eugene Benbow's lawyer, and I wanted to ask you some questions about your birthday supper, you know."

He nodded, solemnly. Evidently he felt it a funereal occasion.

"I have no doubt that you can give me some useful information that will help to explain Benbow's actions," I said, as cheerfully as possible. "I wish you would tell me about the supper."

"We didn't think it would end like this!" he said tragically.

"It isn't ended yet. Perhaps you can help me make a good ending. Tell me what happened as far as you remember it."

"Nothing happened out of the ordinary until we were smoking after the banquet was over. Then we got to telling weird stories--and someone told of a mountain feud, you know, and how they carried it on for years and years as long as anybody was left, and Gene said he didn't blame anyone for feeling that way, and we talked back and forth, you know, some saying one thing and some another, and then one of the new fellows, Gregory, sung out to Gene and asked him when he was going to settle things with the man that shot his father. Of course the other fellows tried to squelch him,--they all knew how Gene would feel about that,--and Gene, he got stiff, the way he does when he doesn't want to go to smash, and said he didn't know where the wretch was, and Grig, the fool, says, 'Why, he's here in town. I saw him on Main street the other day, and a man pointed him out as the man that killed Senator Benbow.' Then somebody threw a pillow at Grig, and somebody else gave him a kick, and the fellows all began to talk loud and

fast at once, and things passed off. I saw Gene tried to stick it out, because he didn't want to break up the shindig, but after a little while he slipped out and I knew he had gone. I have wished a thousand times that I had gone with him, but just then I thought he would rather be alone. Besides, I wanted to stay and help finish Grig off."

"Have you any idea how Benbow knew that Barker was in the Phoenix Building? Was that mentioned?"

"No, I didn't notice that it was. But that's on Main street, you know, and Grig said Main street."

"Yes, perhaps. Had Benbow been drinking,--enough to affect him?"

Young Chapman looked somewhat embarrassed. "We don't--usually--"

"But you did on this occasion?"

"Well, it was a birthday, you see,--rather special. And we only had two bottles--"

"Among how many?"

"Twelve of us."

"Well, if Benbow didn't have more than his share, that ought not to have knocked him senseless." I rose. I hadn't learned anything that Eugene had not already told me. Chapman rose, also, but looked anxious and unsatisfied.

"We've been wondering, sir," he broke out desperately. "Will they--I mean, is it--will he--be hung?"

(Isn't that like youth? Jumping to the end of the story, and considering life done at the first halt in the race!)

"If he should be convicted of murder in the first degree, that is the penalty," I said. "But he hasn't been tried yet, much less convicted."

"We didn't think on his birthday that he would go out like that," said Chapman, solemnly. "It's as Cicero says, even a young man cannot be sure on any day that he will live till nightfall."

I glanced at the book in his hand. His classical quotation was obviously new!

"Are you reading De Senectute?" I asked.

"I'm doing it in Latin,--yes, sir. This is an English translation which Mr. Garney lent me today to show me what a poor rendering I had made. This is translated by Andrew Peabody, and he makes it sound like English! Gene was doing it with me. I don't suppose we will ever do any more Latin together."

"Don't be too sure of that. You may both come to know more of Old Age, in Latin, in English, and in life, than you now guess. But I want to ask you another question. Do you know Benbow's associates or friends outside of the University?"

"What sort of associates?" asked Chapman, looking puzzled.

"Any sort,--good, bad or indifferent. Especially the bad and indifferent."

The young fellow looked offended. "Gene doesn't have associates of that kind," he said, indignantly.

"Nothing in his life to hide?"

"No, *sir*. You wouldn't ask that if you knew him."

"I'm glad to hear it," I said absently. Of course I was glad to hear it, but it did not help out the half-theory I was considering that Benbow might somehow have been "in" with Barker's murderer, though not himself the active assailant, and have been forced, by fear or favor, to protect the criminal. But there was no use committing myself to any theory until I had more material to work with.

"Will you come down to my office this afternoon and let me take your deposition about what happened at the birthday supper? I want to get that on record while it is clear in your memory. And will you bring two or three others,--fellows who were there and heard it all? If worst comes to worst, I want to be able to prove that he acted under the immediate impulse of passion aroused by what Gregory said."

"Yes, I see. I'll bring all of them, if you like."

"Bring as many as care to come. Be there by four, if you can," I said. That would give me time for my interview with Dr. Kenton.

I am not going to take time here to recount the details of that interview. Suffice it to say that Dr. Kenton made an examination of Barker's teeth which established clearly that he was not the man who had bit the apples I had found in his inner office. He took a wax impression which would be enough to make this fact indisputable thereafter.

While he was engaged in this task, I took occasion to ask the coroner about the articles which had been found in Barker's pockets. He was now willing to allow me to examine the little collection. In addition to the things which I had noticed in the evening, I now saw that there was a part of a worn timetable, and two empty envelopes with pencil figuring on the back. The small memorandum book which I had noticed before engaged my special attention. A number of the front pages had been torn out. On some of the other pages were pencil figurings which held no significance that I could see. On the last page was what appeared to be a summary. At any rate, I recognized in some of the figures the total of the scribbled sums in addition and subtraction on the inside pages. This list seemed to have some coherence, and as the coroner had doubts about the propriety of letting me have the book, I made a copy of it, as follows:

Deering	97.50
Junius	17.25
Dickinson	52.00
Hawthorne	69.75

Lyndale	35.00
Sweet Valley	217.25
Illington	40.00
Eden Valley	32.00 (+1000)
Dunstan	27.00

I recognized the names as those of towns in the State, but that was not very illuminating. From the time-table, Barker had probably swung around this circle, and the figures might mean the amount he had made at each town. Or they might mean something entirely different. I needed more light before forming even a conjecture on the subject.

As I was about to replace the memorandum book, I made a surprising discovery. Running my finger over the edges of the leaves to see whether any other pages were used, I discovered a folded piece of paper stuck between two of the leaves, which had evidently escaped the casual examination the book had previously received. I unfolded it. It was an uncashed check for \$250, made payable to "bearer" and signed by Howard Ellison! The date was only three days old. All this I saw at a glance. I was about to replace the paper when the coroner, who had been examining the other articles, looked up and saw it. He took it from my hand and examined it in turn.

"That's curious," was his comment. "Ellison is young Benbow's uncle, isn't he?"

"Something of that sort."

"He will be two hundred and fifty dollars ahead, since Barker didn't cash the check, eh?"

"I suppose the check belongs to his estate, in any event."

"If he has one. No one has claimed the body."

"What will become of it, then?"

"Oh, there was money enough in his pockets to pay for his burial. The authorities will see to it in any case."

"By the way, if any relatives should turn up, I'd like to know. Do you know whether Barker was ever married?"

"I have never heard. If he was, his wife will probably let us hear from her. This will be reported in all the papers everywhere."

"True. There ought to be some news in a day or two, if she intends to come forward at all. I'll call your office up later."

When Kenton was through with his piece of work, I took him with me to the jail, and while I talked to Eugene for a few minutes, Dr. Kenton stood by and took observations.

When we were again outside he shook his head.

"He's not the man. I don't need to examine his teeth. The shape of the jaw is sufficient. Whom else do you suspect?"

"No one in particular. But if it wasn't Barker and wasn't Benbow, it was someone else. Who that someone is, I shall endeavor to find out."

But though I spoke firmly, I had to acknowledge to myself that so far I had very little to go on. Doubtless he had many enemies, as Clyde had suggested, but they did not come forward. Neither did his friends, if he had any. He was an isolated man. And yet he held many strings connected with other lives. That check of Ellison's meant something. But Gene had confessed! I felt that my only hope lay in finding out who, in Eugene's circle of acquaintances, would have good reason to wish Barker removed, would be unscrupulous enough to kill him,--and sufficiently influential with Eugene to induce him to take another's crime upon himself.

I gained little from the Frat boys, though I examined them all that afternoon, and had my clerk Fellows, who was a notary, take their formal depositions for future use if necessary. They all testified to the remarks made by Gregory and the disturbing effect which the incident had had upon

Benbow, but when I tried to probe for outside entanglements, influences, or relations, I drew a blank every time. So far as his college mates knew, Gene Benbow was merely an exemplary student, more interested in his books than in athletics, but a "good fellow" for all that. It was evident that his shooting of Barker had filled them not only with surprise but with secret admiration. They hadn't expected it of him.

"I'll go to Mrs. Whyte," I said to myself. "She's a woman and his next door neighbor. More, she is Mrs. Whyte. She will know, if anyone does."

CHAPTER VII

CHIEFLY GOSSIP

I went accordingly to Mrs. Whyte's that very same evening. On the way I stopped at Mr. Ellison's to interview Minnie, the maid. I didn't expect any very important evidence from her, but as she was the only one who could have seen Benbow after he left the banquet, and would know whether or not he was alone, I wanted to hear what she had to say.

She came into the library at Mr. Ellison's summons,--a very pretty girl, but also evidently a very timid girl. At each question I asked, she glanced mutely at Mr. Ellison, as if trying to read his wishes before venturing to answer. I guessed that Mr. Ellison might perhaps be somewhat severe with his servants, and that the timid Minnie would far rather lie than encounter his displeasure.

"This is nothing to frighten you, Miss Doty," I said gently, trying to draw her eyes to me from Mr. Ellison,--and without complete success. "I am not a policeman. I just want to ask a few questions that will help me to understand things myself. You were the only person in the house last night, I believe. Is that so?"

"Yes," she said, drawing a quick breath, and with a darting glance at Mr. Ellison.

"Yes, Gene and I were both dining out," Mr. Ellison put in, "and Mrs. Crosswell, the housekeeper, is away for the week. So Minnie was left in charge of the house."

"You weren't afraid?" I said smilingly, trying to ease her nervous tension. But the obtuse Ellison again took the word from her mouth.

"Why should she be afraid? I told her to lock up the house and let no one in."

"Can you hear the door-bell from your room?" I asked, remembering Jean Benbow's vain efforts to make herself heard at the front door. Minnie had evidently been gossiping in the neighborhood, instead of guarding the house!

"Yes--not always," she stammered, nervously.

"You didn't hear Miss Benbow ring."

"Not at first," she said in a low voice. I guessed she was afraid of a scolding for being out of the house, and shaped my next question so as to spare her an explicit statement.

"It was you who let Miss Benbow in, wasn't it?"

"Yes," she murmured, hardly above a breath. Her eyes fell, and the color came and went in her face.

"Did you leave the house at all after letting her in?"

"No," she said quickly, lifting her eyes. I was sure she spoke the truth that time.

"Then can you tell me when Mr. Benbow came in?"

"No, sir. I--I don't know."

"Could he get in without your knowing?"

"He has a latch-key to the side door,--the library door," said Mr. Ellison.
"He uses the library for his study."

"Then you wouldn't know whether he came in at all last night?" I said to Minnie.

"Oh, yes, he came in," she said quickly.

"How do you know?"

"I--I saw him--go out," she stammered, with sudden confusion.

"When?"

"I--didn't notice."

"But you saw him leave the house?"

"Yes, sir. He came down--he went down the steps from the library, and went off."

"Off to the street, you mean?"

"Yes, sir."

"Did he speak to you?"

"Oh, no, sir. He didn't see me."

"Where were you?"

She hesitated and stammered. "In the dining room." I felt sure that this time she was not telling the truth, but Mr. Ellison unconsciously came to her support.

"There is a bay window in the dining room which overlooks the library entrance," he volunteered.

"Was Mr. Benbow alone?"

"Yes, sir."

"You are sure about that?"

"Oh, yes, he was quite alone," she said positively.

"You didn't see any stranger here during the evening, either with Mr. Benbow or otherwise?"

"No, sir, there wasn't anybody here at all," she said with a definiteness that was convincing.

I let her go at that,--to her evident relief. I had seen the trepidation of perfectly innocent witnesses too often to attach any great weight to her nervousness, but at the same time I had a feeling that she had not been perfectly frank. But probably the fact that she had been out of the house when she was supposed to be in it was enough to give her that atmosphere of something concealed.

"That confirms Mr. Benbow's statement that he came home for his revolver," I said to Ellison, who, I was sure, had listened carefully, though he had made a show of indifference and inattention. "I thought possibly someone might have seen him and talked with him who could throw some light on the matter, but it seems not. How is Miss Benbow?"

"Jean? Oh, she's all right. No business to be here, mixing up in things that concern men, but what can you expect nowadays? Of course she had to come interfering."

"If you think she would care to see me,--"

He shook his head impatiently. "Miss Thurston is with her. They are talking things over for all they are worth."

I rose to depart. Then the thought which had been in the background of my mind all along came forward. After all, I might as well be the one to tell him.

"Mr. Ellison, they found a check signed by you in Barker's pocket. You will probably hear of it, if you didn't already know."

He puckered his eyelids and looked at me narrowly.

"Where did you get that bit of information?"

"I saw the check."

"A check payable to Barker?"

"No, it was made payable to bearer."

"Indeed?" He laughed a little maliciously. "I wonder how Barker got hold of it!"

"Barker had ways of getting money," I said drily. There was no reason why he should take me into his confidence, of course--and, judging from what I knew of Barker, probably there was every reason why he should not,--but his reserve was somewhat tantalizing! It would have been natural for him to mention the fact of his own acquaintance or business dealings with Barker when he first interviewed me,--unless they were of the nature that people don't discuss. Had Barker been levying blackmail on him also? In spite of his inscrutability, I was sure my information had disturbed him, though he was not surprised. Had he been nerving himself for the discovery? I reflected that ease, long continued, makes people soft. Mr. Ellison was probably less fit to meet trouble than Jean.

I went down the street to the next house, where Mr. Whyte and my dear white-haired friend were sitting on the front porch, taking in the pleasant evening air. (It was early in October.) They appeared to have been sitting quiet in the sympathetic silence of the long married, but from the way in which Whyte wrung my hand I could see that the quiet covered a good deal of emotional strain.

"What *can* be done for the poor boy?" was Mrs. Whyte's first question.

"I don't know yet. I am simply gathering the facts at present."

"It's a terrible business," said Mr. Whyte. "Ellison tells me that he has asked you to defend Gene, but I don't see that the boy has left you much legal

ammunition. He confesses the shooting."

"The law will have to take cognizance of the facts attending the shooting,--his youth, the provocation, the circumstances. I don't despair. But I want to know everything possible,--his temperament, his associations, his friends. You can help me here, Mrs. Whyte."

"How? Dear knows I'll be glad to."

"Has he ever talked about avenging his father's death? Has that been on his mind?"

"He never spoke of it. I don't believe it was on his mind. You see, he was only ten years old at the time, and though it must, of course, have been a great shock, he was really nothing but a child, and a child soon forgets. Senator Benbow's death killed his wife, but I don't think Gene realizes that. Mr. Ellison took Eugene to live with him and put Jean into a good boarding-school, and they both have been happy enough. Eugene has grown up just like other boys, except that he has been more alone. I have made a point of having him over here a good deal, just because he was growing up with no women about, over at Mr. Ellison's. Of course his sister has been here a good deal, holidays and so on, but that's different."

"Did he go anywhere else, so far as you know?"

"I know that he did not. He is too shy and reserved to care much for society. He loves to read and dream, and aside from his college mates, I don't believe that he has any friends that you could call intimate. In fact, I can't flatter myself that he really cared to come over here to see me, except when Katherine Thurston was here visiting me."

"He had the good taste then to admire Miss Thurston?"

Mr. Whyte chuckled across the gloom. "He has been her devoted slave for a year past."

"Now, Carroll," Mrs. Whyte began in protest, but before she could give it further expression we were interrupted by an approaching visitor. Clyde

came swinging up the walk with an eager stride.

"Good evening!" he called cheerily, lifting his hat. "What a perfect evening it is! I don't wonder you are all out of doors. Evening, Hilton." His vigorous, even happy, manner, was most alien to our mood. It struck us like laughter at a funeral.

"We were just speaking of poor Gene Benbow," said Mrs. Whyte, with delicate reproof in her voice.

"Oh, yes, of course. He was a friend of yours, wasn't he?" he said, toning his manner down to a different key from that in which he had come.

"Was and is," said Whyte simply.

"Yes, of course," said Clyde, hastily, trying to right himself with the current. "Poor fellow, as you say. He must have brooded over his father's death a great deal to have such a purpose develop in his mind. But Barker richly deserved his fate, for that matter."

"Oh, I'm not wasting any sympathy on Barker," said Mrs. Whyte, and something in her crisp tones told me that Clyde was not wholly *persona grata* with the warm-hearted lady. "It's Gene I'm thinking about."

"Of course. Naturally," he said, quickly. Then, as the pause was beginning to be awkward, he asked tentatively, "I wonder if I might see Miss Thurston."

"She isn't at home," said Mrs. Whyte (and I was sure from her voice that she found a certain satisfaction in denying his request). "She has gone to spend the night with Jean."

"With whom?" he asked sharply.

"With Jean Benbow,--Eugene's sister, you know. She is here at Mr. Ellison's,--came up home last night to celebrate their birthday, poor child."

"This thing has been an awful blow to Katherine," said Mr. Whyte, taking his cigar from his mouth, and dropping his voice. "I didn't know she had it

in her to feel so deeply for a friend's trouble. She is always so self-possessed and calm that I suppose I thought she had no feelings. But, by Jove, she was crushed. I never saw anyone look so overwhelmed with grief. She couldn't have felt it more if she had been Eugene's mother."

"Heavens, Carroll, Katherine isn't as old as *that*!" said Mrs. Whyte impatiently.

"Well, then, his sweetheart!" said Whyte, half-laughing. "I won't say as his sister. His sister was twice as plucky and sensible about it as Katherine was, for that matter. *She* didn't go all to pieces."

"Miss Thurston is very sympathetic," said Clyde, in a tone which did not wholly match his words. He rose and stood for a moment, hesitating, as though he had not yet said what he came to say.

"They have been to see me again to-day about running for mayor on the citizens' ticket," he said at last, half-deprecatingly. "I--I almost think I will let them put my name up." (He glanced at me with a smile as he spoke, knowing that I would understand his new attitude in the matter.) "That is,--unless my friends dissuade me."

"Good enough!" cried Whyte. "Go ahead! We'll work for you to a man."

"I wondered what you and Mrs. Whyte would say about it,--and Miss Thurston," he added, haltingly.

"I can tell you that," said Mrs. Whyte, in her most decisive tones. "Katherine won't care a pin who is mayor of Saintsbury until she knows what is to come to Gene Benbow."

"Yes, of course," said Clyde, uncomfortably. "I'm awfully sorry about all this distress. If there is anything at all that I can do,--"

"Thank you," said Mrs. Whyte, somewhat loftily. "I'll tell Katherine."

And Clyde departed, knowing that in this quarter at least he was not quite forgiven for being alive and free and ambitious while Gene Benbow was

lying in prison. I think that I, though his newest friend, was the one most sympathetic toward him that evening. I could understand how the relief, the new feeling of security, which had followed Barker's death, had made the whole world seem new-made for him. Besides, he had no such feeling of personal friendship for Gene as the rest of the group had.

"I'll tell Katherine all right," said Mrs. Whyte, somewhat maliciously, I thought. "Oh, yes, I'll tell Katherine that he came around to talk about the political situation, this evening of all times."

"Now, Clara," said her husband pacifically. "The nomination is an important matter, and we can't stop living just because Gene Benbow is in trouble."

"He has never liked Gene," said Mrs. Whyte, defensively. "Whenever he finds Gene here with Katherine, or finds that he has taken her out walking, or anything like that, he just stands and glowers."

"Perhaps he is jealous," said Whyte, with a subdued chuckle.

"He has no right to be jealous. If Katherine enjoys Gene's society, she has a perfect right to choose it. Not that there is anything of *that* sort between them! Katherine is not old enough to be Gene's mother, but she is older, and she would never allow anything of that sort to happen. Besides, if she had wanted Kenneth Clyde, she could have had him years ago."

"I wonder why she has never married," said Whyte, blowing smoke rings into the air.

"Too much sense," said Mrs. Whyte crisply. Then, quite obviously recollecting that this was not the view to present to me, she added, significantly, "When Mr. Right comes, it will be a different matter."

"She wouldn't have a word to throw to the rightest Mr. Right in the world just now," said Mr. Whyte. "She is taking Gene's trouble pretty hard. But that little Jean is a wonder! She will be a heart-wrecker all right."

"Now, Carroll, don't put any such ideas into her head. She is a mere child."

"She is Gene's twin," said Mr. Whyte, shrewdly. "If his devotion to Katherine is to be treated respectfully, you can't act as though Jean were just out of the kindergarten. I'll bet she has had a broader experience with love-affairs than Katherine has."

"You don't know anything about it," was Mrs. Whyte's crushing response, and after that the conversation became more general.

I had listened with the greatest interest, not only because of the light which the conversation threw on the character of the boy whom I wished to understand, but because of the vivid interest in Jean Benbow which my brief encounter with her had aroused. She was, as Mrs. Whyte said, merely a child, and even youthful for her years, but a sure instinct told me that she would be past mistress of the game where hearts are trumps. I was soon to prove this surmise correct! Young Garney, Gene's Latin tutor, fell a victim at sight. By chance (if there be chance, which I sometimes doubt,) that affair began in my own office--and ended where none of us would have guessed. I had asked Garney to come to my office, to see if he could tell me anything helpful about Gene, when Jean stumbled in,--or ricocheted in, rather. Jean never did anything that suggested stumbling. But that interview was too important to be dismissed in a few words. I shall have to tell it in detail, later on. But before I come to that, there was a strange event which I must record. It befell that same evening, after I left the Whytes.

CHAPTER VIII

SOME OF JEAN'S WAYS

I have noticed that ideas usually come to me at the moment of awaking. The next morning I came back to a consciousness of Gene Benbow's affairs with

a perplexity which was momentarily illuminated by the thought, "Why don't I look up Barker's home? He must have been staying somewhere, and the people there may know something about him."

Why hadn't I thought of that before? However, yesterday had been a pretty busy day as it was. I turned at once to the city directory, and then to the telephone directory. There was no indication in either that such a person as Alfred Barker lived in Saintsbury. The Western Land and Improvement Co. appeared in the telephone directory, but that of course was no help. I called up the police department and asked if they could tell me where Barker had lived. Yes, they had investigated,--26 Angus Avenue, was the number.

"And, by the way," my informant added, "Barker's body has been claimed."

"By whom?" I demanded.

"Collier, the undertaker. He says that a woman came to his place last night and gave him directions and money, but would not give her name. She was veiled, and he knows nothing about her, except that she paid him to see that the body was decently interred."

"That's all you know?"

"That's all anybody knows."

"Collier is in charge, then?"

"Yes."

That was interesting, so far as it went. Was the woman who had provided for Barker's burial merely some benevolent stranger who had been emotionally stirred by the newspaper accounts, (that sort of thing happens more frequently than you would believe,) or was there some closer bond? The answer seemed as hidden as everything else connected with this strange affair.

On my way to my office, I hunted up 26 Angus Avenue. It was such a place as I might have expected,--a shabby house in a row, on a semi-obscure

street. My ring was answered by a young woman of about twenty,--an unkempt, heavy-eyed young woman, who didn't look happy. She listened unresponsively while I preferred my request for some information about Mr. Barker, and left me standing in the hall while she returned to some dark back room. I heard her say, "Ma! Here's another wants to know things." And presently Ma appeared, hot from the kitchen, and somewhat fretted.

"I can't be answering questions all day," she said, at me rather than to me. "There was a string of people here all day yesterday, taking my time. Just because Mr. Barker roomed here is no reason why I should know all about him."

"You probably know more than any of the rest of us," I said, deferentially. "Had Mr. Barker been long with you?"

"Long enough, but that don't mean that I know much about him. He was here awhile in the summer two years ago, and when he was in town afterwards he would come here to see if I could give him a room. But he never stayed long at a time. I think he was some kind of a traveling man,--here to-day and gone to-morrow. He has been here now for the last six weeks, but he never had any visitors or received any letters and I don't know the names and addresses of any of his relatives,--and that's what I told the police and all the rest of them!" She finished breathless but still defiant.

"That seems to cover the ground pretty thoroughly," I laughed. "But I shall have to ask another question on my own account. Was he married?"

"No!" said the girl positively. I had not noticed that she had returned. She was standing in the doorway behind me.

"Not that we know," said the mother, more guardedly, and with an anxious look at her daughter.

"Did he leave any effects here?"

"You can see the room, like all the rest," she said, with grim impartiality.

"I'd like to."

She led the way up a narrow stairway from the front hall to a rear room on the second floor. She opened the door with a key which she took from her pocket, and stepped inside.

"Land sakes!" she exclaimed.

The reason was clear. The room was all upset. The contents of a trunk, which stood in one corner, were scattered upon the floor, the drawers of the bureau were open, and a writing desk near the window had evidently been thoroughly searched. Every drawer was open, and papers were scattered upon the floor.

"Land sakes!" she repeated. "Gertie, come here."

Gertie came, and swept the room with the unsurprised and comprehending eye of the practical young woman of to-day.

"Someone got in through the window," she said briefly. "You know that clasp doesn't catch, Anybody could get in. Well, I hope they are satisfied now!" From her tone I understood that she hoped just the opposite.

"We might all have been murdered in our beds!" exclaimed the mother.

"Oh, it wasn't us they were after," said Gertie carelessly. "It was him! I tell you,--" She stopped suddenly and bit her lip.

"But who could ever have known that the catch didn't work?" demanded the mother in a baffled manner.

"To whom did you show the room yesterday?" I asked. "Anyone who had an opportunity to examine the room inside could have made plans for returning at night."

"Well, first it was the police, and they told me not to let anyone touch anything,--though I knew that myself. Then there were people all day long,--curiosity seekers, I call them. There was one little old gentleman that came up first,--I say old, but he was as spry as any of them. Something like a bird in the way he turned his head."

It suggested Mr. Ellison exactly! "With spectacles?" I asked.

"Yes. Gold-brimmed. Gray hair that curled up at the ends."

"Anyone else you remember? Was there a tall young man, fresh-shaven, with rather a blue-black tint where the beard had been taken off?"

"There was!" cried Gertie. "I saw that! He came last night, about seven."

"Well, I didn't let him go up," said the mother. "I was tired bothering with them."

"But you told him which room Mr. Barker had," said Gertie.

"Who was he?"

"I don't know. I saw such a looking man with Mr. Barker the other day, and I just asked out of curiosity."

"I will have to report this to the police," said the woman wearily. "No end of trouble. If you please, sir, I'll lock the door now."

"One moment!" I had been standing beside the writing desk, and my eye had caught a few words written on a sheet of letter paper,--the beginning of an unfinished letter. "Is this Mr. Barker's writing, do you know?"

The letter read:

"MY DEAR WIFE:--So I have found my little runaway! Did she think that she could hide away from her hubby? Don't fool yourself, little one!"

Gertie had snatched the paper from my hand and read it with startled eyes. "I don't believe it," she said, violently. "That--is not his writing!" She flung the paper down, and left the room.

"What is it?" asked her mother, fretfully.

"An unfinished letter to his wife,--if it is his."

"We never knew much about him," she said, looking troubled. I could easily guess a part of the story that troubled her.

I had no excuse for further lingering, so I left Mrs. Barrows (she asked my name and gave me her own at parting) and went down to my office. Fellows was waiting for me, and it struck me at once that his manner was weighted with unusual significance.

"Well?" I asked. He always waited, like a dog, for a sign.

"Barker was married," he said. "He married a Mary Doherty up in Claremont four years ago, when he was forty. She was twenty."

"Is that all you have found out?"

"All so far."

"That's good, so far as it goes, but I can add to it. She ran away from him, is probably now in Saintsbury, and the chances are that it was she who empowered Collier the undertaker to arrange for his burial. Advertise in the papers for Mary Doherty, and say that she will learn of something to her advantage by communicating with me. I'll make it to her advantage! Keep the advertisement going until I tell you to stop. That's all."

Fellows went off and I knew the matter would be attended to faithfully and with intelligence. But several times during the day I noticed that he was unlike himself. He was absent-minded and he looked unmistakably worried. It frets me to have people about me who are obviously burdened with secret sorrows they will ne'er impart, and I finally spoke.

"What in thunder is the matter with you today, Fellows? What's on your mind?"

"Nothing," he said quickly. But after a minute or so he looked up with that same disturbed air. "Who would have thought that he had a wife?"

"That's not especially astonishing."

"I never thought that there could be a woman--a woman who could care for him, I mean."

"She probably didn't. She ran away."

"Still it must have been a terrible shock. And if she cared about burying him,--"

"You're too tender-hearted, Fellows," I said. But I confess that I liked his betrayal of sympathy. He was too unemotional as a rule.

Well, that brings me down to my interview with Garney, which took place that afternoon.

Mr. Garney was one of the regular faculty at Vandeventer College, and to meet his convenience I asked him to fix the time and place for the interview which I desired. He said he would come to my office at four, and he kept his appointment promptly. I had told Jean Benbow that if she could come to my office at half past four, I would take her down to see her brother. She came fifteen minutes ahead of time,--and that's how she came into the story. Into that part of the story, I mean. But I had all that Garney could probably tell me before she came in and disconcerted him. I think my first question surprised him.

"Mr. Garney, do you know anything to Eugene Benbow's discredit?"

He looked at me with an intentness that I found was habitual with him, as though he weighed my words before he answered them.

"You don't mean trivial faults?"

"No. I mean anything serious."

He shook his head. "No. He is an exceptionally fine fellow in every way. High-spirited and honorable. I suppose his sensitiveness to his family honor, as he conceives it, may be called a fault, since it has unbalanced him to the extent of leading him into a crime."

"You know of no absorbing entanglement, either with man or woman?"

"No," he said, evidently puzzled by my question.

"Have you ever heard him express vengeance toward Barker?"

"Oh, yes," he said, decidedly. "I know that he has brooded over that. He does not talk of it in general, I believe, but he has been a special pupil of mine, and he has taken me somewhat into his confidence. That Barker should have escaped all punishment for the slaying of his father has worn upon him. He spoke of it only once, but then he expressed himself in such a way that I knew he had been carrying it in his mind a long time."

"Then you believe that he really shot Barker?"

He stared at me, amazed. "Of course."

"You think of nothing that would prompt him to assert his guilt, if, in point of fact, he should not be guilty?"

I never saw a man look more astonished. "If you really mean that, I can only say that I can think of nothing short of insanity which would make him say he shot Barker if he didn't. Why, he has confessed. Do you mean to say that you think the confession false? And if so, why?"

"I am not thinking yet. I am merely gathering facts of all sorts. When I get them all together, I expect to discover the truth, whatever it may be."

"I supposed his confession was conclusive. But I suppose you lawyers get to looking at everything with suspicion. Have you anything to support your extraordinary hypothesis beyond your natural desire to clear your client?"

I had no intention of taking him extensively into my confidence, but I was saved the necessity of answering at all by the opening of my office door. Jean Benbow put her head in, with a shy, childlike dignity.

"Am I too early?" she whispered. "I couldn't wait."

"Come in," I smiled.

She came in, glanced carelessly at my visitor, and walked over to my window. She was dressed in an autumnal brown, with a trim little hat that somehow made her look more mature and less childish than she had seemed before, though still more like a frank brown-faced boy than a young lady. I saw that Carney's eyes followed her to the window with a look of startled attention.

"I think that is all I wanted to ask you at this time," I said, meaning to imply that the interview was ended.

"Yes," he said, irrelevantly, without taking his eyes from Jean.

I rose. "I may come to you again, Mr. Garney,--"

At the name, Jean turned swiftly and came to us.

"Oh, are you Mr. Garney?" she asked eagerly, putting out her hand. "I'm so glad to meet you. Gene has told me about you. I'm Gene's twin sister, Jean."

He looked like a man in a dream, and I could see that his voice had caught in his throat. He took her hand and held it, looking down at her.

"I didn't know that Gene had a sister," he said at last.

"If that isn't like a boy!" she said with quick indignation. "At any rate, he has told me about you!"

"Nothing bad, I hope?" He smiled faintly, but I felt that he was almost breathlessly waiting for her reassurance.

"Mercy, no! He thinks you know an awful lot." Then she drew back a step, threw up her head to look him steadily in the eye, and said clearly, "Mr. Garney, I think Gene did exactly right. And I am proud of him."

I saw that she meant to permit no misunderstanding as to her position but I doubted whether Garney cared a rap what she might think. It wasn't her opinions that he cared about. It was herself. I admit that it annoyed me. I wanted to get her out of his sight.

"It is time for us to go, Miss Benbow," I said abruptly.

"You are going down to the jail?" asked Garney quickly. I saw that it was on the tip of his tongue to propose going with us.

"Yes, we are going," I said, looking at him steadily. "You, I believe, are going back to your classroom."

An angry look came over his face as he caught my meaning. I saw that he would not forget it, but I didn't care. Was I to stand by and say nothing while he tumbled his wits at her feet? It was absurd. She wasn't old enough to understand and defend herself. We parted definitely at the street door, and I walked Jean so fast down the block that I was ashamed when I suddenly realized what I was doing.

"I beg your pardon," I said, slowing up.

She had kept up manfully, though breathlessly. "Oh, I like to walk fast," she said staunchly.

"Did you see your brother yesterday?"

"Yes. But only for a minute. And there was a horrid man who kept hanging around in a most ill-bred manner, so that I really couldn't talk to Gene comfortably. I believe he did it on purpose!"

"It is quite possible," I admitted.

She looked at me sideways under her long lashes. "Your voice sounds as though you were laughing at me inside."

"Let me laugh with you, instead," I said hastily. "The man was there on purpose. Prisoners are not allowed to see visitors alone, speaking generally."

She was thoughtful for a few moments. "Then how are we going to arrange to get him out?"

"I thought you were going to leave that to me."

"Not *leave* it to you," she said gently. "Of course I am glad to have you help, because there are lots of times when a man is very useful. But Gene is *my* brother, you know."

"Yes, of course," I said, trying to catch her thought.

"So of course I am going to be in it. All the time."

"In what, child?"

"In the plans for his escape." She set her face into lines of determination which I saw was intended to overwhelm any vain opposition that I might raise to her plan.

"A lawyer doesn't usually take that method of getting a man out of prison," I said apologetically. "I hadn't thought of it."

"But isn't it the best way?" she said urgently. "Of course I don't know as much about the law as you do,--of *course* not,--but doesn't the law just *have* to do something to a man when he shoots another man,--even if he is perfectly right to do it?"

It was an appalling question. I could not answer. She did not need anything more than my face, apparently, for she went on quickly.

"So that's why I thought it would be quicker and better, and would settle things once for all and be done with it," she explained. "Now, there are lots of ways we can help him to escape. You know we are twins."

"Yes. What of that?"

She hesitated a moment. "Isn't there any way I could get into Gene's room for a minute without having that horrid man watching?"

"Perhaps. What then?"

"We could change clothes. I'd wear a rain coat that came down to the ground and a wide hat with a heavy veil, and extra high heels on my shoes. And you'd be there to distract the attention of the horrid man,--*that* would

be your part, and it's a very difficult and important part, too. Then Gene would just walk down the corridor,--I'd have to remind him to take little steps and not to hurry too much,--and then after awhile they would come and look into the cell to see if he was all safe and they'd see me. And I'd just say 'Good day' politely, and walk off." She looked at me eagerly, waiting for my criticism.

I looked as sympathetic as possible. "It's a very pretty plan, Miss Jean, but your brother is quite a bit taller than you are, isn't he? I'm afraid that might be noticed."

She looked crestfallen, but only for a moment. "Then I don't see but what we shall have to get him out through the window," she said.

"I have read of such things," I granted her.

"Oh, yes, I have read quantities of stories where prisoners were helped to escape," she said eagerly. "It always can be done,--one way if not another. Last night I was trying to think it out, and I had six plans all thought out. What's the use of being twins, if it doesn't count for something?"

"I am sure it counts for a great deal, Miss Jean, even if--"

"But I *shall* be able to," she cried, cutting across my unspoken words. "I must. Of course when I am talking to Gene I am as cheerful as possible, and I don't let him see that I--I'm a *bit* afraid, but truly, you know, I--I--I don't like it." Her lips were quivering.

"Dear child! Now, listen to me. We'll make an agreement. Let me have the first shot in this business. If we can get him out through the front door, with everybody cheering and shaking his hands, that will be better than an escape through the window, and living in hiding and in fear the rest of his life, won't it? But if that doesn't work,--if I see surely that the only way to save him from the vengeance of the law is to steal him away,--then I am with you, to the bitter end. I'll meet you with disguise, rope ladder, anything you can think of. But let me have my chance first, in my own way. Agreed?"

She stopped in the street to put out her hand and shake mine firmly. Her eyes were as bright and steady as pilot lights.

"I think you are perfectly splendid," she said with conviction. I have forgotten some important things in my life and I expect to forget a good many more, but I shall never forget the thrill that came to me with that absurd, girlish endorsement! I think it was the way she said it that made it seem so much like a gold medal pinned upon my breast.

"I shall arrange for you to have a quiet talk with your brother, and then I'll leave you for a while. You will probably be watched, but I think you can speak without being overheard. I want you to remember carefully what your brother says."

"And tell you?" she asked doubtfully, leaping ahead of my words, as I found she had a way of doing.

"If he asks you to send a message to anyone, or asks about anyone in particular, I want to know it. Your brother is keeping something from me, Miss Jean, and I must find out what it is, in order to do him justice. I think there is someone else involved in this affair, and that he is keeping silence to his own hurt. Just remember that this is what I must find out about, somehow, and if he says anything--*anything*--that would show who is in his mind, that you must tell me."

"I understand," she said, wide-eyed. "But whom could he care for so much as that?"

"You can't help me by a guess?"

"No. I'm afraid not. Gene writes beautiful letters when he wants to, but not like girls' letters, you know. Not about every little thing."

We found Gene, as I had found him before, the polite, nice-mannered boy, evidently trying somewhat anxiously to deport himself as a gentleman should under unrehearsed conditions.

"I have brought your sister for a little visit," I said. "I am coming for her after a little. I have arranged that you shall not be disturbed, so you may talk to her freely and without hesitation."

"Oh, thank you! I hope I am not putting you to any trouble. I'm so sorry, Jean, that you should have to come here to see me. It isn't at all the right place for a girl." He looked as apologetic and disturbed as though he had brought her there inadvertently.

I left them together for half an hour and then went back for Jean. Eugene detained me for a moment after Jean had said her last cooing goodbye.

"I wish you would tell her not to come here," he said anxiously. "It won't look well. I can stand it alone all right. Honest, I can."

I couldn't help liking the boy, though his anxiety to save his sister from unpleasant comment was somewhat inconsistent with his action in bringing this greater anxiety to her.

"I don't believe I could keep her away," I said. "You will have to stand that as a part--of it all."

He flushed in instant comprehension. I should have been ashamed of prodding him, if I hadn't felt that it was necessary to make him as uncomfortable as possible in order to get him out of his heroics and make him confess more ingenuously than he had done up to this time.

I joined Jean, and walked to the car with her. "Well?" I asked.

"He didn't say anything," she answered gravely. "Of course I told him that I thought he had done exactly right, and that I was proud of him, and that you were going to take care of all the law business and make it all right, and he wasn't to worry and I would come and see him. Of *course* I am not going back to school."

"You will live with your uncle, Mr. Ellison?"

"Yes."

"I'm afraid it will be a lonely and trying time for you. I wish I might do something to make things easier for you. Will you let me know if there ever is anything I can do?"

"You can come and tell me how things are going," she said wistfully. "I don't understand about law, you know, and--it's lonesome waiting. If I could *do* something,--"

"You promised to leave that to me, you know," I said, anxious to keep her from forgetting what an important person I was in this affair!

She did not answer for a moment, and then she looked up with a brave assumption of cheer.

"I'd be ashamed to get blue when Gene is so plucky. He doesn't think about himself at all. He is only worried to death for fear Miss Thurston should be disturbed."

"Is he great friends with Miss Thurston?"

"Oh, yes, indeed. He asked about her first of all, and over and over again. He wanted me to be sure and go and see her at once, and tell her that he is all right."

"Shall I put you on the car here, then? I am going down to St. James' Hospital to see our man."

"Oh, mayn't I go with you?" she cried eagerly. "You know I have a share in him, too."

"Of course you have,--a very large share. Yes, come on. We'll see what he has to say for himself."

As it turned out, he had more to say for us than for himself.

CHAPTER IX

A GLEAM OF LIGHT

The white-capped attendant at the hospital led us up a flight of broad, easy steps, to a large sunny room where convalescents were allowed to try their new strength. Here "our man" was sitting in a large arm-chair, wrapped in a blanket.

"He simply wouldn't stay in bed," the nurse explained in an undertone. "He says he must go home, but he really isn't strong enough to walk across the room without help."

"Is there anything the matter with him? Beyond exhaustion, I mean," I asked. Jean had run across the room and was bending over the old man with a coaxing concern in her face that was charming. She was like an elfin sprite trying to express sympathy for some poor, huddled-up toad.

"That's enough," said the nurse crisply. "No, there doesn't seem to be anything else wrong. But it will take a week at least before he is able to take care of himself. His mind will grow stronger as he does." "Isn't his mind right?"

"You can talk to him," she said, non-committally. "Don't tire him." And with that she left us.

Jean came running back to meet me and put me properly into touch with things.

"He isn't happy," she explained hastily. "You must be cheerful, and not bother him.--Here is Mr. Hilton who has come to see you, Mr. Jordan. Now you can have a nice little talk with *him*." Her tone indicated that this was indeed a privilege which might make up for many slings from unkind fortune.

Mr. Jordan made an impatient gesture as though he would throw off the blanket which was binding his arms.

"What am I doing here?" he asked querulously. "I want to get away. How did I get here?"

"You fainted away on the street, Mr. Jordan," I answered. "We brought you here to have you taken care of. Of course you may go as soon as you are able to. Do you want to go home? Wouldn't it be best for some member of your family or some friend to come for you?"



"He was Diavolo's partner," he said vehemently. PAGE 137.

[He was Diavolo's partner," he said vehemently. Page 137.>](#)

He let his chin sink upon his breast, and closed his eyes. Jean telegraphed me a look of comment, interpretation and exhortation. I half guessed what she meant, but I was too keen on my own trail to consider making things easy for the old man.

"I believe you came to Saintsbury to look up Alfred Barker," I said, quietly.

He did not answer or open his eyes, but I felt that his silence was now alert instead of dormant, and presently a slow shiver ran over his frame.

"It was a shock to you to find that he was dead, was it not?"

He roused himself to look at me. "I can't get at Diavolo except through him. He was Diavolo's partner," he said vehemently.

"I am quite ready to believe that," I said heartily. But Jean had the good sense not to be frivolous. She was smoothing the old man's hand softly.

"Who is Diavolo?" she asked simply.

"If I knew! He was careful enough not to give his name." He was trembling with excitement and his voice broke in his throat.

I began to see that this was a story which I must get, and also that I should have to get it piecemeal from his distracted mind.

"Where did you meet Diavolo?" I asked.

"Why, at Eden Valley."

The name struck an echo in my brain. Of what was Eden Valley reminiscent?

"What was he doing there?" I asked, questioning at hazard.

The old man clutched the arms of his chair with his hands and leaned forward to look into my face. "You never heard of him?"

"Not a word."

He nodded heavily and sank back in his chair. "He gave a show," he said dully. "In the Opery House. To show off how he could hypnotize people." A slow tear gathered in his eye.

I began to get a coherent idea. "Oh, Diavolo was the name assumed for show purposes by a man who went around giving exhibitions of hypnotism. Is that it?"

"Yes."

"What did Alfred Barker have to do with it?"

"He was with him. He was the man that engaged the Opery House and done the rest of the business. Diavolo kep' in the background. Nobody knows who Diavolo was, but Alfred Barker left a trail I could follow." Excitement had made his voice almost strong, and brought back a momentary energy.

"What did you want to follow him for?"

His face worked with passion. "To get back my thousand!" he cried, clenching his trembling hands.

"How did he get your thousand?"

"He got it from the bank, on a check he made me sign while I was hypnotized!"

Suddenly I remembered,--Eden Valley, 32.00 plus 1000. That was a part of the memoranda in Barker's note-book. A memorandum of the profits of their trip! But I must understand it better.

"Did you let Diavolo hypnotize you?" I asked.

"I didn't think he could," the old farmer admitted, hanging his head. "I thought my will was too strong for him to get control of me. He called for people to come up from the audience and I laughed with the rest to see him make fools of the boys,--making them eat tallow candles for bananas, and

scream when he threw a cord at them and said it was a snake, and things like that. But I was mighty proud of my strong will, and the boys dared me to go up and let him have a try at me, so I went."

"And did he make you sign a check?" I asked, incredulously.

"Not then. That was too public. He knew his business too well for that. But he got control of me." There was something pitiable in the man's trembling admission. "He hypnotized me before I knew it, and when I came to, I was standing on a chair in the middle of the stage, trying to pull my pants up to my knees, because he had told me that I was an old maid, and there was a mouse on the floor, and the boys out in front were rolling over with laughter."

"That was very unkind," said Jean, indignantly.

"I was ashamed and I was mad," the old man continued, "and I knew the boys would make everlasting fun of me, so next day I went up to see him at the hotel. I thought if I could talk to him, man to man, and without the fancy fixings of the stage, I could maybe find out how it was did. He was pleasant and smiling and talked easy, and then I don't remember one thing after that. Just a smoke in my mind. I suppose he hypnotized me without my knowing it."

"That is possible, I suppose, since he had had control of your will before. What next?"

"The next thing I knew, I was walking up the road home, feeling queer and dizzy in my head. I couldn't remember how I got out of the hotel, nor nothing. And I didn't know what had really happened until I went to the bank to draw some money a month afterwards, and they told me I had checked it all away."

"Is that possible?" I asked doubtfully.

"Easy enough," he said bitterly. "I could see it clear enough afterwards. If he could make me believe I was an old maid afraid of a mouse, couldn't he just as easy make me think I owed him a thousand dollars and was making a

check to pay it? I had my check book in my pocket when I went there, and it showed my balance, of course, so it was easy enough for them to find out how much they could ask for and not get turned down by the bank. The last check was torn out but the stub not filled in. And the bank showed me the canceled check all right."

"Payable to whom?"

"To Alfred Barker. But he was only the hired man, I could see that. Diavolo was the real one. Barker came and went when *he* lifted his finger. But Alfred Barker's name was on the check, so *his* name wouldn't show. I had time to think it all out afterwards."

It was an amazing story, but I could not pronounce it incredible, especially when I recalled that significant "plus" of \$1000 at Eden Valley, in Barker's memorandum book.

"What did you do about it? Anything?"

"I tried to follow them. Diavolo showed in other places, and I thought I could find them. I see there wasn't no use going to law about it, because I couldn't deny that I had signed the check, and I understand it ain't against the law to hypnotize a man. But if I could find them, I bet I could get some satisfaction out of Barker's hide, if I could catch him alone. I wasn't going to take any more chances with Diavolo." He shuddered.

"You never caught up with them?"

"No. They had always just gone on. Then they stopped the show business and I lost track of them, till I heard that Barker was in Saintsbury. I came as fast as I could, but--I was too late." His head fell forward on his breast, and he looked ready to collapse. His loss, the long pursuit, the disheartening ending, had broken him.

Jean looked at me anxiously, and I understood, but it seemed to be too important to get all the information possible from the old man at once to give more than the barest consideration to his feelings. I poured a little

whiskey into the cup of my pocket flask, and after he had choked it down he looked more equal to further cross-examination.

"Did you ever hear Barker address Diavolo by name?" I asked.

"No. I tell you he was the hired man."

"What did Diavolo look like?"

"He was about your height and build. Thin dark face. Long black hair and a soft black beard. Queer eyes that gave you the shivers."

It was not an identifying description. Probably nineteen men out of twenty are of my height and build, which is in all respects medium; the long hair and black beard were probably stage properties; and the queer eyes might be merely Mr. Jordan's afterthought of what the hypnotizer's eyes ought to be.

"Would you know him again if you saw him without his hair and beard?"

He looked surprised, and then doubtful. "I don't know."

But at this point the attendant nurse came up, and intimated plainly that I was a trespasser and transgressor, and that the interview was ended.

"I'll come to-morrow and take you out for a drive, if the doctor thinks you are strong enough to go," I said, by way of keeping the door open for further details.

"I must go home," he said, querulously.

"The faster you get strong, the sooner you can go. Till to-morrow, then."

Jean walked beside me quietly and sedately till we were outside. Then she turned to me with a flash of intense feeling.

"What are you going to do for him?"

"Find Diavolo," I answered promptly.

"And make him give back the thousand dollars?"

"If possible," I answered absently. My mind was more actively engaged with other features of the story than with the defrauding of the old farmer, and I was not sorry when I could put Jean on her car, so that I could wander off by myself to think the matter over. How far, if at all, this affair of Diavolo might have a bearing upon the murder mystery was uppermost in my mind. Suppose Diavolo and his "hired man" had quarreled. Suppose they had quarreled to the death? It was, of course, quite probable that a man of Barker's type would have many enemies, but here I was dealing not with probabilities but with a fact, however small it might be. There had been, in the recent past, an intimate relation between Barker and a man who was capable of touring the country as a hypnotist, a man who concealed his identity,--Ha, a motive! They had quarreled over the division of the thousand dollars, and Barker had threatened to expose him! His own death had followed! This chain had developed so rapidly and vividly in my imagination that it was a cold shock when my common sense recalled that I must establish some connection between Diavolo and Gene Benbow to make the thread complete. Whatever part Gene had played or had not played in the tragedy itself, he had confessed to the shot. The confession itself was a fact and must be accounted for, whether the thing confessed was a fact or not.

Up to this time the only theory in my mind that was compatible with Gene's innocence was the theory of romantic self-sacrifice on his part. I had felt that if he was not guilty he was trying to save someone who was. Whom would Gene Benbow wish to save at any cost? Who had killed Barker? Who was Diavolo? Would one name answer all three questions?

That was what I must find out.

CHAPTER X

WAYS THAT ARE DARK

My preliminary investigations along the Diavolo trail extended over considerable time, and were intertwined with various other matters of more or less interest, but I shall condense the account here, so as to get on to the more intricate affairs that followed.

To begin with, I wrote to the theatrical manager of each and every town that had been listed in Barker's note-book, asking if "Diavolo" had appeared there, under what management he had come, what his real name was, how he could be reached, and whether they had any letter, contract, or other writing of his. Then I wrote to the metropolitan agencies, and to various Bureaux of Information in the larger cities, and to all the public and private societies and persons whom I knew to have an interest in the occult, asking, in a word, if they knew who "Diavolo" was, and how and where one might come into communication with him. I threw out these baited lines in every direction that I could think of.

Very soon the first answers came in. After I had received three or four I began to make bets with myself on the contents of the next one, though it soon became obviously unsportsmanlike to wager on what was so near a certainty. They were all alike. The man who had been placarded as "Diavolo" had never been seen anywhere until he had come to the theatre in the evening for the performance. All business matters had been handled by his agent, Alfred Barker. Barker had made the arrangements beforehand, sometimes by letter, sometimes in person, and he had always accompanied Diavolo at the time of the performance and looked after everything.

"Barker looked out for Diavolo as carefully as though he were a prima donna with a \$10,000 throat," wrote one imaginative manager. "Shouldn't wonder but what he was a woman, come to think of it. He had a squeaky kind of voice on the stage, and he kept himself to himself in a very noticeable way. He wore a beard, but it may have grown in a store. I know his hair came out of a shop all right."

Most of the answers were less imaginative, but equally unsatisfactory. Barker had stood in front of Diavolo and shielded him from observation so effectively that no one but Barker really knew what he looked like. And Barker could not now be consulted!

Before long I began to receive answers to the inquiries I had flung farther afield as to the reputation of Diavolo among those who might be supposed to know all professional hypnotists. These replies were also of a surprising and disappointing uniformity. No one working under that name was known. Most of my correspondents contented themselves with this bald assertion, but some of them made suggestions which led me on to further inquiry. One man suggested that "Diavolo" might possibly be one Jacob Hahnen, who had disappeared from the professional field some two years before, following his arrest on account of the death on the stage of one of his hypnotized victims, while in a state of trance. That looked like a plausible suggestion, and I at once engaged a detective to trace Jacob Hahnen. I may say here, (not to mislead you as far as I was misled,) that Hahnen established a perfect alibi, so that pursuit went for nothing. I did not waste time or money on another suggestion, which was to the effect that a famous hypnotist who was supposed to have died in California some years ago, might have gone into retirement for reasons of his own, and have come out of it temporarily under an alias. It might of course be possible, but there was nothing tangible to work upon.

One thing became clear to me in the course of this investigation. There were more professional hypnotists in the country than I had had any idea of, and their ways were dark and devious. They were accustomed to work under assumed names, and more or less to cover their tracks and hide in burrows. I came across some quite amazing literature on the subject,--circulars issued by Schools of Hypnotism, offering to teach, in a course of so many lessons, for so much money, the art of controlling people by occult power.

"A knowledge of this wonderful faculty," one announcement claimed, "will enable you to control the will of the person to whom you are talking, without his consent or even his knowledge. Think of the advantage this will give you in your business! All taught in twenty lessons, mailed in plain cover."

"Lies and nonsense," I said to myself. But something within me bristled uneasily, as at the approach of an evil spirit. It had not been nonsense to poor old William Jordan.

I took to reading scientific books on hypnotism, to discover what powers or disabilities were actually admitted or claimed for this abnormal state. It was not quite so bad as the commercial exploitation of the subject, but it was disquieting enough. In general it seemed to be assumed that a normal person could not be hypnotized without his consent the first time, but that if he once yielded to the will of the hypnotizer, his own will would be so weakened thereby that afterwards he might find it quite impossible to resist. It was a moot question whether a person could be compelled to commit a crime while in a hypnotized state. Some writers insisted that a person's moral principles would guide him, even though his mind and will were paralyzed. I confess it looked to me to be open to question. Morality is generally more of a surface matter than mind, and would therefore be more easily bent.

It was a tremendous relief to get away from this commerce with the powers of darkness to talk with Jean Benbow,--though my part in the conversation was not conspicuous. I was rather like the wooden trellis upon which she could train her flowers of fancy! William Jordan grew stronger under the care of the hospital, but he was not a young man, and he had had a heartbreaking experience. It was some time before he was equal to the return to Eden Valley, and in the meantime I saw as much of him as I could, encouraging him to talk about Diavolo whenever he was in the mood, in the hope that something might develop which would serve me as a clue. Several times I took him out driving, and whenever possible I got Jean to go with us. This was partly because the old man had taken a fancy to her, and she put him at his talkative ease, and partly because she was a delightful little companion on her own account.

One day, when we were out toward the suburbs, she said suddenly, "Oh, let's go down that street."

We went accordingly, and came presently to a quaint old church, covered with ivy.

"That is where I am to be married," said Jean with quiet seriousness. She leaned forward as we drew nearer to watch it intently.

"Really!" I exclaimed. "May I ask if the day is set?"

"Oh, no," she said simply. "I only mean that when I am married I shall be married in that church."

"Why, pray?"

"My mother was married there," she said gently, and a look of moonbeams came into her eyes.

"Oh! That makes it seem more reasonable. But aren't you taking a good deal for granted in assuming that you are going to be married? Maybe you will grow up to be a nice little old maid, with a tabby cat and a teapot. What then?"

She did not answer my foolish gibe for a minute, and I feared I had offended her. But after a moment she said, with that quaint seriousness of hers:

"Do you know, that is a very hard question to decide. I have thought about it so often. It would be very splendid, of course, to fall in love with some great hero, and go through all sorts of awful tragedies, and then have it come out happily in the end, and of course one would have to be married if it came out happily, though it is kind of hard to think of what could happen next that would be interesting enough to make a proper climax, don't you think so? *Just* to live happy ever after seems sort of tame. So I have wondered whether, on the whole, it would not be more romantic to cherish a secret passion and grow old like withered rose leaves and have faded letters tied with a worn ribbon to be found in your desk when you were dead."

I considered the situation with proper seriousness. "Who would write the letters?" I asked.

"Oh,--"

"Some young man who was desperately in love with you, of course?"

"Why, yes," she admitted.

"Well, what would you do with him? I don't believe any young man with proper feelings on the subject would be willing to efface himself in order to let you cherish his memory. He'd rather you would cherish him. I'm sure I should, if it were I."

"Oh!" she murmured with a startled dismay that was delicious.

"Did you happen to have any young man in particular in mind," I asked, "or is the position vacant?"

She looked up at me from under thick eyelashes in a rather bewildering way. "Quite vacant," she said.

"I'm supposed to be rather a good letter-writer," I suggested.

"I should have to be particular, if they are going to last a long time and be read over and over again," she said demurely. "Have you had any experience in writing that special kind of a letter?" (The sly puss!)

"No experience at all. But you would find me willing to learn and industrious."

"I'll consider your application," she said, with dignity. "But I haven't yet decided that on the whole I should not prefer a wedding to a package of yellow letters. I don't know. I can just see myself sitting by a window in the fading twilight, with those letters in my lap, and it looks awfully interesting. But it would be disconcerting--isn't that the right word?--if no one else saw how romantic and beautiful it was. Of course I should know myself, and that counts for a good deal, but it does seem more *lonesome* than a wedding, when you come to think of it, doesn't it?"

"It certainly does. Whatever you may have to say against weddings, they are not lonesome."

"Oh, well, I don't have to decide just yet," she said, with an air of relief. "It is a long way off. Only, if I ever *do* get married, it will be in that little church, no matter if I am off at the North Pole when I am engaged and intend to go back there to set up housekeeping the next day. I made a vow about it, so as to be quite sure that I should have the strength of mind to insist on it. When you have made a vow, you just *have* to carry it out, you know, in spite of torrents or floods or *anything*."

I agreed heartily. And the time came when the memory of that foolish chatter just about saved my reason.

CHAPTER XI

THE SIMMERING SAMOVAR

One day it occurred to me to ask Fellows if he was keeping up my advertisement for Mary Doherty, from which I had heard nothing so far. His start and confusion were an obvious confession.

"N-no, not now. I did run it several times."

"I told you to keep it in until further orders. Don't you remember?"

He did not answer. I could not understand his manner.

"I am sorry if you didn't understand. We have probably lost an opportunity,- certainly have lost time. I count on getting important information from Mrs. Barker, if we can find her."

"What sort of information?" asked Fellows doggedly. I thought he was trying to minimize the results of his neglect.

"Well, almost any information that would enable us to fix Barker's associates would probably be valuable. More particularly, I want to find out whether there is anyone who wants to marry her and couldn't while Barker was alive."

I succeeded in attracting Fellows' attention, at least. He stared at me in silence, as though he were turning the thought over.

"I'll advertise again," he said, but without enthusiasm.

I think it was that day that I had a disconcerting interview with Burleigh, the editor of the *Saintsbury Samovar*. I have mentioned, I believe, that some independent public-spirited citizens were trying to make Clyde run for mayor. (It was one of those anti-ring waves of reform which strike a city once in so often, and are temporarily successful because good business men work at them for a season. The success is seldom, if ever, more than temporary, because the good business men go back to their jobs as soon as things are running smoothly, while the ring politicians never really drop their jobs for a minute.)

Well, Clyde had cold-shouldered the proposition, but rather half-heartedly. Probably there is no man living who does not have some political ambition. Certainly Clyde had it. With his wide interest in public matters, his natural power over men, and his ancestry and associations, I knew that nothing but the shadow of fear at his elbow had kept him out of the political game, and I was therefore not surprised when, a few days after the Barker tragedy had ceased to occupy the upper right-hand corner of the first page of the newspapers, that space was given up to announcing that Kenneth Clyde had consented to accept the reform party's nomination. I sympathized with the relief which I knew lay back of the acceptance.

This was the political situation when I met Burleigh. He was the editor of the evening paper which supported the ring and damned reform, and of course I knew where he stood as regards Clyde's candidacy. But when he stopped me on the street that noon, he didn't speak of Clyde.

"Hello, how's the lawyerman?" he said, taking my hand where it hung by my side and shaking it without regard to my wishes in the matter.

I resented his familiarity with my hand and with my profession, but the convention of politeness, which makes it impossible for us to tell people our real feelings about them, constrained me to civility.

"Very well, thank you," I said, carelessly, and made a move to go on my way.

He turned and fell into step with me.

"I'd like to ask what you lawyers call a hypothetical question," he said. "Just a joke, you understand,--a case some of the boys were talking about in our office. Read of it in some novel, I guess. Some said it would be that way and some said it wouldn't. In law, you know."

"Well, what is the question?" I asked, as politely as my feelings would permit. (Funny idea people have, that a lawyer learns law for the purpose of supplying gratuitous opinions to chance acquaintances! I shouldn't think of asking Burleigh to send me the Samovar for a year, just to satisfy my curiosity!)

"Why, it's this. If a man has been convicted of murder--the man in the story was--and then makes his escape and lives somewhere else for twenty years or so, and is finally discovered and identified, how does he stand in regard to the law?"

You may guess how I felt! The hypothetical case was so exactly Clyde's case that for a moment my brain was paralyzed. I was so afraid of betraying my surprise that I did not speak. I merely nodded and smoked and kept my eyes on the ground.

"There's no statute of limitations to run on a sentence of the court, is there?" he asked, eagerly.

"No," I said, with professional deliberation. "No, if you are sure that you have your facts all straight. But you don't often get law entirely disentangled from facts, and they often have unexpected effects on a question. What novel did you get that from?"

"Oh,--I don't know. I just heard the boys talking about it, and I wondered."

But he looked so eager that I could not help feeling the question was more significant to him than mere literary curiosity would explain.

"You think, then, that there might be some element in the situation that would perhaps complicate it?" he asked.

"It is never safe to form an opinion without knowing all the facts," I said, oracularly.

"But if the facts are as I stated them,--an escape from justice after conviction, and nothing else,--then the man is still liable to the law, isn't he?"

"Probably," I said, with a shrug intended to intimate that the matter was of no special interest to me. "How did it turn out in your story?"

Burleigh looked at me sideways for a moment. Then he said, imperturbably, "Why, I believe he made the mistake of going into politics, and so the thing came out. He was hung--in the story. Politics is no place for a man who has a past that he doesn't want to have come out."

"No doubt you are right about that," I said lightly.

"Of course I am. I'm in the business," he said emphatically. "If a man has a past--that sort of a past, I mean,--he ought to know enough to stick to--philanthropy or architecture or collecting, or something else nice and private. This your street? Well, good day, Mr. Hilton. Glad I met you." He tipped his hat and left me.

You can imagine the state of my mind. I puzzled over the situation for an hour, and then telephoned Clyde and asked him to drop into my office.

Clyde came that same afternoon. I told him of the Burleigh interview as directly as possible.

"Now you can judge for yourself whether it means anything sinister," I concluded.

"The Samovar is for the ring, of course," he said, thoughtfully.

"Of course. And Burleigh's recommendation that a man in that predicament should confine himself to architecture, or some kindred avocation, instead of trying to break into politics, didn't sound altogether accidental."

He nodded comprehendingly, and smoked in silence for a few moments. Then he looked up with a smile.

"I think I'll go on the theory that it was accidental."

I hadn't expected that, and I couldn't approve.

"As your lawyer, I must warn you that you are taking a serious risk," I said earnestly. "If Barker shared his secret with someone, who has gone with it to Burleigh, you are exactly in your old situation. It would be better to let the sleeping Samovar lie and give up the mayoralty."

He continued to smoke for a minute, but I saw the obstinate look in his eye that a mettled horse takes on when he doesn't mean to heed your hints.

"You don't understand, Hilton," he said after a moment, "but since Barker's death I have felt free for the first time in fifteen years. I like the sensation. Very likely I have gone drunk on it and lost my senses, but I like the feeling so much that I am going to snap my fingers at Burleigh and pretend that he has no more power to influence my actions than he would have had if--well, if Tom Johnson had never got into trouble."

"You think the mayoralty is worth the risk?" I asked.

"The mayoralty? No! Not for a minute. But--this sense of freedom is."

"But it is your freedom that you are risking."

He stood up, and though I could not commend his judgment, I had to admire his courage. There was something finely determined in his attitude as he tossed away his cigar and put his hands in his pockets.

"I am going to have it out with my evil destiny this time," he said, with a quick laugh. "Better be hanged than to skulk longer. I shall go on the theory that Burleigh has merely been reading some giddy detective stories."

"Don't forget that there are some crimes which don't achieve the immortality of a detective story, because they are never explained," I said warningly.

He merely smiled, but I knew my warning would go for nothing,--and secretly I was glad. There are things more to be desired than safety.

CHAPTER XII

ON THE TRAIL OF DIAVOLO

Jordan gained rapidly in strength, and was soon in condition to return, a sadder, wiser, and poorer man, to Eden Valley. I determined, however, to accompany him, and see if I could gather on the ground any further details about the serpent, my inquiries by mail bringing, as I have told, but unsatisfactory answers. But before leaving Saintsbury, I called again upon my client in the jail. I found him, as always, the gentle, nice-mannered, puzzling youth.

"I am going away for a while in your interests," I said, by way of greeting.

"That's awfully good of you," he said gratefully. Then with polite concern he added, "I hope you aren't giving yourself any trouble--"

"Oh, I sha'n't mind a little inconvenience when it is in the way of business," I said drily. "It may be a matter of entire indifference to you, but I want to win my case!"

"Oh, yes, of course," he said with anxious courtesy. I could see that he had no idea what I meant! There was no use trying to arouse him in that way, and I might as well accept his attitude.

"Did you know that Barker had a partner?" I asked abruptly.

He shook his head with an air of distaste. "No. I know nothing about him. I shouldn't, you know."

"You never heard of Diavolo?"

"Not the opera?" he asked doubtfully.

"No. A professional hypnotist with whom Barker was connected in a business way."

"No, I never heard of him."

"Did you ever hear of William Jordan? Or of Eden Valley?"

"No." He looked puzzled.

"I have an idea that it may have been Diavolo who shot Barker!" I said carelessly.

He looked surprised, and then, deferentially and hesitatingly, he expressed his dissent.

"I suppose you feel that you have to fight for me, as my lawyer, but--what's the use in this case? I don't understand these things, of course, but I'd rather have it settled with as little fuss as possible. I shot him, and I am not sorry, and--I'd like to have it all over with as soon as possible." His voice was steady enough, and the gallant lift of his head made me think of his sister, but I thought I saw a look of dread somewhere back in his eye. Perhaps he was beginning to weaken! I determined to press the point a little.

"And yet it is a pity to have your life run into the sand in that way," I said earnestly. "There might be much for you in the future,--success, love,

honor,--" I watched him closely. His face quivered under the probe, but he did not speak.

"Miss Thurston is heartbroken," I added, relentlessly.

He looked at me as a dumb animal under the knife might look, and then he dropped his face into his hands. I pressed the matter while he was at my mercy.

"If you did not shoot Barker,--if you are in fact innocent,--don't, for Heaven's sake, let any foolish idea of saving someone else lead you to lie about it. There could be no one worthy of saving at that cost. And, besides, if you are lying, I am going to find out the truth in spite of you."

He lifted his head, but he did not look at me.

"I am not lying. Why should I? I supposed anyone would believe a man who said he had done--a thing like that."

"I wish you would tell me about it again,--just what you did." (I wanted to see if his story would vary.)

He dropped his eyes to the floor thoughtfully. "I went to his office," he said slowly. "I went through the outer office and into the inner office. They were both empty. I locked the door and waited. I watched through a hole in the curtain over the glass in the door. A man came in, waited a little, and went out. Then Barker came. I waited till he came close to the door. Then I fired. I saw him fall. Then I went down the fire-escape and got out into the street." As he finished, he raised his eyes from the floor and looked at me. His glance was not entirely frank, and yet I could not call it evasive.

"There was no one else in the room with you?"

"No one."

"You saw no one else at any time except the man who came into the outer office?"

"No one else."

"And him you do not know?"

"No."

"If I should tell you it was I?"

He looked at me, puzzled and doubtful. "Was it you?"

"Wouldn't you know? Didn't you see the man's face?"

He hesitated. "N-no."

"Then how did you know it wasn't Barker?"

"Why,--it wasn't."

"Since you meant to give yourself up to the police, why did you go down the fire-escape instead of out through the hall?"

He looked distressed. "I--don't know." Then he seemed to gather his ideas together. "My mind is confused about much that happened that night, Mr. Hilton. The only thing that stands out very clearly is the fact that I shot him. And that is the only thing that is really important, isn't it?"

And that was the most that I got out of the interview.

I had to admit, in face of this, that it was partly obstinacy which made me hold to the idea that he was not telling the whole truth. The fact that he had not recognized me, though he must have had me under close observation for a long time, and the fact that some one in the inner room had been eating apples, and that some one not he,--this was really all I had to support my point of view. But these were facts, both of them, and a fact is a very obstinate thing. A very small fact is enough to overthrow a whole battalion of fair-seeming fabrications. I felt that I was not throwing in my fortune with the weaker side when I determined to follow the lead of those two small facts to the bitter end.

The pursuit led me in the first place to Eden Valley. I took poor William Jordan to his home, a farm lying just outside of the village, (and not more

than two hundred miles from Saintsbury,) and then I returned to the village. It was a country town of about 2000, with one main hotel. I judged that Diavolo and Barker would have to lodge there if anywhere, and on inquiry I found my guess correct. They were not forgotten.

"Oh, that hypnotist chap!" said the landlord. "Yes, he was here in the summer. Had a show at the Masonic Hall. Say, that's a great stunt, isn't it? Ever see him?"

"No. What was he like?"

"Oh, he was made up, you know,--Mephistopheles style. Black pointed beard and long black hair and a queer glittering eye."

"But when he was not made up? You saw him here in the hotel in his natural guise, didn't you?"

"Nope. Funny thing, that. He kept in his room, and the man that was with him, Barker I think his name was, he did the talking and managed everything. Diavolo acted as though he didn't want to be seen off the stage. Wore a long cape and a slouch hat when he went out, and had his meals all sent up."

"Was he tall or short?"

"Medium. Rather slim. Long, thin hands. Say, when he waved those hands before the face of that old farmer sitting on a chair on the stage, it was enough to make the shivers run down your back. I don't know whether it was all a fake or not. Most people here think it was, but I swan, it was creepy."

"Did you know the farmer?"

"Oh, yes,--old Jordan. Lives near here. Terrible set up about having a strong will, and said nobody could hypnotize him. Say, it was funny to see him think he was a cat, chasing a rat, and then suddenly believe that he was an old maid and scared to death of a mouse, and jumping up on a chair and screaming in a squeaky little voice."

"Diavolo woke him up, didn't he?"

"Oh, yes. And then the old man tore things around. He came here the next day to see the man in the daylight, and dare him to try it again."

"Did he do it?" I asked, wondering how much of Jordan's story was known to his neighbors.

"Oh, I guess not. He went up to Diavolo's room, I remember, and when he came out he wouldn't talk, but just went off home."

"And you never heard Diavolo's real name?"

"Nope. Trade secret, I suppose. Probably born Bill Jones, or something else that wouldn't look as well on the billboards as Diavolo."

I went to the Masonic Hall, where the "show" was given, but there I met the same difficulties. Barker had made all the arrangements and been the mouthpiece. The mysterious Diavolo had appeared only at the last moment, cloaked and made up for stage effect, and had held no conversation with anyone. They all thought his assumption of mystery a part of his profession. I saw in it a persistent care to hide his identity. I could only hope that some momentary carelessness or some accident would give me a clue. His very anxiety to hide his real name made more plausible my theory that Barker's knowledge of it might have been the occasion of his death. In the olden times, the masons who constructed the secret passages under castle and moat were usually slain when the work was done, as the most effective way of ensuring their silence.

From Eden Valley, I went to Illington, the next place mentioned in Barker's memorandum book. Here it was much the same. The two men had stopped at the hotel over night, but Diavolo had kept out of sight, while Barker had transacted all the business and made all the arrangements. I realized that I was dealing with people who used concealment as a part of their business.

The same story met me at Sweet Valley, at Lyndale, at Hawthorn, at Dickinson. It was not until I reached Junius that I found what I had hoped for and had begun to despair of finding,--a personal recollection of Diavolo.

"Oh, yes," the landlady at the hotel said. "He was here. Raised the--I should say, raised his namesake with a toothache."

She was a jolly landlady, and she laughed at her own near-profanity till she shook. She had probably worked the same joke off before.

I smiled,--it wasn't hard, in face of her own jollity. "What did he do?" I asked.

"Oh, tramped up and down his room just like an ordinary man. Couldn't eat his supper. Kept a hot water bottle to his face, though I told Mr. Barker it was the worst thing he could do. Mr. Barker was distracted. It was getting to be near the hour for the performance, and Diavolo wouldn't go on. Not that I blame him. A jumping tooth is enough to upset even a wizard."

"How did it turn out?"

"Oh, he went to a dentist and had it out, and--"

Things danced before my eyes. I felt like shouting "Now hast thou delivered mine enemy into my hands." It seemed almost incredible that what I could hardly have dreamed of as a possibility could be the plain actual fact.

"Do you know what dentist he visited?" I asked, trying to speak casually.

"Oh, yes. Mr. Barker inquired at the office, and went with him. Diavolo was very careful about not being seen, and even then he wore a wig. I knew it was a wig, because he had got it crooked, tossing about, and some light hairs showed about his ear."

"What dentist did you send him to?" I asked anxiously.

"Dr. Shaw."

"And he isn't dead or moved away or anything like that?"

"Oh, no! He has his office right around the corner. He boards in the house, and I always like to throw business in the way of my boarders when I can."

"I think I shall have to see him on my own account," I said. I almost expected an earthquake to swallow up Dr. Shaw before I could get around the corner, but I found the office still in place, all right, and the doctor himself, looking rather pathetically glad to see some one enter. He was a dapper little man, with a silky moustache and an eternal smile. (Not that his looks matter! But whenever I think of that interview, I see that humble, ingratiating smile.)

"What can I do for you?" he asked gently and caressingly.

"I am not in need of your professional services, Doctor Shaw, but I should like to obtain some information from you, if you will allow me to take some of your time at your regular rates. I am a lawyer, and I am anxious to establish the identity of a man who was here in the summer under the name of Diavolo,--a professional hypnotist. Mrs. Goodell, of the Winslow House, tells me that she sent him to you to be relieved of a toothache."

"Yes, I remember. I extracted a tooth for him," Dr. Shaw said at once. "I could perhaps have saved it, but it would have required treatment, and he insisted upon having it extracted, as he was to appear on the stage that evening."

"Was there anything peculiar about the formation of his jaw, do you remember? Any irregularity, for instance?"

The dentist smiled. "Yes. Decided irregularity. His jaw was peculiarly long and narrow, and the teeth, which were large, were crowded. On both sides the upper teeth formed a V."

"Like this?" I asked, taking the model which Dr. Kenton had made for me from my pocket.

"Exactly like that," he said, after examining it critically. "Wasn't this made from his mouth?"

"That is what I want to ascertain."

"It would be extraordinary to find two persons with the same marked peculiarity," he said thoughtfully.

"Would that peculiarity be enough to establish the man's identity?" I asked.

"Perhaps not. But I could identify Diavolo positively and beyond question, if that is what you mean. There were other distinguishing marks. The first lower left molar was gone, and replaced by a bridge, for instance. And the second molars in the upper jaw had both been extracted,--probably to relieve the crowding. The conformation was unmistakable, and very unusual."

"Then if I ever get my hands on Diavolo, you can identify him, regardless of grease paint and wig?"

"Unquestionably."

"I hope most heartily that I may be able to give you the opportunity. You have done me a great service as it is. For the present, I can only tell you that your information will serve the cause of justice."

Can you guess my elation? I should certainly have astonished the staid people of the prim little town if I had allowed myself to express the state of my feelings. My wild goose chase had not been so wild, after all! I had not yet bagged the game, to be sure, but I felt that I had winged it. Certainly I ought to be able to convince any jury that if Barker's former partner was in the room from which the fatal shot had been fired, the chances were strong that he had had something to do with it. And that he was there I could prove. The apple in which he had left the imprint of his curiously irregular teeth was freshly bitten; and the toothache which had driven the cautious Diavolo from his cover of silence and forced him, by stress of physical agony, to the intimate personal relation of a patient with his dentist, had identified him as the man. It only remained to find--him!

What Eugene Benbow's connection with the affair could have been was so much of a mystery that I could form no conjecture. One thing at a time.

When I had unearthed Diavolo, the other things might clear themselves up. Sometimes one missing piece will make a puzzle fall into shape and everything appear coherent.

I had been away from Saintsbury on this search for over a week, and I was anxious to get back. I wanted to find out whether my advertisement for Mary Doherty had brought any answer. I wondered whether Benbow had grown more communicative. I wanted to see Jean, who must be having a time of it, living with her queer, unaffectionate guardian. I wondered whether Fellows had attended to things at the office. But I didn't think of the one thing that had actually happened. I found out what it was when the newsboys came on the train with the Saintsbury papers. The Evening Samovar had exploded. It had come out with Clyde's story.

CHAPTER XIII

THE SAMOVAR EXPLODES

The Saintsbury papers were thrown on our train several stations beyond the town. I bought one, of course, and unfolded it with a cheerful feeling of being near home again,--and there stared at me from the first page the glaring headlines,--

CLYDE A CRIMINAL

THE REFORM CANDIDATE FOR MAYOR A FUGITIVE FROM JUSTICE

AMAZING RECORD OF CRIME AND

CONCEALMENT DISCOVERED BY THE SAMOVAR

I tore my way through the leaded paragraphs. The only thing that was news to me was the clue on which the Samovar had worked.

According to the high-flown account, Barker had left at the Samovar office, on the night on which he was killed, a large sealed envelope addressed to himself, with the added direction:

"If this is not called for within five days, it is to be opened by the Managing Editor of the Samovar."

It would appear that this was the errand that was occupying Barker while I sat waiting for him in his office! I could not refrain from pausing to admire the rascal's cleverness. He was anticipating--not the death which came so swiftly, but--a visit from Clyde, or possibly Clyde's representative, and he had adroitly made it impossible for Clyde to control the situation by force or coercion. The story was written out and in the hands of the paper which would most gladly profit by the disclosure, though it was still, for five days, subject to Barker's own recall, if he were properly treated! It certainly was a reserve of the most unquestionable value in diplomatic negotiations.

The Samovar went on to say that after the sensation of Barker's death, the envelope had been held inviolate for the specified time, and had then been opened by Burleigh in the presence of witnesses.

The story as written by Barker was then set forth in full. It recited briefly that Barker had been present at a court trial in Houston, Texas, some fifteen years before, at which one Tom Johnson had been convicted of the murder of a man named Henley, and sentenced to death. The prisoner had escaped from the sheriff immediately after conviction, and had never been captured. Then Mr. Barker proceeded:

"Two or three years ago I saw Mr. Kenneth Clyde in Saintsbury, and greatly to my surprise, I recognized in him the missing Tom Johnson. I charged him

with the identity, and he did not deny it. He then and afterwards freely admitted to me that he was the man who, under another name, had been convicted of murder and had made his escape. I have refrained from making this information public out of consideration for Mr. Clyde, but I feel it a public duty to leave this record where, if certain contingencies should arise, it may be found."

(The contingency which the writer had in mind was probably a refusal on the part of Clyde to continue paying blackmail. That would undoubtedly have made Mr. Barker's public duty weigh upon his tender conscience.)

The Samovar then went on to say that the story at first seemed incredible, and therefore the witnesses were all sworn to secrecy until the matter could be investigated. A special representative had been sent to Texas to look it up. The writer then modestly emphasized the difficulties of the undertaking, and his own astonishing cleverness in mastering them. He had actually found the court records to establish the tale of the late lamented Mr. Barker, whose untimely taking off with this public service still unperformed would have been nothing less (under the present political circumstances) than a civic calamity. Tom Johnson had been convicted of the treacherous and bloody murder of his friend. (The details were then given in substantial agreement with the story which Clyde had told me.)

"But who," the happy historian went on to say, "who would have guessed, who would have dared suggest, who would have ventured to believe, that this obscure criminal, snatching the stolen cloak of freedom from the heedless hands of careless officials, and skulking off with it by the underground passages known to the criminal classes,--who would have believed that this false friend, this wretch, this felon, was none other than the Reform Candidate for Mayor of Saintsbury? The charge is so incredible that we may well be asked,--Where lies the proof of identity, beyond the word of Alfred Barker, now cold in death? The man who so long had successfully covered up his past, may well have felt, when Barker met his tragic fate, that at last he could walk in security, since the one witness who, in a period of fifteen years, had identified him, was now disposed of. But murder will out. The truth, though crushed to earth, will live again. The sun in the heavens has been summoned as a witness. While Tom Johnson was in

jail, awaiting trial, an enterprising paper of the place secured several photographs of the prisoner. These our representative found in an old file of the paper. We reproduce below, side by side, the photographs of Tom Johnson, lying under an unexecuted sentence for murder, and of Kenneth Clyde, reform candidate for mayor. They speak for themselves."

They did, indeed. It was like a blow in the face to see the pictures side by side, even in the coarse newspaper print. The handsome, defiant face of the younger man had been softened and refined and had grown thoughtful,--but it was the same face. If Clyde had wanted to deny the accusation (though I knew that he would not think for a moment of that course,) it would have been fruitless. The photographs made it impossible.

As I studied them, I thought that any woman who loved him,--his mother or another,--should certainly be ready to give thanks on her knees for the changes that the fifteen years had wrought. As a young fellow he had clearly been rather *too* handsome. That any man with so much of the "beauty of the devil" had been marked by the stars for a tumultuous career was most obvious. There was spiritual tragedy in every lineament. On the other hand, there was no devilry in the seriously handsome face of the man of to-day. You did not even think first of his good looks, the deeper significance of character had so come to the surface. Certainly, the shadow under which Clyde had lived had fostered the best in him.

The newspaper scribe ended his paragraph with a cruel innuendo:

"The sudden death of Alfred Barker at a time when Clyde had most to fear from the secret in his knowledge would have had a sinister appearance, if that apparent mystery had not been promptly solved by the confession of Eugene Benbow. Clyde should acknowledge his indebtedness to the convenient Benbow."

The fact that I had had a bad quarter of an hour convincing myself that Clyde had had nothing to do with the matter did not make me less indignant with the astute newspaper scribbler. And I saw further complications in the subject. If I cleared Gene--as I fully meant to do--it would be necessary to do it by bringing the real murderer to light. To clear Gene by simply

proving that he was not on the spot (assuming that to be possible) would be merely to transfer the shadow of doubt to Clyde. It was a bad tangle.

The moment I reached the Saintsbury station, I tried to get into communication with Clyde. He might not care to have me act as his legal adviser in this more serious development of his case, but at least I must give him the opportunity to decline.

It was eight o'clock when the train pulled in, and I went at once to the private telephone booth and tried to get Clyde. His office was closed and did not answer,--I had expected that. His residence telephone likewise "didn't answer." Then I called up the chief of police, and asked whether Clyde had been arrested, basing my inquiry on the Samovar story. He had not,--though it took me some time to get that statement out of the close-mouthed officials of the law. Then I called up Mr. Whyte's residence, hoping to get some hint of the situation as it affected my friends. It was Jean Benbow's voice that answered my call.

"Oh, it's *you!*" she cried, and the intonation of her voice was the most flattering thing I have ever heard in my life--almost. "Oh, I always did know that there must be special providences for special occasions, and if anybody ever thinks there aren't, I'll tell them about your calling up at just this moment, and they'll *know*. The most *dreadful* thing has happened,--"

"I have seen the Evening Samovar. Is that what you mean?"

"Oh, yes! Mrs. Whyte is at my elbow and she says I must tell you to come right up here in a jiffy--only she didn't say jiffy, but that is what she meant. She says now that I must not stand here and keep you talking, though really I know it is I that is talking,--or should I say am talking? But you understand. And Mrs. Whyte says you must jump into a cab and come up at once. Mr. Whyte wants to consult with you." The communication stopped with an abruptness that suggested external assistance.

It was Jean herself who admitted me. She must have been watching out for me, for she had the door open and was half way down the steps to meet me before I was fairly on Mr. Whyte's cement walk.

"Oh, but I am thankful to see you," she said earnestly. "Ever since that paper came this afternoon, I have been in a dream! I mean an awful dream, you know,--almost a nightmare. It seemed so unreal. Though I suppose that is what real life is like, maybe?" She looked at me inquiringly.

"I never saw anything like it before, and I have lived a real life for many more years than you have," I answered, meaning to reassure her.

She looked at me under her lashes. "Oh, not so very many more! Not enough to--to make any real difference. But you don't know how queer it seems to me to have things happening like this all around you. First Gene, and now Mr. Clyde. Do you believe it is true, Mr. Hilton?"

"I can't form an opinion from newspaper tales alone," I said evasively.

By this time we were at the door, where Mrs. Whyte was waiting, with Mr. Whyte at her shoulder. They both looked worried.

"You have seen the paper?" Whyte asked, while we were shaking hands.

"Yes. On the train. Do you know where Clyde is?"

"No. I tried to get him by 'phone, but I couldn't find him, and he knows where to find me, if he wants to. What do you think of it?"

I could only repeat that I could not express an opinion without more reliable information,--blessed subterfuge of the lawyer!

Mrs. Whyte broke in emphatically. "Well, I for one do not believe it. You needn't look so wise, Carroll, as though you meant to imply that we can't be sure of anyone until he is dead. I knew Kenneth Clyde when he wore knickerbockers and I knew his father and his uncle, and I simply don't believe it. The Samovar is nothing but a political scandal-monger, anyway."

"It was a long time ago, Clara," Whyte said deprecatingly. "Clyde was young, and you know he was a wild youngster. And there may have been provocations of which we know nothing."

"You are trying to excuse him, as though you thought the story true," cried Mrs. Whyte indignantly. "I simply say that I don't believe it. Not for a moment."

"I believe it," said a voice that startled us all. Katherine Thurston was standing on the landing of the stairs, looking down upon us as we were grouped in the hall. There was a tall lamp on the newel which threw a white light on her face, but it was not the lamp-light which gave it the look of subdued radiance that held our gaze. I confess I stared quite greedily, careless of what she was saying. But Mrs. Whyte recovered herself first,--naturally.

"Katherine! What are you saying? Come down!"

She came down slowly. There was a curious stillness upon her, as though she had come strangely upon peace in the midst of a storm.



"I believe it," said a voice that startled us all. PAGE 186.

"I believe it," said a voice that startled us all.
Page 186.

"I should think you would at least wait for a little better evidence before believing such a thing of--of *any* friend!" Mrs. Whyte chided indignantly.

Something like a ripple passed over Miss Thurston's face. She was actually smiling!

"I don't mean that I am eager to believe evil reports of Mr. Clyde," she said gently. "But--it explains so much. I think it probably is true because it would--explain. And, of course," she added, lifting her head with a proud gesture that would have sent Clyde to his knees, "of course it makes not an atom of difference in our feeling toward *him*. We know what he is."

Man is a curious animal. I was not in love with Katherine Thurston. I had never come within hailing distance of her heart and would have been somewhat afraid of it if I had; I had even suspected that the artificial calm which lay between her and Clyde covered emotional possibilities, past, present, or to come; and yet, now that I saw the whole tale written on her unabashed face, I felt suddenly as though a rich and coveted galleon were sailing away, forever out of my reach!

It was probably only a bare moment that we were all held there silent, but the moment was so tense that its revelations were not to be counted by time. Then Jean, who stood beside me, suddenly clasped my arm with both her hands, in a gesture that I felt to be a warning. I looked down at her inquiringly. She nodded slightly toward the French window which opened from the library upon a side porch, and following her gesture I saw the shadow of a stooping man outside. Before I could reach the window, it was pushed open from without, and Kenneth Clyde stepped into the room. I don't think we were surprised,--we had reached a state of mind where the unexpected seemed natural,--but when Clyde stepped instantly aside from the window and stood in the shadow of the bookcase, we awoke to a realization of what his coming meant.

"I beg your pardon for entering in this unceremonious way," he said (and there was a thrill of excitement in his voice that went through us all like a

laughing challenge) "but I have been dodging the police for an hour, and I know I am followed now. If you would draw the curtain, Hilton,--"

I drew the curtains over the windows, and Whyte closed the door into the hall. I think he locked it. The three women had followed us into the library, and though they stood silent and breathless, I do not think that Clyde could have had much doubt in his mind as to whether he held their sympathy.

"I had to come for just a moment before I got out of town," he said in a hurried undertone. He spoke to the room, but his eyes were on Katherine Thurston, who stood silent at a little distance.

"Tut, tut, man, you mustn't leave town," cried Whyte. "The worst thing you could possibly do! Ask Hilton here. He's a lawyer."

Clyde smiled at me, but went on rapidly. "I am not asking advice of counsel on this,--I am acting on my own responsibility. I cannot take the risk of giving myself up to the authorities. I know what that means. I am going away,--there is nothing else to do. But I could not go without coming here for a moment. You--my friends--have a right to ask an account of me." He paused for a second in his rapid speech, and then went on with a deeper ring in his voice. "The newspaper story is true, so far as my conviction by a Texas court fifteen years ago goes. But I was convicted through a mistake. I am innocent of murder. But I could not prove it. That--" He laughed somewhat unsteadily, and his eyes held Miss Thurston's,--"that is the story of my life."

We had none of us moved while he spoke, partly because he was so still himself, partly from a feeling of overshadowing danger which might descend if we stirred. But now Katherine Thurston moved toward him and he took a step to meet her. I think they had both forgotten all the rest of the world.

"Couldn't you have trusted me?" she asked, in tenderest reproach.

"I couldn't trust myself," he answered in a low voice.

"Ah, there you were wrong!" she said quickly. "So many years! And now--"

"Now I must go and see if there is any way to gather up the broken fragments."

"Could I not help in some way? May I not go with you?" she asked simply.

"You *would* do that?" he demanded.

"Anywhere," she answered.

He lifted her fingers to his lips and hid their trembling upon her white hand. "No, you cannot go," he said, with a break in his voice.

"Then I will wait for you here," she said.

"Oh, my God!" he breathed.

We came to our senses then, and Mrs. Whyte swept us out into the hall with one wave of her matronly arm. They must have that moment of complete understanding to themselves. We hovered at the foot of the stairs, waiting to speak again with Clyde, yet too upset in our minds to have any clear idea of what we could suggest or needed to ask. Mrs. Whyte, in a surge of emotion, caught Jean to her buxom bosom,--against which the child looked like a star-flower on a brocaded silk hillock. Jean's eyes were shining,--and not her eyes alone; her whole face was alight with a tender radiance.

Whyte gripped my shoulder to turn my attention. "See here, Hilton, he mustn't run away. It would look like guilt. You must tell him, as a lawyer, that it would be the worst thing he could do. If he is innocent, the law will protect him,--"

"The law has already condemned him," I reminded him. "The situation is difficult. He is not a man merely accused, his defense unrepresented. He has been tried, convicted, and sentenced."

"Good heavens!" he gasped. "Then if he puts himself in the hands of the law, there will be nothing left but to see the execution of the sentence? Is that what you mean?"

"Yes. That is the situation. There have been cases where men who had escaped from prison have lived for years exemplary lives and reached civic honors, yet, when recognized and apprehended, they had to go back to prison and serve out the unexpired sentence of the man condemned years before."

"But if the sentence was unwarranted?"

"Of course we would try to make a fight on it," I said, but without much confidence. "But the sentence was pronounced by a duly qualified court, and it will not be easy to upset it at this late day. It would be a thousand times harder now to find any evidence there may be in his favor than it could have been then, when the events were fresh in the memory of everybody. And unless we can discover some new evidence having a bearing on the matter, we would have no ground on which to ask for a re-opening of the case."

"That's terrible," he said. Then, dropping his voice, "Is the death penalty in force there?"

I nodded.

"The man was a fool to hang around home," Whyte protested energetically, as he took the situation in. "Why didn't he have sense enough to go to South America or Africa, or the South Sea Islands when he first escaped?"

As if in answer to his question, the library door opened, and Katherine Thurston stood framed in the doorway. She had the same curiously still air that I had noticed when she stood on the stairs,--as though her spirit had found the way into a region of mysterious peace.

"He has gone," she said quietly.

There was a sudden tap at the front door, and then, without further warning or delay, it was opened, and a police officer stood there.

"Is Mr. Clyde in the house?" he asked directly.

"No," Whyte answered.

The officer glanced about the room with a swift survey of us all.

"He's gone, then?" he said.

No one answered.

"Sorry to have troubled you," he said, touching his helmet, and immediately went out. We heard low voices and hurried steps passing around the house.

"Oh, they'll find him!" cried Mrs. Whyte in dismay. "He can't have got a safe distance yet."

"Hush!" warned Whyte. He stepped to the library and looked out. Then after a moment he came back to us. "They are watching the house. The longer they watch, the better! Do you know his plans, Hilton?"

I shook my head. Miss Thurston had faded away like a wraith but Mrs. Whyte and Jean were hanging on our words. "No, I have no idea where he is going, or what he means to do. The police are very close on his heels. I confess it looks dubious that he will get very far."

Jean laughed out suddenly and clapped her hands together.

"Why, of course he will escape! After they have come to know about each other!" she exclaimed. "Nothing else would be possible, *now!*"

Whyte and I exchanged glances. As a matter of fact, we would all like to live in a rose-colored world, where things would happen of necessity as they do in properly constructed fairy tales, but it takes the confidence of a Jean to announce such faith in the face of unsympathetic Experience.

CHAPTER XIV

TANGLED HEART-STRINGS

There was racing and chasing on Saintsbury lea the next morning. The office of the Samovar was besieged by people who wanted to know whether the charge against Clyde was a campaign lie, a poor joke, or a startling truth. Reporters and inquiring friends camped on Clyde's doorstep, blockaded his office,--and insisted on extracting some information from his lawyer! Information is a valuable commodity which a lawyer is trained not to give away for nothing, so my visitors went away not much wiser than they came.

"Has Clyde been arrested?" was asked everywhere.

Apparently not.

"But why didn't Burleigh, in the interests of justice, give his information to the police before publishing it broadcast and giving Clyde a chance to get away?"

Probably Burleigh cared more for a Samovar scoop than for the interests of justice, and more for helping the campaign against Clyde than for either. Possibly, also, he did not care to take upon himself the responsibility of lodging a formal accusation against Clyde. He might, in that case, be held responsible for it.

"But how had Clyde got the warning?"

Nobody knew. He had simply disappeared.

Of course his disappearance was considered equivalent to a confession of guilt. The wires were hot with his description, and the noon editions had columns of conjecture and reassuring reports that the police were in possession of valuable clues which could not be made public.

I could barely get time to run through my accumulated mail. A good part of this related to Alfred Barker. I had started inquiries backward along the shadowy track of that slippery gentleman's career, hoping that I might come across some trail of Diavolo's in that direction. So far as results went, Mr. Barker might have been the most commonplace and harmless of mortals. He had lived here, he had done business there, he had been through bankruptcy and he had been promoter of several business schemes that were little better than bankruptcy, but chiefly he had managed to be unknown for long intervals. How some of those intervals were filled, I could in a manner guess. Probably his venture as business manager for Diavolo was an instance. And that one had not been particularly successful financially, except in the deal with Jordan, if I might regard Barker's note-book as an accounting of the profits.

I was busy in an inner office, trying to assimilate my mail, when Fellows, my clerk, brought me word that Miss Thurston was waiting to see me. As I knew we should be liable to interruptions in the outer office, I had him bring her in.

I saw at a glance that this was a different woman from the self-possessed woman of the world I had known. She was human, womanly. Her eyes met mine with a shy appeal for sympathy.

"We all come to you for advice," she said with a deprecating smile.

"That is the chief compensation of my profession."

"There are three things that I want to speak to you about," she continued.

"First, Mr. Clyde's safety. I have been thinking about things all night, turning them in my mind one way and another, and that is the point that must be considered first. If he is taken, or gives himself up, what prospect is there that he will ever be cleared?"

"Very little, Miss Thurston. You wish me to be frank."

"I want to know the exact truth. In the eyes of the law, he is merely an escaped convict?"

"Yes."

She was perfectly quiet and self-controlled. I could see that she merely expected me to confirm the impression which her intelligence had already discerned. She did not hesitate in her quiet speech.

"Then the second thing is to get word to him. I have written him a letter." (She laid it on my table,--a nice, thick letter it was, too!) "I have told him in this letter that I am ready to go with him to any island of the sea or desert jungle where he will be safe. I want you to know, because it may happen that you will get word to him only by telegraphing. But tell him what I have told you, if you cannot give him my letter. If you should see him, the letter will be enough to make him understand. And if he should hesitate on my account, and talk about not letting me sacrifice myself,--he may, you know,--will you make him--understand?" There was a mist in her eyes as she finished. If she looked at Clyde with that look, he would have to be a man of iron not to yield!

"Trust me to do the very best I can to deliver your commission. But Clyde has disappeared, as you know. I may not hear from him before you do."

"Yes, I know. I am only providing for the chance,--in case you do. I have been thinking of everything, trying to put myself into his mind, and I think he will come or send to you."

She spoke with quiet assurance.

"I shall be only too glad to serve you--or him."

"Then there is another matter." A slightly embarrassed air replaced the fine lack of self-consciousness which I had been admiring. "I wish that you would tell Eugene Benbow."

I felt myself stiffen. Unconsciously I was politely obtuse.

"Tell him what? I beg pardon!"

"Tell him about Mr. Clyde's escape and--everything that has gone before."

"Oh, yes, certainly. He will be interested."

"And tell him--about my message."

"You wish him to know?" I asked, in a matter-of-fact manner.

"Yes, I wish him to know,--but I don't want to be the one to tell him."

"You think it will hurt him?" I asked, determined to draw her out, since she had given me the opening. I realized that to women emotions are facts, and that impressions, attitudes and relations are quite as substantial as any of the more material things of which the law takes notice. It might be that the key to Gene's mysteriousness lay in emotions rather than in facts.

She lifted her eyes with something of an effort, but I saw that she had determined to treat me with frankness.

"It probably *will* hurt him," she said, "but it will be salutary."

"In the long run, yes. But--poor fellow!"

"I know! But it wasn't my fault. You know a boy of his poetic and romantic sort simply has to adore someone, and I even thought it was better for him to waste his emotional efflorescence on me than on some woman who might not have understood."

"I am quite sure you are right," I said. But at the same time I could not help a feeling of dumb sympathy with poor Gene, and a certain impatience with her philosophic view of the situation. As Kipling says, it is easy for the butterfly upon the load to preach contentment to the toad. The toad, too, has some rights.

"Besides, he knew always--or, at least, for a long time--that Mr. Clyde was more to me than anyone else. He always was," she continued bravely, "even in the old times, before--anything happened. And I knew, as a girl does, that I was more to him than anyone else. Then, when he drew away and would not say what I had expected, of course I was hurt and angry and very, very unhappy. But when years and years had gone by, and I saw that what I

wanted was not coming, I determined to keep him as a friend. I knew that something had happened, something against his will. So I realized that it was wrong to blame him, and that I must keep what I could have, on the best terms possible. It was really Eugene that made me come to this understanding of myself."

"I see."

"Of course Gene knew from the beginning that it was a case of the moth and the star,--don't smile! I mean simply on account of our respective ages, of course. But to make sure that he should not misunderstand, I--told him something about Mr. Clyde."

"That was fine and generous of you," I cried warmly, ashamed of my momentary reproach.

She flushed with sensitive appreciation of my change of attitude. "I even told him that if he could ever render a service to Mr. Clyde, it would be the same as if he did it for me. I thought it would be a good thing to awaken his chivalry in that way."

"But you had no reason at that time to suppose that Mr. Clyde was in danger?"

"No specific reason," she said, with some hesitation. "But I felt that something overshadowed him. A woman knows things without reason, sometimes."

"And you told Eugene?"

"Yes. Partly I wanted to let him feel there was something he could do for me,--you understand. And partly, too, I wanted to enlist his interest for Mr. Clyde, if an opportunity should ever come up where he needed help that Eugene could give. You never can tell."

"You can't ordinarily," I admitted. "But at present poor Gene has put himself out of the way of doing a service for anyone. His hands will be tied for a long time."

"But--you do think there is a possibility of getting him off, don't you? He is so young!" Miss Thurston rose as she spoke, and in spite of her kindly tone in regard to Gene, I could see that the important part of the interview was over when Clyde passed out of our conversation.

"Of course I should not admit anything else," I answered, and she departed, leaving me impressed anew with the important part which women play in the affairs of men. Truly, sentiments may be stronger than ropes, and emotions more devastating than floods. And the woman who is all tenderness and quivering watchfulness for one man will be as indifferent as Nature to the sufferings of another. I was sorry for Gene. Prison was not the worst of his trials.

It was not a particularly pleasant mission on which Miss Thurston had sent me. I went to the jail for an interview with Gene with very uncomfortable anticipations. It isn't pleasant to hit a man whose hands are tied,--and that my communication would be in the nature of a blow to him I could not doubt.

He looked nervous and harassed, and the innate courtesy which characterized him was, I felt, the only thing that kept him from resenting my visit.

"I hope you haven't come to talk about that wretched Barker," he said at once, trying to smile, but betraying the effort in the attempt.

"Not unless you wish to."

He shook his head. "No. I told you all about it once. I don't want to think about it any more. It makes me--ill."

"Very well. We'll gossip about our friends instead. Have you heard about Clyde?"

He half turned aside, but answered with apparent indifference. "Yes, they let me see the papers."

"He has disappeared, it seems. There has been no trace of him, yet."

There was a hint of youthful scorn in his voice as he answered. "Well, if he likes to live that way. I think on the whole I should prefer to give myself up and have it over with."

"Clyde insists that he is innocent. That would of course make a difference in the feeling about giving oneself up. His conscience is not involved in the question. Besides," I added, seeing my chance to discharge Miss Thurston's commission, "he has to think not alone of himself. Miss Thurston's happiness is bound up in his safety."

The boy did not speak. I could feel, however, that he was holding every nerve tense. I knew what he wanted to know, and I went on, with as casual an air as I could muster.

"It seems that they have been in love with each other for years, but of course with the knowledge that this possibility of exposure was hanging over him, he could not speak. Now that it is out, and the worst is known, they have come to an understanding. It was inevitable, under the circumstances."

"Do you mean she will marry him?" he asked, in a low voice.

"Probably, in time. For the present, of course his whereabouts are unknown. But I should think that probably, in the end, she will go to him. At her age," I added deliberately, "a woman has a right to choose her fate. She will not go to it in ignorance."

He laughed, but without mirth. "As you say, she is old enough to know her own mind," he said, somewhat brutally. Then he added, bitterly, "It seems I did not shoot Barker quite soon enough."

"Why *did* you shoot him?" I asked.

His eyes fell. "Because he killed my father." Then he turned his shoulder to me with an impatient gesture. "I told you I would not talk about that any more." And he wouldn't. For all his good manners, my client had a vein of obstinacy that was almost as useful, in case of need, as plain rudeness would have been.

When I left Gene, I fell in with some friends who insisted upon having me give an account of myself over a dinner at the club, so it was something after nine when I reached my rooms. I lived at that time, as I think I may have mentioned, in an apartment hotel. My own suite was on the third floor. As I stepped out of the elevator, I saw three men lounging in the neighborhood of my door. They saw me, and set up a shout of "Here he is," which brought in two more who had apparently been taking the air on the fire-escape.

"To what am I indebted,--?" I began. They grinned cheerfully and simultaneously.

"Oh, we just wanted to find out if you couldn't give us a story about Clyde," the foremost explained,--and I recognized the clan. They were reporters on the trail of Breakfast Food for the Great American Public.

"Come in, and tell me what you want to find out," I said resignedly. "If you can extract any information from my subconscious self, I hope you will share it with me."

"You'll read it in the papers to-morrow," said the cheerful tall one. "Have you any idea where Clyde is?"

"Why, yes," I answered thoughtfully,--and they all leaned forward like dogs on a leash. "Of course it is only a guess,--"

"Yes, yes, we understand," they chorused eagerly.

"Well, gentlemen, I figure it out this way. Mr. Clyde did not possess an aeroplane, and it is extremely doubtful that he was able to borrow one before he left. The most rapid means of transportation available to him would therefore be the automobile or the chou chou cars. He has been gone about twenty-four hours. Multiply twenty-four hours by forty miles and you get the radius of a circle of which Saintsbury is the center--"

They interrupted my demonstration with shouts and jeers.

"You trifle with the power of the press," said the tall one. "Wait till tomorrow morning and you will see what happens to your remarks. The public will have reason to understand that we have reason to understand that Mr. Hilton has reason to understand that Mr. Clyde is not a thousand miles distant from Saintsbury at this time!"

While I had been speaking, my eye had fallen upon the stub of a cigar on the mantel. Now, I had not been in my room since morning,--and I do not smoke before luncheon. While I talked nonsense to the men, my mind was engaged with that cigar stub. I had no reason to suppose that the chambermaids on that floor smoked, and nobody else was supposed to have access to my rooms. I sauntered across the room and picked up the stub and tossed it in the grate. It was fresh and moist. My eye went about the room. Half a dozen books from my shelves were lying about,--and it was absurd to suppose that the chambermaids had been indulging in my favorite brands of literature.

"Let me offer you a cigar, gentlemen," I said, and went to the adjoining bedroom, closing the door behind me. My cigars were not in the bedroom, but the excuse served.

There, with his feet on my best embroidered cushions, with my choicest edition de luxe on his knees and a grin on his face, sat Clyde.

CHAPTER XV

THE OUTLAW

I shook my head at Clyde, and returned to the sitting room. "Have you seen Clyde since the news came out, Mr. Hilton?" the energetic reporter demanded, as I was passing the cigars around.

"I have been out of town. I only returned last evening."

"It seems that he left his office without any instructions, and nobody knows how to get his orders. And at his home nothing is known. He simply walked out of the door and disappeared."

"Then the chances are that he is far enough away by this time."

"But he'll be caught," the man said confidently. "It is one of the hardest things in the world for a man to be lost in this world of rapid communication. His description has been wired all over the country. The police in every city in the land will have their eyes open. Sooner or later--and the chances are that it will be sooner--some one will tap him on the shoulder and say, 'You're wanted, Mr. Clyde.' And he'll forget himself and answer to the name. They all do it. Sooner or later."

He wagged his head wisely.

"That's so," chimed in the others, and story after story was told of the unconscious way in which men in hiding would betray themselves. It was entertaining enough, but I was on needles to have them go, and I got rid of them as soon as I could. I waited until I saw them actually leave the

building before I dared let Clyde out of the bedroom. He came out smiling and undisturbed.

"Are your prophetic friends safely out of the way?" he asked.

"All gone. How in the name of mystery did you get in here?"

"You look more surprised than hospitable!"

"And more anxious than either, I dare say, if my looks show my feelings. How are you going to get away?"

"Walk away. And very soon. But first, I wonder if you could get me something to eat. Absurd how dependent we civilized beings are on our meals! There may be more serious matters to be considered, but at present my chief anxiety is as to whether you happen to have a box of crackers and a piece of cheese in your rooms."

"We'll do better than that," I answered, and I promptly telephoned to a nearby restaurant for a substantial meal.

"Now, while we are waiting, tell me how you got in," I said.

"Oh, that was easy. I simply walked up. I thought I should find you, but you are an abominably early riser. The maids were cleaning the rooms, and so I simply watched for an opportunity to slip into one room while they were in the other. You have comfortable diggings here, and I commend your taste in pictures, but I vow I never saw so hungry a place in my life."

"Have you really had nothing all day?"

"Nothing since yesterday noon. It was about the middle of the afternoon yesterday that a fellow came to my office,--a man I had never seen. He told me that he was a typesetter on the Samovar. 'Beg pardon,' he said, 'but you're Mr. Clyde, aren't you?' I acknowledged it. He said, 'I'm a machine operator on the Samovar, and I had a "take" just now that had a story about you in it. Some dirty story about your having been convicted of murder and escaping before you were hung.' 'Indeed?' I said. 'It was kind of you to warn

me. To whom am I indebted?' He looked down and shuffled his feet. 'Oh, I'm nothing but a machine operator, but I don't want to see a man that is bucking the ring knifed.' And that is all that I know about him."

"Some local politician, probably."

"Yes," he laughed. "It is a queer world, the way we are bound up with each other. If I hadn't accepted that nomination on the Citizens' ticket, that bow-legged little machine man, who probably had to lose a day's wage to get away and warn me, would never have bothered. He took the trouble because I was *his* candidate."

"By the way, I saw Miss Thurston to-day. She gave me this letter to get to you if I should have a chance." And I gave him her letter and turned away to arrange his supper while he should read it. I rather fancy he forgot his hunger for a few minutes. I could guess something of what Miss Thurston must have written by his face. It was white with emotion when he finished. He put the letter into his pocket-book, carefully. Then he turned to me, half laughing but without speaking, and wrung my hand. We understood each other without anything further.

"What, specifically, did you come back for?" I asked, while he was eating.

"Well, partly because the enemy would be looking for me elsewhere, but chiefly because I had to get some money. How much have you about you?"

I emptied my pockets and spread the loot before him.

"Not so bad," he said. "I'll give you a check for it, and date it yesterday. Then I should like to have you, as my lawyer, take possession of the papers in my desk. There are insurance policies that have to be taken care of, and some other matters that can't be neglected. And the Lord knows when I can come back."

"No one else knows," I assured him.

He smiled. I could see that he was too uplifted to really care very much about such trivialities as I had my mind upon.

"You don't advise me to stay and brazen it out, then?" he said, quizzically.

"On the contrary, I advise you to clear out. I don't see the ghost of a chance for you if the law gets its hands upon you."

"Then a judicial error can never be corrected?"

"The only thing that would give us any excuse for reopening the case would be some new evidence having a bearing on the situation. Have you any reason to suppose that you can unearth any significant facts now which you could not discover when the affair was fresh in the memory of everyone?"

He shook his head. "No. That looks hopeless, I must admit. You advise me, then, to bury myself somewhere beyond reach of the extradition laws?"

"Exactly. And, considering everything, I can imagine worse fates."

He smiled. "So can I," he said musingly. For a man with a price on his head, he seemed singularly happy. It was clear that the letter in his pocket was the most potent writ in the world just then.

Then he put dreams aside, and gave me specific directions as to certain matters of business that he wished looked after. It was on toward eleven o'clock before our talk was finished, and he rose to his feet.

"What are your plans now?" I asked.

"To get out of town, first. I must walk. Let me have that stick of yours, will you? I think I shall have to go stooping over a cane, to escape notice. And when I have an address to give you, I'll let you know."

"All right," I agreed.

He pulled his hat into a bedraggled shape over his ears, and walked stiffly about the room, bent over the cane. I had not guessed him so good an actor. I walked with him down the street a few minutes later,--and I knew that he carried a lighter heart into exile than he had carried through all the popularity and success of the last fifteen years. After making sure that he was not followed or observed, I left him, and returned home. I took a

different route, one that brought me through a little park, where a fountain plashed in the soft night air, and the trees bent over the benches whereon homeless tramps and cosy "twos" enjoyed the last minute of freedom. As I crossed the park by one of the diagonal asphalt paths, my eye was caught by the familiar aspect of the drooping shoulders of a man who sat beside a girl on a secluded bench. It looked like Fellows. He moved slightly, and I saw that I was not mistaken. That he should be spending the evening in the park was not remarkable, but that he should be in close conversation with a girl was distinctly surprising. But I was very glad to see it. A girl would be the best panacea for his moodiness. I would not embarrass him by giving any sign of recognition. I therefore walked past with my eyes ahead, but just as I came opposite, the girl moved and the light of the street lamp fell on her face. I had seen her before,--for a minute I could not remember where. Then it came to me. She was Minnie Doty, Mr. Ellison's housemaid. How in the name of wonder had Fellows picked up an acquaintance with her?

I wished afterwards that my delicacy had not led me to go by without speaking.

CHAPTER XVI

THE GIFT-BOND

For some days I was so much occupied with Clyde's affairs, and other business matters which demanded my professional attention, that I saw little of any of my friends in a social way, but toward the end of the week Mr. Whyte asked me over the telephone to come up to dinner. I was only too glad to go, but I confess that when I saw Jean was not expected, I was so disappointed that I began wondering how I could cut the evening short enough to give me a chance to run in at the next door.

"I asked Jean to come over," said Mrs. Whyte, unconsciously answering my unspoken question, "but the dear child had something else on for this evening."

Mr. Whyte chuckled without disguise. "Jean has a beau," he said, with an air.

"And if she has, Carroll," Mrs. Whyte took him up, with instant sex-championship, "it is nothing to make remarks about. Jean is quite old enough to receive attention, and he is an unexceptionable young man. I don't think it is delicate of you to make comments."

"Who is making the comments?" he demanded good-humoredly.

"Well, you *implied* comments, and I don't want you to do it when Jean is around. When a girl has no mother and is, besides, as wilful as Jean is,--and she *is* wilful, Katherine, although I admit she is charming about it, and I should be in love with her myself if I were a man,--the sooner such a girl is married to a steady young man, the better."

"Is the steady young man Mr. Garney?" I asked. The annoyance with which I had observed his prostration before Jean probably betrayed itself in my voice, for Miss Thurston looked up to answer reassuringly.

"Oh, it is not a serious matter. Mr. Garney was a friend of Eugene's, and Jean, bless her heart, would listen to a jointed doll if it could say 'Gene.' Besides, it was Mr. Ellison who asked him to come over this evening. He seems to have quite taken Mr. Garney up,--has him over frequently."

"By the way, Clara," said Mr. Whyte, "I asked Ellison for that contribution to your Day Nursery. You would have done better to ask him yourself. He turned me down hard,--said he had just had to make a thousand dollar payment unexpectedly and was hard up."

The talk shifted, but I confess it had made me uncomfortable. I had had nothing against Garney until I saw him bowled over by Jean, and then I immediately took a violent dislike to him. Yet she probably regarded his devotion merely as pleasantly flattering.

I was uncommonly glad, therefore, to find Jean waiting for me in my office the next afternoon. Fellows was away, and she was sitting at my desk in a stillness that was more than patient. It was tense. An odd-shaped package was clasped in her hands.

"Well, little Story-Book Girl, are you waiting for the prince?" I hailed her. There was something in her sweet absurdities that always made me feel as though we were playing a game.

"I was waiting for you," she said sedately.

"Lucky me! And poor disappointed prince! I can see him, in a green velvet suit, with a long, dejected feather in his drooping cap, waiting around the corner of your imagination for you to give a glance in his direction. That's all that would be necessary to bring him to life. Instead of that, you are wasting your thoughts--wasting them according to *his* notion, of course, not mine!--on a chap who is already alive!"

She smiled perforce at my foolery, but her smile was a trifle tremulous. I felt a trouble back of it, that must be treated respectfully.

"Is there anything the matter, Miss Jean?" I asked.

"There's Gene!" she said, a little reproachfully. Her eyes searched mine.

"Oh, I know! Of course! But there isn't anything new?"

She hesitated the barest moment. "That's enough," she breathed.

"But *that* is coming out all right!" I said reassuringly.

She turned her questioning eyes upon me again, and her look went deeper than ever before. It suddenly struck me that I was foolish to insist upon regarding and treating her as a child. Her eyes were unfathomable, but the mystery that veiled them belonged to womanhood, rather than to childhood.

"Do you say that just to keep me from fretting," she asked gravely, "or do you really know anything that is going to save Gene? Really and truly clear him and--and give him back to me?"

The seriousness and maturity of her manner had so impressed me--I was on the point of saying "had so imposed on me," and I don't know but what that would be the right word--that I took the hazard of answering her with the bare and simple truth.

"No, I don't know anything that is going to clear your brother. But I have a confidence which I feel sure is going to mean a victory. I can't say anything more. But it is a long time yet to the trial."

She seemed to shiver a little at the word, and withdrew her eyes. I waited for a moment, thinking that if she had any special anxiety on her mind she would of necessity betray it if left to herself, but when she spoke it was on a totally different matter.

"You are going away?" It was a statement rather than a question.

"What makes you think that?" I parried. I had indeed a very definite intention of going away, but I hadn't mentioned it to anyone, and I didn't care to have my plans known.

"Why, I thought you would probably go to hunt up Mr. Clyde. When you find him, I wish you would give him this." And she handed me an old letter in a faded envelope.

"But you are quite likely to see Mr. Clyde as soon as I do," I protested.

"I'd rather you had it," she said vaguely. "There is no hurry. Sometime he would like to have it. It is an old letter that my father wrote to my mother many years ago. He mentions Mr. Clyde in it, and says nice things about him, so I thought he might like to keep it."

"I am sure he would," I said warmly. "You are a dear little girl to think of it. And if you really want me to take charge of it, I will. I shall probably see Mr. Clyde sometime, or at least hear from him. But I shall be jealous of Mr. Clyde pretty soon. Here you give me an interesting letter, to be handed on to Mr. Clyde. And Miss Thurston gives me a lovely thick letter--but not for me at all, only for me to hand to Mr. Clyde. Happy Mr. Clyde!"

She listened with an uncertain smile and wistful eyes, as though she were holding back some brooding thought. There was something odd in her manner that half worried me.

"I have something for you, too," she said after a moment. "I have been looking through an old trunk of keepsakes that I keep at Uncle Howard's,--things that belonged to my mother, mostly,--letters and presents from my father, and all marked. She had kept that letter because it was written on her birthday, once, when he was away from home. And then--" he hesitated a moment, and then extended the package to me,--"this is for you, if you will please take it, as a keepsake."

"How sweet of you," I murmured. But when I unwrapped the packet, I was dumbfounded. It was a beautiful mother-of-pearl cigar case, mounted in silver, and set with an elaborate monogram in small diamonds. "Why, child!" I exclaimed in protest.

"It was my father's," she explained. "It was a presentation thing,--he was always getting them. You see, he was always doing splendid things for people. I like to remember that he was that kind of a man."

"But shouldn't it go to Gene?"

"No, he gave it to me for my very own, because I was so proud of it. I want you to have it,--to remember me by."

"I'm not going to forget you,--ever," I said, taking both her hands in mine. Forget her! I realized at that moment that I had taken her for granted as belonging in my life permanently. I simply could not imagine having her go out of it. The idea raised a queer sort of tumult within me.

"Then you will take it," she said, again pressing the case upon me. "Because I want you to have it,--I want you to."

"I am very proud to have it," I said gravely. To refuse that urgent voice, those beseeching eyes, would have been impossible. I'm not a graven image. She beamed at my acceptance. It was exactly like a rain-drenched flower lifting its head again.

"And I want a good-bye present from you to me, too," she said with a sort of breathless haste, leaning toward me in her eagerness.

"A 'good-bye' present! Why, my going away is not serious enough for all that ceremony. I shall be back before you really know that I have gone."

"But you'll give me something, won't you?" she persisted, putting my disclaimer aside. "Some little thing, you know! Your pencil, or something like that."

"I can do better by you than that," I cried gaily. I opened my office safe and took from it the locket with the emerald heart of which I have already spoken. It was the only thing I possessed which could by any stretch of courtesy be considered a worthy exchange for the cigar case. Her eyes widened like a child's at the sight of the trinket.

"But not for me, surely," she cried.

"For no one else in the world. I got it, intending it for this portrait of my mother,--which you see I am going to take out; it doesn't fit very well;--and then I discovered that my mother hated the idea of emeralds. So you see it hadn't been intended for her, really. It was waiting for you,--if you will accept it. You don't dislike emeralds?"

She did not answer except by a little choked laugh, but her face was eloquent for her. Suddenly she lifted the locket to her lips.

"Oh, come!" I cried, feeling that I must somehow break the tension under which she was laboring. "Perfume on the violets is nothing to such extravagance as kisses on the emeralds. Speaking of violets, let us go down and see if Barney has any to-day. He might, by luck. If he has, we'll buy him out."

I picked up the cigar case to put it away, and I confess I was on the point of putting it into my safe when some instinct struck me between the eyes and I pretended I had only gone there to lock up. I brought the case back in my hand, then formally transferred the cigars from my own case to it, tossed that into the waste-basket, and slipped the be-diamonded thing into my

pocket as calmly as though diamonds were my daily wear. She beamed, and for the first time the trouble that had been hovering in her eyes seemed to melt quite away.

"Oh, thank you!" she cried. "You *do* understand beautifully. I think you are a Story-Book Man yourself."

"Do you know, I always have felt that I had undeveloped capacities in that direction," I admitted confidentially. "Only it took a Story-Book Girl to find them out. Come, we will celebrate the day with violets."

Barney had heaps of violets, fortunately, and we had great fun finding places to fasten them upon her. Barney needed only a crumb of encouragement to show himself up picturesquely, and I was glad to set him going, for I wanted to see the shadow on Jean's face entirely disappear. They had become good friends on their own account, it seemed, and Jean was cheeking him delightfully in return for some of his sly remarks, when suddenly she stopped and I felt a little shiver run through her. Another man had stopped before Barney's stand,--Mr. Garney, the Latin tutor. His eyes were so eagerly intent upon Jean that he hardly took note of my presence.

"You look like Flora herself, Miss Benbow," he said, raising his hat. "Are violets your favorites?" (I saw that he was laying the information away for future reference, and I wanted to choke him on the spot.)

"They are to-day," she answered, demurely. "But I may prefer something else to-morrow." (Wasn't that neat, and dear of her?)

I was very glad to have this opportunity of seeing Jean and Mr. Garney together, because I admit that Mrs. Whyte's gossip had disturbed me. I therefore made no move to hurry Jean away, but pretended to talk to Barney while I watched the other two together. I fancy Barney understood the situation pretty well, for he glanced shrewdly from me to Mr. Garney and back, as though he would see if I, too, understood. But the result of my observation of their mutual attitude was wholly reassuring. Garney was crazy about her, of course,--that was obvious. But Jean was heart-whole and unimpressed. Of that I felt quite sure, and I recognized the fact with a relief

that measured my previous disturbance. So long as she was not dazzled, no harm could come of it. He couldn't marry her against her will!

How well I remember all the trivial events of that afternoon! After loading her down with violets, we went to a confectioner's and had some gorgeous variety of ice-cream, and I did my best to restore her to her usual rose-colored view of life. She responded beautifully, and we had a very gay time. But when I left her at her own door, finally, the wistfulness returned.

"You *are* going away, aren't you?" she asked.

"Why, I shall have to, in order to feel that I have a right to keep that cigar-case, since it was given to me as a good-bye present."

She stood very still for a moment, searching me with her deep eyes. Then she put out her hand impulsively.

"Good-bye," she said breathlessly, and fled into the house.

CHAPTER XVII

A VOICE FROM THE PAST

The next day brought me a strange letter from William Jordan, the defrauded farmer whom I had left in Eden Valley. He wrote:

"DEAR MR. HILTON:--I don't know as I ought to say anything, because maybe it ain't you after all, and if it be you, I suppose you don't want me to know or you would have guve your name, but at the same time I don't see

who else it could be, and I ain't used to taking presents without saying thank you. This is what I mean. I got a letter from the First National Bank at Saintsbury the other day and there was a cashier's check for \$1000 in it, for me, and nothing to explain why they sent it. I wrote to find out if it was a mistake and they say no they sent it per instructions but can't give no names. I suppose it is meant to make up for the thousand that Diavolo got, but nobody knows about him but you. Anyhow I am very thankful, and if you don't want the thanks yourself you can pass them on to the right party if you know who he is.

"Your respectfully,

"William Jordan."

I wrote promptly to Mr. Jordan telling him that I was not his unknown benefactor and that I was almost as interested as he could be in learning who the donor was. It was clearly significant. Whoever had sent it *knew!* Whether the restitution was prompted by remorse or by benevolence, it indicated knowledge of the loss. I laid the situation before Fellows, who already knew about Jordan.

"Do you think you can possibly discover who bought that check?"

He looked dubious. "Bank business is always confidential."

"Well, it's up to you, because I am going away for a trip. But I'll give you a starter. Howard Ellison's account may possibly show a similar debit."

"Mr. Ellison has been buying some new microscopes and other apparatus," Fellows said casually.

"How in the world do you know that?" I asked. Fellows was the most surprising fellow.

He flushed and looked embarrassed. I did not press the point, because I knew if he didn't want to answer he wouldn't.

"Ellison certainly had some connection with Barker," I said, watching him. "There was a check of Ellison's in Barker's pocket when he was killed."

Fellows looked up with interest. "Then that would belong to his widow. If he has one," he added, as an afterthought.

"Undoubtedly it would."

"May I ask if you know the amount?"

"Two hundred and fifty."

He looked disappointed.

"You think that isn't enough to induce her to come forward?"

"Oh, I suppose it might be worth claiming," he said slowly. "But I think his widow's chief gain is in her freedom from a rascal."

"You can't help sympathizing with the man who shot him, can you?" I said.

His cheek twitched. Perhaps it was a checked smile.

"I sympathize with him and I think he did a service to the community," he said in a low voice.

"You are probably quite right," I mused. "And yet the law would not see it in that light."

"Oh, the law!" he said, with the contempt that the blind goddess never failed to arouse.

Jean had been right in guessing that I meant to go away, but she was wrong in thinking that it was on Clyde's account. Probably I should have taken her more into my confidence, but it is always my impulse, both personally and professionally, to work out my theories by myself, without discussing them. The truth of the matter was that I was still on the trail of Diavolo.

I had found, in my accumulated mail, a report of his appearance in a small Missouri town at a date somewhat later than the shows on the route I had already traced. It struck me that there might be significance both in the date and the distance. The Jordan coup had probably frightened them a little. They had jumped to this far-away point for one engagement, and then had retired to private life, Barker coming to Saintsbury. On the bare chance of discovering some particulars that might have significance, I set out for this town. I believe that I was upheld secretly by a feeling that somewhere, somehow, sometime, the truth would be revealed, if I only followed the trail long enough.

At first I was met with the same baffling haze of obscurity. The local manager had taken Diavolo on as an emergency to fill a blank caused by the illness of a scheduled performer for that week. He doubted that he had appeared anywhere else in the State. He had never heard of him before, but was persuaded by Barker's fluency to give him a show, especially as his price was cheap.

"That manager of his, Barker, said that Diavolo was a great man who had given shows long ago but was getting too high up in the world now to have his name connected with the business. Said he was really out of the business, but was making a little tour incog. to get some ready money, and as he had the newspaper reports to show from other places, I took him on."

"Did he make good?"

"You bet. He's the goods, all right. Say, it's a funny stunt, isn't it? I'm used to fake mysteries, of course,--I see enough of that sort. But when you run up against the real thing, like what Diavolo put up, it makes you feel the devil is in it, for a fact. Don't it, now?"

"It does. And I want to catch him. Do you know anything that would help me to identify him? If you wanted him again, how would you go to work to find him?"

"Look up Barker."

"But Barker is dead, and his knowledge has died with him."

The manager shook his head. "You've got your work cut out for you, then. Barker was the only one to come into the open. Diavolo always stood back and let Barker do the talking. Might have thought Diavolo was deaf and dumb for all you heard of him until he stepped out on the stage. Then he talked all right,--stage patter, of course, but clever."

"You think then that this was not his first appearance on the stage?"

"Hard to say. Barker said he was an old un, but that he had given it up to go into something else,--something respectable. I didn't believe it at the time, on general principles, but maybe he was giving it to me straight."

I then followed the trail to the hotel where Diavolo had stopped, and here I encountered a girl who had her wits about her and knew how to use her eyes. She was the daughter of the landlady, and she acted as clerk, waitress, or chambermaid, as occasion required. She looked up with more than professional interest when I mentioned Diavolo's name.

"You mean that dude that was here in the summer and read people's thoughts at the Orpheum? Say, wasn't he great! Know him?"

"Not so well as I hope to. What did he look like?"

"Oh, he had black hair and a beard, and eyes that kind of looked through you. Say, it's hard to describe a man, you all look so much alike,--oh, *dress* so much alike, you know. But Diavolo was different, though I don't just know how to explain it. He was a sure-enough swell off the stage, wasn't he?"

"What makes you think that?"

"Why, I heard that man that was with him,--Barker, his name was,--I heard him say--You see, I was in the hall, and the transom of that room won't shut, so you just can't help hearing,--and Barker had a high voice anyway, and he said, 'You're a fool to give it up.' I didn't know what he was giving up, of course, but Barker went on, 'You can make money at this business hand over fist if you let me manage things, and you aren't making any money being respectable. What's respectability compared to the coin?' I often

thought of that afterwards. There's something in it. And still, respectability is worth something," she added thoughtfully.

"Was that all you heard? What did Diavolo say to that?"

"Oh, I couldn't hear anything he said, because he spoke so low, but Barker said, kind of laughing, 'Just remember that I've got you on the hip, my boy. If I mention in the right place that you and the hypnotist Diavolo are one and the same, where will you be then?' And Diavolo must 'a' said something angry, for I heard Mr. Barker say, kind of sarcastic, 'No, you won't kill me, nor you won't do any other fool thing. You'll join in with me for good and all and we'll gather in the shekels.' And then I heard something that sounded uncommon like a chair swung over a man's head,--I've seen them do that in the bar room when they got excited,--and Mr. Barker popped out of the room in a hurry. He was pretending to laugh but I could see that he was some scared inside. And I don't blame him. When Diavolo looked at you, you didn't want to say that your soul was your own unless he gave you leave."

"Did he ever look at you?" I asked curiously.

She tossed her saucy head. "That's different! No, he didn't try any of his hypnotizing tricks on me."

"Did you see any signs of bad feeling between them afterwards? Was there any more quarrelling?"

"Not that I heard. I guess the little man knew better."

"Which one do you mean by the little man?"

She shrugged her shoulders.

"Oh, Mr. Barker, of course. Not that he *was* much smaller than Mr. Diavolo if you weighed them, perhaps, but you know what I mean. Mr. Barker made me think of the man showing off the tiger at the circus. You could see that for all his show of not being afraid, he didn't dare turn his back for a minute."

That remark seemed to me to express the situation very vividly, and I had no doubt that her native shrewdness had correctly grasped the relation between the two men. And her positive testimony that Diavolo had threatened to kill Barker if the latter divulged his identity was certainly significant. Was it not most probable that that was what had happened later? How Eugene Benbow had become involved in the fatal affair I could not even guess.

After my interviews with the manager and the landlady's daughter, I seemed to have sucked Oakdale dry so far as information concerning Diavolo went. But instead of returning at once to Saintsbury, I determined to run on to Houston. I wanted to go over the records of Clyde's trial there, with a view to seeing whether there was any flaw or technicality of which it might be possible to take advantage. Clyde was probably fleeing the country as fast as he could make his way by the Underground, but there was always the possibility that his affairs might be brought to a sudden climax.

I thought that the critical moment had arrived with unceremonious haste when, after registering in a Houston hotel, I looked up and saw Clyde himself crossing the lobby to take the elevator. For a moment I hesitated whether to accost him or not, but he saw me and at once turned back and came over.

"Hello! You here?" he said easily. "Come on up to my room, if you aren't busy."

"All right," I responded, making an effort to match his casual manner.

When we reached his room, I saw that despite his self-possession he looked harassed and worn. The long inner strain had suddenly come to the surface.

"You didn't come for me?" he asked nervously as we shook hands.

"Certainly not. I had no idea that you would be so rash, to use no stronger word, as to come here."

He threw out his hands with a helpless gesture.

"I couldn't help it. It seemed all along as though I *must* be able to find some evidence in my favor if I came myself. I didn't dare to come before, for fear of a chance recognition, but now that the danger had appeared, I was driven to taking chances."

"How long have you been here?"

"Twenty-four hours."

"You are lucky to have remained undetected so long. Now I hope you'll stay in your room till night and then get away as quickly and quietly as possible."

"There's nothing else to do," he said heavily. "I have been to Lester. The places are all changed and the people are new. Everything has passed away--except the official record of the trial and the sentence."

"Of course it would all be changed," I said, as lightly as possible. "But I am going to examine the account of the trial and see if there was anything in the procedure which will give us a loophole. But you mustn't stay here to complicate matters. You must get away,--as I have told you before."

He did not answer for a moment, but sat with bent head. Then he spoke slowly.

"I wonder if life would be worth having on the terms you suggest. Expatriation, separation from everything that you care for, everyone who makes your public, from all your associations and ambitions,--"

"You could establish new associations. You would see life from a different angle, and that is no small advantage. And--pardon me--you would not need to go alone."

He looked up swiftly at that. "Never! Do you think that I would let--*anyone* make so mad a choice?--dower her with such a life as I must live henceforward, dodging in the shadows, afraid of hearing my own name, an outlaw and a skulker? If I regard life for myself as of dubious value under

such conditions, do you think I am so hopelessly mean as to ask anyone to share it with me?"

Of course I could understand his point of view, though he looked so handsome as he repudiated the idea that I guessed Miss Thurston would not have regarded the lot as wholly forlorn.

"No," he said, walking restlessly up and down the narrow room, "I'll take my medicine, but I won't involve anyone else. I'll make as good a fight as I can, and I won't skulk,--"

He was interrupted. There was a tap at the door, and immediately it was opened and a police officer stepped inside. He glanced from me to Clyde and picked his man unerringly.

"Mr. Clyde, I presume?"

Clyde nodded. "Yes. You want me?"

"Yes, sir,"--deprecatingly.

"You mean I am to go with you now?"

"Yes, sir,"--firmly.

Clyde smiled at me wryly. "I suppose I ought to know something of the etiquette of these affairs, but I am afraid I am not up. How about my personal papers? Will I be allowed to turn them over to you?"

"Certainly, unless the officer has a warrant for them," I said, with an assured air, intended to impress the officer.

Clyde took from an inner pocket a packet of letters, old and worn. "These are the letters that took me back from Lester," he said with a smile. "They were in the bag which I had left in my room at Houston. That was the only reason I went back that morning. If--well, if the time should come when you think best, give them to K. T., and tell her that I have carried them always. She will understand then,--"

"I will not fail," I said, much moved. So it had been Katherine Thurston all the time! "And that reminds me that I have here a letter which Miss Benbow charged me to give you,--an old letter written by her father. She thought you might care to keep it. Perhaps, under the circumstances, you'd better read it and then return it to me for safe keeping."

"I remember Senator Benbow very well,--a fine man!" Clyde said. He spoke absently, and I guessed that his mind was on other matters, but I had no intention of letting him disregard Jean's remembrance, or of letting the letter which she had treasured go into the hands of any careless court official.

"It concerns you, she said. Read it, and then I will take charge of it."

I handed him the old letter in its faded envelope, and turned to speak to the officer while Clyde should read it. The detective had watched us closely, but so long as Clyde made no move to leave the room--or to draw a revolver--he showed no disposition to interfere with our arrangements.

"How did you get information about him?" I asked the officer, merely to leave Clyde to himself for a moment.

"From Saintsbury. The police there are looking for him, and they wired us to be on the lookout."

"Then you agree with Jerome's theory that the villain always returns to the scene of his crime in the last act?" I said.

"Jerome? Does he say that?" The man looked puzzled. "Well, maybe he has found it so in New York. But I don't quite know what you mean by the last act."

A faint sound from Clyde made me turn. He was standing, supporting himself against the table, with a face so marked by emotion that I was startled into a cry. Whether his emotion was terror or joy or merely awe, I could not tell from his look, his face was so curiously changed. He held out to me the letter which he had been reading, and when I took it he dropped into the chair by the table and let his head fall upon his arm. I felt that it was

the unconscious attitude of prayer, and I unfolded the letter with more anxiety than I can express. This is what I read:

"ON THE TRAIN, NEAR LESTER, TEXAS,

"August 30th, 1895."

"MY DEAR LOVE:--Midnight has just blown across the sky, and here is the thirtieth,--the day for which I always stay awake so that I may send you a birthday greeting on the very first minute of time that has a right to carry it. I am throwing a kiss in your direction now, and if you are not conscious of it this minute, you will know when you receive this missive that although your devoted husband was traveling (and dead tired) he waited awake for the express purpose of saying 'Happy Birthday' to you into space.

"I left Houston an hour ago on my way to St. Louis, and we have just passed Lester, a little way station and our first stop. Whom do you think I saw there, of all persons in the world? Kenneth Clyde! I didn't know that he was in this part of the country, and I can't imagine what he could want of Lester, which, to judge from what I saw of it, consists of a platform, a freight shed, and three houses. He evidently had come up from Houston on my train, though I didn't know it until I saw him jump off at Lester and rush for the station agent, who was lounging by the shed. Whatever he wanted he didn't get it, for he was rowing the agent so hard that he didn't see or hear me, though I hallooed to him. I suspect that he found he had got on the wrong train by mistake and wanted to get back. If so, he will have to wait until morning, when the local comes along,--long enough to cool his fit of temper. I like Kenneth and believe he has the makings of a man in him, for all that he is somewhat unbroken. If I ever have a chance to hold out a helping hand to the boy, I'll certainly do it.

"I'll be home in a fortnight, and I count the days until I shall see you, my own. Kiss the two ingenious Gene-iuses for their dad. JOE."

I caught Clyde's hand and wrung it. "It's a miracle! That is, it is the new evidence which will give us a chance to re-open the case. And it is conclusive. Man, there could never have been anything more complete. And to come now, at this moment!"

"It is the helping hand that he offered," Clyde said, with an unsteady laugh. "And little Jean sent it to me, you say?"

"Yes. She had been looking over some old mementoes of her father, and she merely thought this letter might interest you because you were mentioned in it."

The officer apparently thought we were taking too much time mooning over old family letters. "If you are ready, Mr. Clyde,--" he suggested courteously.

"Yes, all right. I'm ready. You will take the necessary steps, Hilton?"

"Of course. I can't at this moment think of anything that would give me more pleasure. I'll go down with you at once."

But I didn't. As we stepped into the hall, a boy with a telegram came toward me. It was a forwarded message from Oakdale, where they had failed to find me:

"Come back to onct. There is a trouble on the girl. BARNEY."

"He means Jean," I exclaimed, handing the slip to Clyde. "I know he means Jean. Confound him for not being more explicit. What can have happened?"

"You'll go at once, of course?" said Clyde promptly.

"I can't go till a train starts." And then I remembered how my going would affect Clyde. "I'll have time to lay this letter of yours before the court before I go, in any event. And I shouldn't want to take any chances of a train wreck with that document in my pocket."

But you can imagine the fever I was in till I could get off. I saw the proper officials and took the necessary steps to secure judicial recognition of the important paper which was to restore Clyde's life, liberty, and happiness, and though he could not, of course, be released at a moment's notice, I had the satisfaction of seeing the procedure started that would enable him in a short time to face the world a free man, with the secret terror that had shadowed his life for fifteen years forever laid. But I went through it all like a man in a dream. Through all that was said and done I was hearing every moment, like a persistent cry,--

"Come back at once! Jeans needs you,--Jean needs you!"

After leaving the court house I still had hours--ages!--to wait at the station, and the pictures my imagination conjured up were not soothing company. I had telegraphed Barney that I was coming, but after that I could do nothing but fret myself to a fever waiting. I got off, finally, but all through the night and all the next day the singing wheels of the train were beating out the refrain,--

"She *needs* me! She *needs* me!"

CHAPTER XVIII

A RESCUE

I had rather expected that when I reached Saintsbury, Barney would be on hand to give an explanation of his urgent message, but no Barney was to be seen. I took a taxi to my office, which was across the street from Barney's stand. For the first time within my memory, Barney's stand was shut up and the owner gone. I told the chauffeur to wait and went up to my office.

Perhaps Fellows could throw some light on things,--unless he too had disappeared.

Someone was there. I heard talking before I entered,--the loud and unfamiliar tones of a man's voice. I went in without knocking. Fellows was there, at my desk. His start of surprise turned into unmistakable confusion as he saw me. His own chair was occupied by a pretty girl, whom I recognized at once as Minnie Doty, the houseworker at Mr. Ellison's, and the girl whom I had seen with Fellows in the park. The third person in the room was a tall man who stood before the window, hat in hand. Evidently he was the man whose voice I had heard.

"Well, I must be going," he said now after a moment's awkward pause, and moved toward the door. As he turned from the window the light fell upon his shaven jaw, blue-black under the skin, and I recognized him. He was the man Barker had addressed with a taunting question about his marriage.

"Don't leave the room," I said quietly, keeping my position before the door. "Fellows, introduce me."

A gleam of amusement crossed Fellows' sardonic countenance. Leaning against the edge of my desk, he indicated the seated girl with a slight gesture. "Mr. Hilton, allow me to present you to Mrs. Alfred Barker!"

"How do you do?" the girl said nervously, trying to rise to the social requirements of the occasion.

"How long have you known this fact, Fellows?" I asked, watching him closely.

"For some time," he said easily. "Miss Doty--Mary Doherty her name was originally, but she changed it to Minnie Doty when she ran away from her husband and got a position as houseworker at Mr. Ellison's--she answered our advertisement for Mary Doherty, to learn something to her advantage. I talked with her,--she didn't want to be known as Barker's wife or in any way connected with the inquest, so I agreed to keep her secret for a short time, because--"

"Because she was afraid this man, whose name I don't know,--"

"It's Timothy Royce, and I'm in the fire department. Anything else you would like to know?" the tall man threw in defiantly.

"Yes. I'd like to know if it was you who telephoned to Miss Doty, early in the morning after Barker was killed, 'Barker is dead and now you must marry me.' Was that you?"

"Oh, Tim!" cried Miss Doty,--or whatever she preferred to be called. "Oh, Tim, I knew they would find it out!"

"What of it?" said Royce doggedly. "Anybody is welcome to know that I want to marry you."

"I see. And when Barker asked you in the hall that day if you were married yet, and you drew back to hit him,--"

"It was his devilishness," said Royce concisely. "He had just spotted Min and me, and he knew well enough I couldn't marry while he was above ground, and he was rubbing it in. That night that he was killed, Min and I had gone out to talk things over. I wanted her to run away with me, but she said she couldn't while he was alive, and the next morning, when the patrolman on our beat told me Barker was dead, I tried to telephone Min. I couldn't go to her, because I was on duty. I knew it would break her up, being a woman, even though he was ugly as sin to her. Women are that way, I suppose. She even saw about getting him buried. But she was scairt to death of having to come forward and tell things and be talked about and have to appear at the inquest and all that, and letting it be known about her and me,--"

"Where were you the night that Barker was killed?" I asked abruptly. The man looked honest, there was an honest ring in his voice,--but suppose that after all I had the real murderer here in my office, covering his trail with palaver? Fellows' eyes were on the floor.

"We went out to Lake Park on the electric, Min and me," he answered promptly. And then he added unnecessarily, "We went out on the seven

o'clock car and stayed there all evening."

"Now I know you are lying," I said coolly. "Minnie was at home a few minutes before seven. I saw her let Miss Benbow in."

"There's a lie somewhere, but I'm not fathering it," Royce retorted hotly. "Miss Benbow was waiting in the back entry to be let in when we got there, and it was nearer three than two, because the power gave out and we were tied up for over two hours half way between here and the Park, waiting every minute to go on."

"Good heavens! Was Miss Benbow waiting outside till three in the morning?"

"Not outside,--in the back entry. It seems that she came home unexpected, and finding the house shut up, she waited, thinking of course Min would come home some time. And so she did. You see, everybody was away from home that evening, so Minnie was free. But Miss Benbow is a good sort all right. When Min said she'd lose her place if Mrs. Crosswell found out about her going off, Miss Benbow said right off that she wouldn't tell."

I held down any adequate expression of my feelings. I merely asked, "What sort of a place is the back entry?"

"Oh, it was quite clean and nice," Minnie spoke up from the depths of her handkerchief. "There's an old rocking chair that I sit in to peel potatoes and things like that. She went to sleep in the old chair and didn't come to no harm. We leave the entry unlocked so that the iceman can get at the refrigerator in the morning."

The thought of Jean cooped up in that dark back entry until three in the morning, even admitting the comfort of the old rocking chair, was sufficiently disturbing, but aside from that there was something perplexing about the story. Somehow it did not fit in with my previous idea of the events of that night. I struggled to fix the discrepancy.

"How about Mr. Benbow?" I asked Minnie suddenly. "You told me you saw him leave the house."

"I did!"

"When? If you were away from the house before seven,--"

"It was just as I was taking Min back home,--a little before three," Royce interrupted. "Just as we were going along the side of the house, past the room Min said was the library, the door opened, and Mr. Benbow came out and ran down the steps. Min didn't want him to see her, so we stood still in the shadow till he was in the street. Then we went on to the back of the house."

"You gave me to understand that it was earlier in the evening," I said reproachfully.

"I didn't say when," she murmured miserably. "And I couldn't tell you it was at three o'clock, or it would all have come out! And it is nobody's business, anyhow. I wish I had never answered that advertisement of yours!"

Fellows stirred slightly and his eye met mine. I caught his hint not to frighten the timid Minnie if I wanted to get any information from her.

"Did you tell Miss Benbow that you had seen her brother leave the house at three?" I asked, to fill time.

"Not then," she said meekly. "I didn't think about it. I told her the other day."

"Well, now you know the whole story, and I guess Min and I will go," said Royce,--and this time I did not try to prevent his departure. "Min wanted me to come, because that young man was hanging around to make her tell about things, and she didn't know what she had ought to tell and what not. But there ain't nothing we need to be afraid of coming out, only Min hates to be in the papers."

"Good day," I said. "And thank you for coming." As the door closed behind them, I turned to Fellows.

"Follow them. Don't lose sight of him. I don't feel sure yet that he has told the truth. We may need him."

"All right," said Fellows. "I've been having her watched for weeks to find out who her young man was. I just worked it out yesterday, and got them here five minutes before you came in."

"Well, make sure that we can locate him if necessary," I said. This was not the time to discuss his method of handling things.

The door had hardly swung shut behind him when it opened again and Barney stumped in,--an anxious-looking Barney.

"You're here! I missed you," he said.

"Barney, what is it?" I cried. To wait for him to put what he had to say into words seemed suddenly next to impossible.

"I don't know wot it is, sir, but it's trouble," he said doggedly. "She guv me a letter for ye, and here it is."

I tore it open, and behind the incoherent words I seemed to hear Jean's serious, appealing voice:

"DEAR MR. HILTON:--I just must write to you, because I couldn't bear it if you should ever think back and feel hurt because I hadn't. I can't tell you all about it, but I want you to remember that I have a reason, a very important reason, for what I am going to do. I can't explain, but it is on account of Gene. You will know afterwards what I mean.

"But there is one other thing I want to tell you. I have just found out that Minnie told you she saw Gene leave the house that night, as she was coming in. That is a mistake,--I didn't tell her so, because I didn't know what difference it might make. But Gene was fast asleep on the couch in the library when Minnie and I came into the house (and that was three o'clock) so if she saw someone going off by the side door just before, it wasn't Gene. You see, it was this way. When I ran back to speak to the girl I thought was Minnie, I found it wasn't Minnie but a friend of hers who works in the next

house, and she said Minnie had gone out but would be right back, so I went into the back entry and waited for her, because I wouldn't go to Mrs. Whyte's when she was having a party. And Minnie didn't come till three. When we got in I saw a light in the library, and I went in, and there was Gene asleep. I kissed him very softly but I didn't wake him up, because you know how boys are, wanting their sisters to be so awfully dignified. And though I was perfectly safe and comfortable waiting beside the refrigerator, it wasn't exactly dignified, and Minnie was scared to death about being found out. So I didn't wake Gene. And it has been a great comfort ever since to me to remember how peaceful he looked, because that shows he felt innocent in his mind and not with a guilty conscience to keep him awake like Lady Macbeth.

"I can't say anything more, because I have promised over and over again not to say a thing about the plan to save Gene, but I will just say this,--If you should happen to hear that I was married, will you please, *please* understand and believe that it was to help Gene, and that of course I must do anything for him.

"Yours faithfully" (a blot made it look like "tearfully"),

"JEAN BENBOW."

It was incoherent enough (except for the part about Gene, which I put aside in my mind to think out later,) but one thing seemed clear,--that she was married or about to be married, and that she had been lured into this madness by some delusion that in this way she was going to be able to help her brother. I glanced at the envelope. It had not been through the mails.

"When and where did you get this, Barney?"

"Yisterday, yer honor. She brought it to me herself. An' she wanted to bind me by great oaths out of a book that I wouldn't give it to you till afther to-day had gone by. Sez I, How can I give it to him till he comes here, an' his office man sez he won't be here for a week yet,--for I had been to find out on my own account,--God forgive me for deceivin' the innocent."

"It wasn't her letter, then, that made you telegraph, if you only got it yesterday. Was there anything else?"

His eyes fell, and he shifted his weight on his crutch uneasily.

"I saw her cryin' and I knew she was carryin' sorrow," he said at last, defiantly.

"When? Where? Tell me everything, can't you? Did you know anything of her plan to be married? Do you know where she is?"

"I know only what I see,--an' that was that she was unhappy. It was this way. She came by my stand many a time, asking this about you and that about you, an' when would you be back, an' I cud see that there was more on her heart than a gurrul like her should be carryin'. Then one night I saw her cryin',--"

"Where?"

""Twas in her own home, sure. Her head was down on the windy-sill, an' it was dark, and she never mistrusted there was anybody about the place watchin',--an' no more there was, seein' I wouldn't count an old codger like meself anybody. She was sobbin' and talkin' aloud to herself,--" He broke off and looked at me with fierce reproach. "I telegraphed for ye then, sor."

"And I came at once. Then this letter,--she brought you this yesterday?"

"That was it. An' if you hadn't come by this train, sor, I would have opened it meself." He looked at me defiantly.

"She says here--at least, I think she means to say, that she is going to be married,--and in mad foolishness. Wait till I see what I can learn by telephone."

I got Mr. Ellison's house first. Mrs. Crosswell, who answered, was sure that Miss Benbow was not at home, but did not have any idea where she was. Did not know whether she had taken anything with her when she left the house or not. I then called up Mrs. Whyte, explained that a letter from Jean

suggested a possible elopement, and begged her to go over and see if she could find out where Jean went, when she left the house, and whether she had taken any things that would indicate a contemplated permanent departure. I then took my head in my hands and thought, holding down the terror that surged up every other moment and almost made thinking impossible. "If you hear that I am married," she had said. Was it Garney? Never mind. Garney or anyone else, people could not be married without certain preliminaries, without leaving certain records. There must have been a license. I took Barney with me in the cab, and we whirled up to the court house.

"Have you any record of issuing a marriage license for Jean Benbow within the last few days?" I demanded of the clerk.

Why has the Lord made so many stupid people? My question had to be handed on from one clerk to another and record after record after record examined,--and here every wasted minute was wearing away this "day," this critical day, over which Jean had wished her secret to be kept. I held my watch in my hand while they searched. At last they found it.

"Looks like Jack put this memorandum where it wouldn't be found too easy," the successful searcher said significantly to his fuming superior.

It was quite possible,--for the memorandum showed the issue of a license for the marriage of Allen King Garney and Jean Benbow, and it was dated the day before. She had stipulated with Barney that I should not receive her letter till after to-day, which meant that this was *the* day. And here it was drawing toward five o'clock.

Then, out of the intense anxiety which fused all thought and feeling into one passionate will to save her, came the inspiration. She had said, on that drive when I took her and old William Jordan out into the country, that if ever she were married it would be *there*, in the vine-covered church of the old suburb where her mother had stood a bride. The recollection was almost like a voice,--"Don't you remember?" I did,--oh, I did! Every word, every look. My hand was shaking as I turned the pages of the city directory, trying to identify the church which I knew only by its location, and to discover the name of its minister. Then I turned again to the telephone. There was no

connection with the church, but I succeeded at last in getting the minister's house.

"No, Mr. Arnold is not at home," a gentle feminine voice answered. "He has gone to the church to perform a marriage ceremony."

"Can you catch him?--stop him? Is it too late?" I cried desperately over the wire.

"Oh, the wedding was at four o'clock," the shocked voice answered. "Oh, is there anything wrong? I am sure Henry didn't know,--we thought it so romantic, a secret wedding,--" I hung up the receiver regardless of her emotions and went back to my cab on the run, while the listening office force enjoyed the sensation.

"Go to the little church at the corner of Olympia and Hazel Streets," I said to the chauffeur, "and get there as soon as you can without being arrested. *Get there.*"

Then I told Barney what I had discovered. There was no reasonable ground for supposing that I would be in time to prevent disaster, yet I must go on, even against reason. And surely Providence would interfere to save her! I could so easily understand how she had been misled. Garney had made her believe that he could help Gene. Perhaps he had suggested that I was not giving the case proper attention. He had offered some impossible assistance if she would marry him, and she, with her romantic, schoolgirlish, unreal ideas of the way things were done in the world, had consented all the more readily because it involved a sacrifice on her part.

The cab swung up to the curb, I jumped up the church steps, and pushed my way through the swinging baize doors. The room was dim, but I could see a group of three before the altar,--Garney, yes; and the minister; and Jean. They turned to look as I stormed down the aisle, and moved slightly apart. I caught Jean's hands in mine and looked into her eyes.

"Jean! Are you married?"

A mist of tears dimmed the brightness of her eyes. "Oh, I'm *glad* you've come," she said, quiveringly.

Still holding her hands I turned to the minister. "Have you married these two, sir?"

"Not yet. The young lady appears to have been detained,--"

"I took the wrong car! I was just explaining,--"

For a moment the room swam before my eyes. I was in time!

"It was just an accident," Jean was saying. "Then when I found I was wrong, I came back as soon as possible and--now I am ready!"

"Ready!" I crushed her hands until she drew them away with a little gasp. I turned impatiently to Garney, who stood motionless, white-faced, watching her. Of course he knew the game was up, but he did not move.

"Go!" I said. "I'll settle with you later."

I don't know whether he heard me. His eyes were fixed upon Jean with mingled anger, longing, and despair.

"You waited till he should come! You left word for him to follow you!" he said pantingly. "In spite of your promises, you never meant to keep your word. You do not care about your brother. You thought you could trick me--"

"Oh, no, no!" she cried, breaking from me and going to him with hands extended. "I am here! I am ready. I will marry you now,--"

"Jean!" I cried.

"You don't understand," she said, turning breathlessly to me. "He is going to help us save Gene. He knows something,--he said he would tell me if we were married,--"

"Nonsense. It was a trick. If Mr. Garney has any information that will benefit your brother,--"

"He might hand it over to you, I suppose!" Garney said with a sneer. "Very well, I will. Investigate that ex-convict that you keep in your office. You may find something that will be of interest. But if you hadn't come--" He moistened his dry lips, then turned abruptly and walked up the aisle. I saw that he tried to hurry, but he walked unsteadily and steadied himself by the pews. I once saw a gambler who had staked everything on a desperate game, and lost, stagger like that from the room.

"What did he mean about an ex-convict?" Jean asked in a shocked voice. "Not Mr. Fellows? And what would he have to do with it?"

"Nothing," I said promptly, putting certain uncomfortable recollections out of my mind. "Don't you see that Mr. Garney was merely deceiving you? He had nothing to tell, no help to give you. He merely wanted to marry you. Jean, Jean! How could you do so mad a thing?"

"For Gene!" she said reproachfully. "Why, I'd do anything. And Mr. Garney said he surely would tell me when we were married, and if I cared for Gene I would do it. He wouldn't tell me beforehand, because he--he doesn't like you!" She dropped her eyes in delicious confusion. "You see, he is--*jealous* of you! He didn't want me to wear this!" She touched the locket she wore on a chain about her neck,--the locket I had given her just before leaving Saintsbury.

"How did he know I had given you the locket?" I asked.

"I don't know. He just guessed." She looked shy and conscious--and charming. But something puzzled me.

"You didn't tell him? You are sure of that?"

"Why, yes," she said, looking surprised. "I never told anybody. Not anybody at all. It was a kind of a--secret."

How do ideas come to us? I thought I was wholly absorbed in Jean, and was conscious merely of a desire to soothe and calm her by taking things naturally, but now something seemed to nudge my attention and to urge, "Don't you see what that means? Don't you see? Don't you see?"

I did see--in a flash. That locket! It had not been out of my locked desk until I gave it to Jean, except once,--the night of Barker's murder. I had taken it to Mrs. Whyte's that evening, and had shown the portrait to Miss Thurston for a minute. I was sure she had not even seen the outside of the case, which was out of my hand but a moment. But later that evening, while I sat in Barker's office waiting, I had taken the locket from my pocket and had sat under the gaslight examining it--in full view of the concealed murderer who had watched me from the dark inner room, and who, a few minutes later, shot Barker from that same concealment. The whole thing flashed before my mind.

"Wait here," I said, and dashed for the door by which Garney had left. He was a block away, evidently waiting for a street car which I could see approaching.

"Take me down to that car," I said to the chauffeur, and we were off at the word. Barney was still in the cab. "You go back with the cab, Barney, and take Miss Benbow home. I must see Garney before he gets away."

We reached the street just as the car, which had halted to take on Garney, started up again. I sprang from the step of the cab to the rear platform of the car. Garney turned and looked at me with surprise that changed quickly to anger.

"Are you following me?" he demanded under his breath.

"I told you we should have to have a settlement."

"Settle what? You've won," he said, with a shrug. He went inside, while I remained on the platform, thinking out a plan of action. When the conductor came for my fare I said a few words to him. He looked amazed.

"When we pass a policeman, slow up a bit," I continued. "If the man tries to get off before we pick up an officer, help me stop him. That's all."

We swung around a corner, saw a policeman standing outside the curb,--and the car stopped without signal. I jumped off and explained the situation to him in a word. He at once boarded the waiting car with me and approached the unconscious Garney.

"You're wanted," he said quietly.

Garney rose, furious but also frightened. He looked at me.

"What damn foolishness is this?" he said, trying to bluster. "I haven't time for any nonsense. I have to catch a train. I'm going away."

"Come on, and don't make a disturbance," the officer said.

"But I tell you it is a mistake. You'll suffer for it. It is not a criminal offense to try to get married."

"Perhaps not," I said, taking the word from the police officer without warrant. "You are under arrest because I charge you with the murder of Alfred Barker."

I never saw a man faint before. He crumpled up like a collapsed balloon. We lifted him to the sidewalk so that the car could go on, and the patrolman called up the wagon. But before Garney came back to consciousness, I had lifted the moustached lip that masked his narrow jaw. The crowded teeth were pushed out on each side to form a V, exactly like the model made from the apple bitten in Barker's office.

CHAPTER XIX

CARDS ON THE TABLE

The crowd dispersed as the patrol wagon took Garney and the officer away, but one man lingered and fell into step with me as I turned away. It was Mr. Ellison. I had not noticed him in the crowd.

"What's all this?" he asked, twisting his head to look up at me, bird-fashion.

"Walk with me, and I'll tell you," I said. "I am going down to see Benbow."

And as we walked I told him of the surprising developments of the last few hours,--that Garney, the Latin tutor, and Gene's friend, was the man with crooked teeth who had been eating apples in Barker's inner office while waiting for his victim, who had observed and recognized my locket; and that Garney was Diavolo the hypnotist who had threatened to kill his partner, Barker, if his identity were disclosed. (I may say here, to anticipate events which befell later, that this identity was absolutely established by Dr. Shaw, the dentist who had extracted a tooth for Diavolo,--the first case in the law reports, I believe, where identity was established by the teeth. By that time every link was so clear that Garney's confession was hardly needed,--though he did break down in the end and make a plea of "Guilty.")

Ellison listened with his peculiar interest,--an interest in events rather than in persons, and in ideas more than either. At the end he nodded his alert head rapidly.

"Yes, I knew Garney had practised hypnotism but I thought it was years ago. Barker told me, in strict confidence."

"Barker!"

He nodded. "Yes. I didn't say anything about it, because people seemed to think it wasn't good form for me to have any civil relations with the man who had killed my second cousin, but as a matter of fact, I knew him fairly well. Gene would turn white at the mention of his name, so I didn't mention it. That check for \$250--you remember?"

"Yes."

"Well, that was to pay for a course of lessons in hypnotism. He promised to get me a practical teacher who had been a public performer,--Garney, in fact. He hadn't made the arrangements yet, but he was confident that he could bring it about. And I was eager to have the opportunity to investigate the matter, scientifically, you understand. If he could teach me how to do it, I would understand the thing,--the rationale of it, I mean. But it was strictly confidential, because of Garney's position in the university."

"Did he know you knew?"

"No. Barker was killed before he could arrange it. I went to his room the next day, to see if I could by chance recover that check, which hadn't been presented at the bank, but his dragon landlady gave me no chance,--and then you told me that you saw it in his pocket the next day. So I let things take their own course."

"Somebody did break into his rooms that night," I said. "That has never been cleared up."

"Garney!" said Ellison, shrewdly. "He has in his possession certain books which I know Barker had in his room the day before. He undoubtedly removed them, with any papers or other matters that might have connected him with Barker or revealed his practices."

"How do you know he has them?" I asked, amazed.

"Oh, I have made a point of seeing a good deal of Garney lately. You see, I am interested in the occult, scientifically. And since Barker couldn't act as go-between, I have been cultivating Garney on my own account."

"Yes, and given him a chance to work on Miss Benbow's feelings," I groaned.

"Why, it never occurred to me that he was interested in her," he said blandly.

"That was too obvious to attract your attention, doubtless," I could not refrain from saying. "Well, you have cleared up a good many points, Mr. Ellison, but I'd like to ask another question. Did you send a thousand dollars to William Jordan, and if so, why?"

For the first time he looked embarrassed.

"Why yes," he said, nodding his head deliberately. "Jean told me about him and his loss. It struck me that it was an unnecessary piece of hard luck that he should suffer as an individual for an advancement of knowledge which will benefit the race. He didn't care anything about hypnotism scientifically. I did. I had fostered its development, so far as lay within my power. So, in a manner, I was responsible for his loss. Not immediately, of course, and yet not so remotely, either, since I was encouraging Barker. At any rate, I felt that I should be more comfortable if I made it up to the old farmer. When hypnotism is no longer a mystery but an understood science, such things won't happen!" He beamed with enthusiasm, and I saw that I had never understood the man. He was an idealist.

"I hope they won't," I said doubtfully. "But hypnotism seems to me devil's work, both for the hypnotizer and the victim. Think of Jordan, and look at Garney. Aside from his crimes, the man is somehow abnormal. He has the look of a haunted man. He faints like a woman when he is discovered. No, no hypnotism for me, thank you. But in any event, your action in reimbursing poor old Jordan does you credit."

He waved that aside. "What I should like to know," he said, changing the subject, "is how Gene became involved in this affair. If Garney shot Barker, why did Gene say he did? He isn't as fond of Garney as all that. You don't suppose--" He stopped suddenly and looked at me hard. "You don't suppose that Garney hypnotized him, *and sent him to shoot Barker*? That would be neat! Damnable, of course, but damnably neat!"

"I don't know," I said slowly. I had been afraid to face that idea myself. "I am going to see him now. Perhaps, with the news of Garney's arrest for a lever, I may get the truth from him. If you don't mind, I want to see him alone."

"All right. I'll leave you here."

But as he turned away, Fellows came up from behind and fell into step with me. I think he had been watching for the chance.

"Royce's story is all right, Mr. Hilton," he said. "The cars *were* tied up on the Park line the night that Barker was shot. And I have seen the conductor. He knows Royce, who is a fireman at Engine House No. 6, and he remembers seeing him on the stalled car, with a girl."

"A good alibi, but he won't need to prove it now," I said. "We have found Barker's murderer. It is a man named Allen Garney."

"Oh, ho!" Fellows exclaimed, in obvious surprise.

"Do you know him?" I asked, recalling the damaging charge which Garney had made against Fellows.

"I know who he is, and I know that there was something between him and Barker in the old days,--on the quiet. Garney didn't care to be seen with him, but in a way they were pals. In fact, I went to see him the other day to make some inquiries about Barker's past. He was rather rude in getting rid of me."

"You frightened him. He didn't want to be identified as having any connection with Barker. I see. That's why he used your name as a scapegoat to turn my attention from himself. He suggested that you might have shot Barker yourself, Fellows!"

"Did he?" said Fellows, grimly. "Well, if I had, it would only have been the execution of justice. Barker was a murderer."

"You mean in killing Senator Benbow?"

"More than that. Do you remember the story that the Samovar printed about Mr. Clyde?"

"Well, rather!"

"It brought to my mind a story that Barker once told me. When I was a fresh kid from the country and he was teaching me the ways of the world and of the race-track, he told me that he had once stabbed a man in a Texas hotel for cheating at cards. He said that he and three other men were playing in the room of one of them, and that was the one that was killed. He told me that another man was arrested, tried and convicted, while he sat in the court room and watched the proceedings."

"What a monster!"

"He told the story merely to point out that every man had to take his chances,--good luck or bad,--just as it came. He was a great believer in luck. It was his luck to escape and the other man's luck to be convicted by mistake. But he said that the man escaped and was not hung. The Clyde story was so much like Barker's story that I wondered whether it might not be the same, and I went to Garney to ask if he knew whether Barker was the man who killed Henley. He would not admit knowing anything, but he let slip a word in his first anger that he could not take back. It *was* Barker."

"The villain! And he claimed to be merely a spectator in the court room, and that that was how he came to recognize Clyde! He probably studied his face pretty carefully during the days when he was watching Clyde in the dock where he knew he should have been himself! I don't wonder he recognized him. What a man!"

"I wonder if we can prove it," exclaimed Fellows.

"We have just discovered an old letter which will completely establish an alibi for Clyde,--I'll tell you the details later. But whether we can get your story before the court or not, it is undoubtedly the inner truth of the matter and it rounds out the story of Barker's villainy very completely. And he met the treachery he dealt out to others. He was slain by the hand of the false friend he trusted and whom he probably had never wronged."

"But if Garney killed him, what about Benbow?"

"I am going to see him now, and see if I can find out what it is that he is concealing. I'm glad I don't have to swear out a warrant against you,

Fellows!"

Fellows smiled quite humanly as he turned away.

I found Benbow thinner, more nervous, and less self-possessed than I had ever seen him before. I was glad to see these signs of disintegration in his baffling reserve.

"I have had a strenuous afternoon," I said, as we shook hands. "Since four o'clock I have discovered Barker's widow, spoiled an elopement, and had your Latin tutor, Garney, arrested."

He looked surprised, naturally, but nothing more. "What for?" he asked.

"For complicity in a murder," I said, watching him closely.

"Oh, impossible!" he exclaimed. "Not Mr. Garney!" His natural manner, his genuine look of surprise and inquiry, were disconcerting. I saw I must work my way carefully.

"Did you know that Mr. Garney had hypnotic powers?" I asked.

Ah, there my probe went home! His tell-tale face flushed and his eyes evaded mine.

"I can tell you nothing about that," he said, with dignified reserve.

"Perhaps I may be able to tell you something that will be news to you, even though you knew of his practices. He is known on the vaudeville stage as Diavolo, and he has toured, giving exhibitions in hypnotism."

"I didn't know that," he said,--and I could not doubt his sincerity. "It must have been a long time ago."

"No longer ago than last summer. He kept his own name from the public. But I infer that you did know something of his practices in private?"

"Yes," he said, hesitatingly.

"Did you ever allow him to hypnotize you?" I asked abruptly.

He was obviously discomposed, but he tried to cover his embarrassment by assuming an air of careless frankness. "Oh, yes. I believe I was a good subject. Mr. Garney was trying to develop my mental powers by hypnotism. He told me some remarkable accounts of idiots who had been mentally stimulated by hypnotic suggestion to do creditable work in their classes."

"Was that the direction in which his suggestions were made?" I asked, as casually as possible. I must try to get from him, without disturbing his sensibilities, as clear an account as he could give me, or would give me, of his peculiar relations with Garney.

"Oh, yes. It was just to help me with my Latin. And it did help," he added, defensively. I could see that he was not entirely at ease over the admission.

"How often did you put yourself under his influence?"

"Oh, I don't remember. Half a dozen times, perhaps."

"Did you remember afterwards what he had said or done to you while you were hypnotized?"

"Not a thing! I just went to sleep, and woke up. It isn't different from any other kind of sleep," he explained, with a youthful air of wisdom, "only that a part of you stays awake inside and takes lessons from your teacher while you don't know it."

"So I understand," I said gently. His assumption of superior knowledge touched me. "Was it hard to go to sleep?"

"The first time it wasn't easy. Something inside of my brain seemed to snap awake just as I was going off,--over and over again. But at last I went off. After that it was easier each time. Once he hypnotized me in class and I found I had been making a brilliant recitation, though I didn't remember anything about it myself. And once he hypnotized me while I was asleep, and I never knew it at all until he told me afterwards and showed me some things I had written while asleep."

"Did Mr. Garney ever speak to you of Alfred Barker?"

"No." His manner froze, as it always did at any mention of Barker.

"You did not know, then, that there was enmity between the two men?"

"No. I didn't know that Mr. Garney knew--*him*--at all." He swerved from pronouncing the name.

"Yes, Barker had acted as his business manager in the vaudeville business, and they had quarreled. Now tell me something else. Did Garney hypnotize you the day that you hunted up Barker to shoot him?"

"No." A look of dawning uneasiness and indignation crossed his face.

"Did you see him that evening at all?"

"No," he said, with obvious relief.

"Now will you tell me again just what happened that evening,--the order of the events?" (My object really was to see whether he would change his story. I had no need to refresh my own memory, as his former account was entirely clear in my mind.)

"Beginning with the banquet?" he asked.

"Yes, begin there."

"Well, everything went smoothly until Jim Gregory mentioned seeing Barker on the street. That spoiled the evening for me. I got away as soon as I could."

"Alone?"

"Yes."

"Just where did you go?--what streets?"

"Oh, I don't know. I didn't notice. I went home and threw myself down on the couch in the library and read Cicero to get my mind quiet. Things were whirling so in my brain!"

This was new! Evidently his memory was clearer than when he made his first statement to me. "Do you remember what you were reading?" I asked, to pin his recollection definitely.

"Yes, it was De Senectute,--an English version Mr. Garney had lent me."

I stopped to think. That was the book young Chapman had had in his hand the day I hunted him up,--the day after the murder.

"Are you certain it was that book and no other you read?" I asked. I felt that I had a thread in my fingers,--a filmy thread that might break if I did not work carefully.

"Quite sure. I picked it up at first just to read anything, because it was lying there. Mr. Garney had left it that afternoon. And then I became interested in it. It was quieting. It made me feel that after all life is short and what was the use of cherishing ill-will and bitterness towards--well, even a rascal like Barker. It would all be over so soon."

"And with that thought in your mind, you went off and shot him, did you?" I asked with a smile.

He looked perplexed, and did not answer.

"You didn't have another copy of De Senectute about? I want to be sure."

"I am sure. Mr. Garney left it with me that afternoon and asked me to pass it on to Chapman when I had looked it over."

"And you did?"

"No. I--I haven't been back to the house, you know, since--since that morning."

"But Chapman had it the next day. He said Mr. Garney had given it to him."

Gene looked puzzled and thoughtful. "I don't see--"

"As I understand it, the servants were away that evening. Mr. Garney could not have come in unless you yourself admitted him, could he?"

"Oh, for that matter, he had my latchkey for the side door,--directly into the library. He used to drop in--" He hesitated, and his momentary embarrassment gave me the clue.

"When he came to try his hypnotic stunts?" I asked lightly.

"Yes," Gene nodded, looking relieved at my manner.

"But he didn't come that evening?"

"No. I dropped asleep. I slept awfully hard. When I woke up the gas was on full blaze." He caught himself up and looked startled.

"It was morning, then?" I said, quickly.

"Yes," he said slowly, evidently trying to puzzle something out. "I must have gone to sleep--again."

"But you don't remember that, do you?" I asked. "You think you must have,--but do you *remember* it, as you do the first?"

The perspiration sprang out on his white forehead. "I remembered when I woke up that I had killed Barker in the night."

"You remember that you thought in the morning that you had killed Barker in the night," I said sharply, "but do you remember killing him? Do you remember, as a matter of fact, going to his office? Tell me something you saw or did, to prove that you actually remember the events of the night."

His face was pitiable. "I can't! I remember going to sleep over the De Senectute and I remember waking up in the morning with the gas burning in the sunshine,--and I know, of course, that I went out in the night and killed Barker,--*but I can't remember it!* Do you suppose I am losing my mind?"

"I think you are just recovering possession of it," I said, unsteadily. "By the way, I told you a few minutes ago that Garney had been arrested for complicity in a murder. You don't ask whose."

"Whose?" he demanded, startled.

"Alfred Barker's."

"I don't understand--at all," he faltered.

"Garney was in Barker's inner office the night Barker was shot. If you were there, you saw him."

He shook his head. "I did not see him."

"Did you see me?"

"Where?"

"In Barker's outer office."

"No."

"Yet I was there. I was the strange man who came in and waited. Do you remember you told me you saw a stranger come in?"

"I--remember that I told you."

"But you don't remember what the man looked like? You didn't recognize me as the man?"

He put his hands up suddenly and clutched his head. "Do you think I was out of my head that night? Was I--was I--under his influence? Do you mean that I was hypnotized when I shot Barker?"

"That is what I have thought possible, but I have changed my mind on that point. Benbow, I don't believe that you were out of your room that night after you returned from the Frat supper."

He was shaking so that he could not speak, but I saw the piteous questioning of his eyes.

"I'll tell you briefly the points that have made the matter at last clear, in spite of yourself," I said, reassuringly. "Tell me this, first,--when you came into the house that evening, after you left the boys at the banquet, was the house lit up or dark?"

"Dark. I lit the gas in the library. I did not go into the rest of the house."

"Exactly. Well, I saw the gas lit in the library that evening, and it was just a few minutes before ten. I had supposed that your sister and at least one servant were in the house, but I have learned they were not. Therefore, when I saw the light flare up just before ten in the library, you were there."

"Yes," he said, trying to follow.

"You threw yourself down on the couch and read Cicero from a book which the next day was in the hands of Chapman. You don't know how long you were reading, but you were sound asleep on that couch at three o'clock the next morning, for your sister came in and saw you."

"Jean?" he murmured, perplexedly.

"Yes, Jean. Never mind the details. Now it is not humanly possible that after reading yourself quiet at ten you could have reached Barker's office by foot before I reached there in a taxicab so as to secrete yourself in the inner room before I came. Neither is it humanly possible that after shooting him at eleven, you could have fled for your life down the fire-escape, skulked through the streets, and then come home and gone composedly to sleep by three, only to wake at six and remember for the first time that a gentleman who has had the misfortune to shoot a man is in honor bound to give himself up to the law."

He drew his hand over his eyes in a dazed fashion.

I went on. "Minnie, the maid, and her escort, came home at three that night and saw a man leaving the house by the library door. She took for granted

that it was you. But your sister came into the room a few minutes later and saw you asleep on the couch. The man who left the house was not you."

"Who was it?" he asked, very low.

"It was the man who had your latchkey to the library door. It was the man who picked up the De Senectute which you had been reading and passed it on to Chapman the next day. It was the man who knew how to hypnotize you in your sleep and make your brain believe what he wished it to believe. *It was the man who had just shot Barker from his inner office and who impressed upon your dormant brain the scene he had just been through and made you believe you had acted his part in it.* It was Allen Garney."

Benbow looked too paralyzed to really understand the situation. That didn't matter. All the missing pieces of the puzzle were now in my hands and I saw that I could prove my case and clear Gene in spite of his false confession and his traitorous memory. I thought of Jean! It was another and the most convincing indication of Garney's abnormality that he should have desired to wed the sister of his victim. That was strangely revolting. But his passion had carried him beyond his judgment.

"The chances are that hypnotizing you was not a part of his original plan," I said thoughtfully, going over the links in my own mind. "He shot Barker because Barker knew too much about his past, and was not to be trusted to keep it a secret. And his suspicion was justified. Barker had already given his secret away to Mr. Ellison. Whether he knew that instance of bad faith or not, he evidently felt that there was no real safety for him until Barker was dead. So he laid a careful plan to kill him, and carried it out. But an unsolved murder mystery never ceases to be a menace to the murderer. The police would make investigations, and his past connection with Barker might possibly come out. The fact that he searched Barker's rooms the next night shows that he was not easy on that point, even then. There might have been papers in Barker's possession which would turn inquiry upon him. So,-you offered him the opportunity of making him secure."

"I? How?"

"He saw the light burning in your study. He came in,--perhaps to establish an alibi, perhaps merely to get away from himself. He found you asleep,--a condition in which he had already hypnotized you. He saw his opportunity. By making you believe that you had shot Barker, by making you confess, he would forever turn the possibility of inquiry from himself. There would be no mystery to provoke backward inquiries along the past. And, if I may say so, you had made it easier for him to fix that idea in your mind because, as a matter of fact, you had harbored ideas of vengeance against Barker. The thought of killing him was not wholly alien to you. You had prepared the way for the impression Garney wanted you to have,--and he knew that fact. You had revealed that side of your mind to him. He used the bitterness which was already there as the foundation for the idea of revenge. Therefore, when you awoke, and came back to your senses, the idea that you had shot Barker did not strike you as an impossibility. You remembered it dimly, but there was no intrinsic impossibility in it. Do you see that?"

"Yes," he said, in a low voice. "I never could understand why some points were so clear and positive in my mind, and yet I could not remember the connecting links. It was like remembering spots in a dream."

"Those spots were the points Garney had emphasized to you, undoubtedly. He took you with him, mentally, step by step, but things he failed to touch upon would be blank in your mind. How about your revolver, Gene? Did he know where you kept it?"

"Yes. I showed it to him that afternoon."

"Then undoubtedly he took it away when he left. And he remembered to impress upon you the thought that you had thrown it away. He was careful,--yet he betrayed himself unconsciously. Those apples which he ate without thought were a stronger witness against him than his careful tissue of lies. But it's all right now. Take my word for it. It was the cleverest scheme a criminal brain ever worked out, but the righteousness on which the world is built would not permit it to triumph. As soon as we can get the matter before the court, you will be free."

"Mr. Hilton, there is a telephone call for you at the office," interrupted an attendant.

I shook hands with Gene and went to the office, where I found the receiver down, waiting for me. I hardly recognized Katherine Thurston's voice at first.

"Is that you, Mr. Hilton? Oh, thank goodness I have found you! Jean has gone away. I'm terribly worried--"

"What makes you think she is gone? Didn't Barney bring her home in a cab an hour ago? I told him to."

"He did. I was waiting at Mr. Ellison's for news when she came. She told me everything,--the poor child had been terribly imposed on. That man made her believe that he could clear Gene,--"

"So he could have done, if he had wanted to!"

"Well, that is what she believed, and so she consented to marry him. But of course she was dreadfully worked up over it all, and when she came home with Barney and told me about your coming and saving her at the last moment, she was so excited that she was hardly coherent. So I made her lie down and try to rest, and I left her in her room. Just now I went back to see her, and she was gone. Minnie says she went away, with a handbag, immediately after I left, and said that she was not coming back. When I remember the nervous and excited state she was in, I am dreadfully worried."

"How long ago did she leave the house, according to Minnie?"

"Nearly an hour ago. Do you think she could possibly have gone to that man?"

"Not at all," I said promptly. "He is in custody."

"But he might have some agents--"

"I think not. And Jean is a wise child in her own way. The chances are that she is safe somewhere. But I'll let the police know, and I'll go down to the

railway station myself. I'll call you up from time to time to see if you have any news."

I reported the matter to police headquarters, and while I could see that they were not greatly impressed with the urgency of discovering a young woman of twenty who had been lost sight of for less than an hour, I confess that I felt more apprehensive than I had admitted to Miss Thurston. You see, Jean wasn't a reasonable young woman. She was--Jean.

CHAPTER XX

THE ULTIMATE DISCOVERY

Jean had so few acquaintances in Saintsbury that there was little chance of finding her off on a visit. I went to the railway station and tried to discover whether anyone there had seen her or sold a ticket to Dunstan, but I found nothing. I believe it was superstition more than anything else that sent me finally to Barney. He was at his stand, selling papers as calmly as though this chaotic day were like any other.

"Barney, Miss Benbow is lost," I said, without preliminary. "She has left Mr. Ellison's house, and told the maid she was not coming back. I have been to the station to inquire. For heaven's sake, suggest something that I can do."

Barney listened sympathetically, but without any manifestation of concern.

"Gone, has she? And not coming back! And I'll warrant you haven't had a chance to talk to her since I got her home from the church."

"Of course I haven't. I've been at the jail. Barney, we've arrested Garney, and he is the man that killed Barker, and Benbow will be cleared. But I am not going to talk about anything until I find that girl. So don't ask questions. Tell me something to do."

Barney's eyes grew round as saucers, but he was an old soldier. He knew when to obey. But he would do it in his own way.

"I'm thinking, Mr. Hilton, that if ye mind your own affairs, ye'll best be mindin' hers."

"Is that impertinence, Barney?"

"Divil a bit, your honor, and you with a face on you that would scare a banshee into saying prayers!"

"Then, I am in no mood for guessing riddles."

He gave me a glance that made me feel inexpressibly young.

"I'm thinkin' I saw the young leddy go up yonder," he said, nodding toward the building where I had my office. "If she was goin' away forever, maybe she wanted to say good-bye!"

Could it be possible? I dashed across the street and up the stairs without waiting for the slow elevator. I opened the door,--and there lay a pathetic little heap on the Daghestan rug on my floor.



There lay a pathetic little heap on the Daghestan rug on my floor.
PAGE 290.

There lay a pathetic little heap on the Daghestan rug on my floor. Page 290.

It was a moment before I realized that the tired child was merely asleep. I had dropped down beside her and lifted her head upon my arm, when she opened her eyes with a start. Then something wonderful and dazzling swam up from her unconscious eyes to meet my gaze,--and I knew in a bewildering flash that it was no child but a woman that I held in my arms. My heart went from me. I did not realize that I had kissed her.

She lay quite still for a moment, but her white eyelids fell slowly to hide her eyes from mine.

"Thank heaven you are safe!" I murmured. "How could you frighten me so?"

She withdrew herself gently from my arms and rose. Her hat was on my desk, between the inkstand and the mucilage. She picked it up and proceeded to stab it to her head.

"I must have fallen asleep," she murmured, keeping her downcast eyes from me. "I just came in to say good-bye, and I waited, and told Mr. Fellows he could leave the door unlocked, because I was sure you would come, and I was so tired,--"

"Good-bye indeed! Where do you think you are going?"

"I am going back to Miss Elwood's School," she said, with the gentle inflexibility I always enjoyed. "I seem to do nothing but get into trouble when I am away from there. I didn't tell anyone but Minnie, because I didn't want to have to argue about it, but I thought I ought to say good-bye to you,--"

"I am glad you remembered to be polite to me," I said, getting possession of her hands, "because I have a lot of things to tell you. That is,--if you will promise to marry me first!"

"Don't!" she said, breathlessly, drawing away. "You--forget!"

"Forget what?"

"The other girl!"

"There is no other girl,--never was and never will be," I protested. "What in the world do you mean, child?"

She looked at me with troubled eyes. "Katherine Thurston said that you said there was--someone."

"Oh!" I gasped. That foolish, forgotten incident of the locket! I felt myself blushing,--at least I had that grace.

"Let me explain, dear. When Mrs. Whyte introduced me to Miss Thurston, I thought she would be more willing to be friends if she were assured that I was not going to bother her with any love-making. So, just to make things pleasant, I showed her a miniature which I had in my pocket and told her that it was a picture of the only woman in the world to me."

"And wasn't that true?" she asked gravely.

"It was,--but it isn't true now. Darling, it was my mother's face,--the one I took out of this locket." I touched the jeweled trifle which lay upon her breast.

"Oh!" A look of terror came into her eyes, as though she drew back from an abyss. "Oh, and I might have married that man!"

"Jean! Did that have anything to do with it?"

"Why, I thought that, since I should never marry anyone else, it would be awfully selfish to refuse to save Gene," she said simply. "And if you were going to marry some strange person, why,--it didn't matter. That's what I *thought*."

"Oh, Jean, Jean!" I cried, taking her into my arms. What was the use of talking common-sense to a creature like that? I gave it up, and talked her own tongue instead! But after awhile she looked up under her lashes.

"Was I foolish to believe Mr. Garney?"

"Of course you were, my darling. But perhaps it was a guided foolishness. Jean, what you told me about his recognizing that locket gave me a clue to the man who shot Barker. Dear, it was not Gene. It was Mr. Garney himself."

"Oh! Can it be true?"

"Only too true." I told her some of the strange disconnected links which had at last been knit into a strong chain of evidence.

"Was that what he meant to tell me when we were married?" she asked, her eyes full of horror.

"No, I do not believe he ever meant to tell you anything,--or at most some wild tale like that one about Fellows,--which might have made trouble for us, too, if the real discovery had not come so soon. He merely wanted to get you to marry him, by hook or crook. He felt perfectly safe, I am sure. He

thought he had the whole thing in his hands when he forced Gene to believe and to confess what would forever close future investigation."

"And Gene will now go free?"

"Perfectly free,--free to dance at our wedding. Don't forget that," I said.

She laughed,--which was what I wanted. I could not let her break nervously under all this emotional strain.

"Then everything has turned out happily except for poor Mr. Clyde!" she said, clasping her hands hard together.

"Oh, my precious child, I quite forgot all about Mr. Clyde! He is just as happy as the rest of us. That letter of yours, you angel of all good tidings, is going to save him. It was from your father, you know, and it proves that Mr. Clyde was not in Houston that fatal night. I had to leave him to come back to look after you, but that is going to be all straightened out in a very short time. All because of that letter, dearest girl! See how things have worked out!"

She looked at me, breathless, bewildered, trying to understand all these marvels. Then suddenly she burst into nervous tears. It was just as well. It relieved the emotional strain--and it gave me a chance to comfort her.

It was some time before I remembered that Miss Thurston and Mr. Ellison and Mrs. Whyte and the police department were still uninformed that Miss Jean Benbow need not be the object of further search.

"You see!" I pointed out to her. "You put all the rest of the world out of my mind. Now stand here and tell me what I shall say to Mrs. Whyte." And I took down the office telephone.

"Tell her that since I have lost my train, I'll come back for awhile," she said demurely.

"Is that your only reason for staying, young lady?"

"Isn't that enough?"

"There are other trains!"

"But I have lost the one I wanted!"

"What have you found instead?"

She would not answer.

"What have you found?" I insisted, drawing her to me.

But what my Story-Book Girl told me I shall not repeat.

THE END

*** END OF THE PROJECT GUTENBERG EBOOK THE
SAINTSBURY AFFAIR ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.